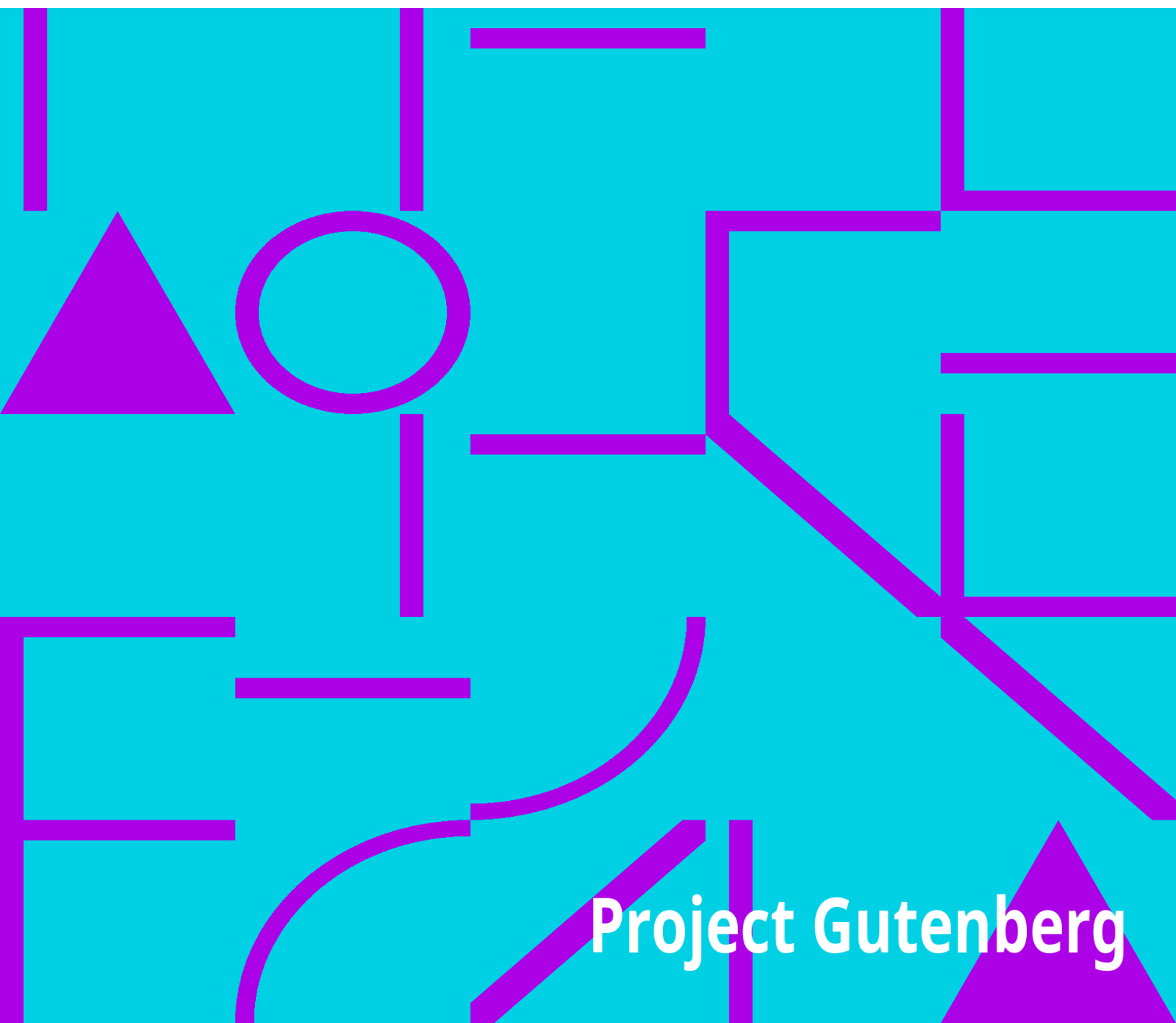


The Law of Hemlock Mountain

Hugh Lundsford



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*** START OF THE PROJECT GUTENBERG EBOOK THE LAW OF
HEMLOCK MOUNTAIN ***

THE LAW OF HEMLOCK MOUNTAIN

BY
HUGH LUNDSFORD

Frontispiece by
DOUGLAS DUER

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“I am sorry,” declared Spurrier, humbly. “I didn’t know they were pets. They behaved very much like wild birds.”

CHAPTER I

The officer whose collar ornaments were the winged staff and serpents of the medical branch, held what was left of the deck in his right hand and moistened the tip of his thumb against the tip of his tongue.

“Reënforcements, major?” he inquired with a glance to the man at his left, and the poker face of the gentleman so addressed remained impervious to expression as the answer was given back:

“No, I’ll stand by what I’ve got here.”

If the utterance hung on a quarter second of indecision it was a circumstance that went unnoted, save possibly by a young man with the single bars of a lieutenant on his shoulder straps—and Spurrier gave no flicker of recognition of what had escaped the others.

Between the whitewashed walls of the room where the little group of officers sat at cards the Philippine night breeze stirred faintly with a fevered breath that scarcely disturbed the jalousies.

The pile of poker chips had grown to a bulkiness and value out of just proportion to the means of army officers below field rank—and except for the battalion, commander and the surgeon none there held higher grade than a captaincy. This jungle-hot weather made men irresponsible.

One or two of the faces were excitedly flushed; several others were morosely dark. The lights guttered with a jaundiced yellow and sweat beaded the temples of the players. Sweat, too, made slippery the enameled surfaces of the pasteboards. Sweat seemed to ooze and simmer in their brains like the oil from overheated asphalt.

These men had been forced into a companionship of monotony in a climate of unhealth until their studied politeness, even their forced jocularity was rather the effort of toleration than the easy play of comradeship. Their arduously wooed excitement of draw-poker, which had run improvidently out of bounds, was not a pleasure so much as an expedient against the

boredom that had rubbed their tempers threadbare and put an edgy sharpness on their nerves.

Captain Comyn, upon whose call for cards the dealer now waited, was thinking of Private Grant out there under guard in the improvised hospital. The islands had “gotten to” Private Grant and “locoed” him, and he had breathed sulphurous maledictions against Captain Comyn’s life—but it was not those threats that now disturbed the company commander.

Of late Captain Comyn had been lying awake at night and wondering if he, too, were not going the same way as the unfortunate file. Horribly quiet fears had been stealing poisonously into his mind—a mind not given to timidities—and the word “melancholia” had assumed for him a morbid and irresistible compulsion. No one save the captain’s self knew of these secret hauntings, born of climate and smoldering fever, and he would not have revealed them on the torture rack. For them he entertained the same shame as that of a boy grown too large for such weakness, who shudders with an unconfessed fear of the dark. But he could no more shake them loose and be free of them than could the Ancient Mariner rid himself of the bird of ill-omen tied about his neck. Now he pulled himself together and tossed away a single card.

“I’ll take one in the place of that,” he commented with studied carelessness, and Lieutenant John Spurrier, with that infectious smile which came readily to his lips, pointed a contrast with the captain’s abstraction by the snappy quickness of his announcement:

“If I’m going to trail along, I’ll need three. Yes, three, please, major.”

“When Spurrier sits in the game,” commented a player who, with a dolorous glance at the booty before him, threw down his hands, “we at least get action. Myself, I’m out of it.”

The battalion commander studied the ceiling with a troubled furrow between his brows which was not brought there by the hazards of luck. He was reflecting that whenever a game was organized it was Spurrier who quickened its tempo from innocuous amusement to reckless extravagance. Spurrier, fitted for his life with so many soldierly qualities, was still, above all else, a plunger. That spirit seemed a passion that filled and overflowed him. Temperate in other habits, he played like a nabob. The major

remembered hearing that even at West Point Jack Spurrier had narrowly, escaped dismissal for gambling in quarters, though his class standing had been distinguished and his gridiron record had become a tradition.

This sort of game with “the roof off and deuces wild,” was not good for the *morale* of his junior officers, mused the major. It was like spiking whisky with absinthe. Yes, to-morrow he would have Spurrier at his quarters and talk to him like a Dutch uncle.

There were three left battling for the often sweetened pot now, with three more who had dropped out, looking on, and a tensity enveloped the long-drawn climax of the evening’s session.

Captain Comyn’s cheek bones had reddened and his irascible frown lines deepened. For the moment his fears of melancholia had been swallowed up in a fitful fury against Spurrier and his smiling face.

At last came the decisive moment of the final call and the show-down, and through the dead silence of the moment sounded the distant sing-song of a sentry:

“Corporal of the guard, number one, relief!”

Over the window sill a tiny green lizard slithered quietly and hesitated, pressing itself flat against the whitewash.

Then the major’s cards came down face upward—and showed a queen-high straight.

“Not quite good enough, major,” announced Comyn brusquely as his breath broke from him with a sort of gasp and he spread out a heart flush.

But Spurrier, who had drawn three cards, echoed the captain’s words: “Not quite good enough.” He laid down two aces and two deuces, which under the cutthroat rule of “deuces wild” he was privileged to call four aces.

Comyn came to his feet and pushed back his chair, but he stood unsteadily. The fever in his bones was playing queer pranks with his brain. He, whose courtesy had always been marked in its punctilio, blazed volcano-fashion into the eruption that had been gathering through these abnormal days and nights.

Yet even now the long habit of decorum held waveringly for a little before its breaking, and he began with a queer strain in his voice:

“You’ll have to take my **IOU**. I’ve lost more than I can pay on the peg.”

“That’s all right, Comyn,” began the victor, “Pay when——” but before he could finish the other interrupted with a frenzy of anger:

“No, by God, it’s not all right! It’s all wrong, and this is the last game I sit in where they deal a hand to you.”

Spurrier’s smiling lips tightened instantly out of their infectious amiability into a forbidding straightness. He pushed aside the chips he had been stacking and rose stiffly.

“That’s a statement, Captain Comyn,” he said with a warning note in his level voice, “which requires some explaining.”

The abrupt bursting of the tempest had left the others in a tableau of amazement, but now the authoritative voice of Major Withers broke in upon the dialogue.

“Gentlemen, this is an army post, and I am in command here. I will tolerate no quarrels.”

Without shifting the gaze of eyes that held those of the captain, Spurrier answered insistently:

“I have every respect, major, for the requirements of discipline—but Captain Comyn must finish telling why he will no longer play cards with me.”

“And I’ll tell you *pronto*,” came the truculent response. “I won’t play with you because you are too damned lucky.”

“Oh!” Spurrier’s tensely of expression relaxed into something like amusement for the anticlimax. “That accusation can be stomached, I suppose.”

“Too damned lucky,” went on the other with a gathering momentum of rancor, “and too continuously lucky for a game that’s not professional. When a man is so proficient—or lucky if you prefer—that the card table pays him more than the government thinks he’s worth, it’s time——”

Spurrier stepped forward.

“It’s time for you to stop,” he cautioned sharply. “I give you the fairest warning!”

But Comyn, riding the flood tide of his passion—a passion of distempered nerves—was beyond the reach of warnings and his words came in a bitter outpouring:

“I dare say it was only luck that let you bankrupt young Tillsdale, but it was as fatal to him as if it bore an uglier name.”

The sound in Spurrier’s throat was incoherent and his bodily impulse swift beyond interference. His flat palm smote Captain Comyn’s cheek, to come away leaving a red welt behind it, and as the others swept forward to intervene the two men grappled.

They were torn apart, still struggling, as Major Withers, unaccustomed to the brooking of such mutinies, interposed between them the bulk of his body and the moral force of his indignantly blazing eyes.

“I will have no more of this,” he thundered. “I am not a prize-fight referee, that I must break my officers out of clinches! Go to your quarters, Comyn! You, too, Spurrier. You are under arrest. I shall prefer charges against you both. I mean to make an example of this matter.”

But with a strange abruptness the fury died out of Comyn’s face. It left his passion-distorted features so instantly that the effect of transformation was uncanny. In a breathing space he seemed older and his eyes held the dark dejection of utter misery. His anger had flared and died before that grimmer emotion which secretly haunted him—the fear that he was going the way of climate-crazed Private Grant.

When they released him he turned dispiritedly and left the room in docile silence. He was not thinking of the charges to be preferred. They belonged to to-morrow. To-night was nearer, and to-night he must face those hours of sleeplessness that he dreaded more than all the penalties enunciated by the Articles of War.

Spurrier, too, bowed stiffly and left the room.

Though it was late when Captain Comyn entered his own quarters, he did not at once throw himself on the army cot that stood against the

whitewashed wall.

For him the cot held no invitation—only the threat of insomnia and tossing. His taut nerves had lost the gracious art of relaxation, and before his thoughts paraded hideously grotesque memories of the few faces he had ever seen marred by the dethronement of reason.

Already he had forgotten the violent and discreditable scene with Spurrier,⁸ and presently he dropped himself inertly into the camp chair beside the table at the room's center and opened its drawer.

Slowly his hand came out clutching a service revolver, and his eyes smoldered unnaturally as they dwelt on it. But after a little he resolutely shook his head and thrust the thing aside.

He sat in a cold sweat, surrounded by the silence of the Eastern night, a comprehensive silence which weighed upon him and oppressed him.

In the thatching of the single-storied adobe building he heard the rustling of a house snake, and from without, where moonlight seemed to gush and spill against the cobalt shadows, shrilled the small voice from a lizard's inflated, crimson throat.

It was all crazing him, and his nails bit into his palms as he sat there, silent and heavy-breathed. Then he heard footsteps nearer and louder than those of the pacing sentries, followed by a low rapping of knuckles on his own door. Perhaps it was Doctor James. He had the kindly habit of besetting men who looked fagged with the offer of some innocuous bromide. As if bromides could soothe a brain in which something had gone *malo*!

"Come in," he growled, and into the room stepped not Major James, but Lieutenant Spurrier.

Slowly and with an infinite weight of weariness, Comyn rose to his feet. He might be afraid of lunacy, but not of lieutenants, and his lips smiled sneeringly.

"If you've come to ask a retraction," he declared ungraciously, "I've none to offer. I meant all I said."

The visitor stood inside the door calmly eyeing the man who was his own company commander.

“I didn’t come to insist on apologies,” he replied after a moment’s silence with an off-hand easiness of tone. “That can wait till you’ve gotten over your tantrum. It was another thing that brought me.”

“I want to be left alone.”

“Aside from the uncomplimentary features of your tirade,” went on Spurrier placidly and he strolled around the table and seated himself on the window sill, “there was a germ of truth in what you said. We’ve been playing too steep a game.” He paused and the other man who remained standing by his table, as though he did not wish to encourage his visitor by seating himself, responded only with a short, ironic laugh.

“See here, Comyn,” Spurrier’s voice labored now with evident embarrassment. “What I’m getting at is this: I don’t want your **IOU** for that game. I simply want you to forget it.”

But the captain took an angry step forward.

“Do you think I’m a charity patient?” he demanded, as his temper again mounted to storm pressure. “Why, damn your impertinence, I don’t want to talk to you. I don’t want you in my quarters!”

Spurrier slipped from his seat and an angry flush spread to his cheek bones.

“You’re the hell of a—gentleman!” he exclaimed.

The two stood for a few moments without words, facing each other, while the lieutenant could hear the captain’s breath rising and falling in a panting thickness.

Surgeon James returning from a visit to a colic sufferer was trudging sleepily along the empty *calle* when he noted the light still burning in the captain’s window, and with an exclamation of remembrance for the officer’s dark-ringed and sleepless eyes, he wheeled toward the door. Just as he neared it, a staccato and heated interchange of voices was borne out to him, and he hurried his step, but at the same instant a pistol shot bellowed blatantly in the quiet air and into his nostrils stole the acrid savor of burned powder.

The door, thrown open, gave him the startling picture of Comyn sagged across his own table and lying grotesque in the yellow light; and of Spurrier standing, wide-eyed by the window, with the green and cobalt background

of the tropic night beyond his shoulders. While he gazed the lieutenant wheeled and thrust his head through the raised sash, under the jealousy.

“Halt!” cried James excitedly, leaping forward to possess himself of the pistol which Comyn had taken from his drawer and thrust aside. “Halt, Spurrier, or I’ll have to fire!”

The other turned back and faced his captor with an expression which it was hard to read. Then he shook his shoulders as though to disentangle himself from an evil dream and in a cool voice demanded:

“Do you mean to intimate, James, that you suspect me of killing Comyn?”

“Do you mean to deny it?” countered the other incredulously.

“Great God! I oughtn’t to have to. That shot was fired through the window. The bullet whined past my ear while my back was turned. That was why I looked out just now. Moreover, I am, as you see, unarmed.”

“God grant that you can prove these things, Spurrier, but they will need proof.” The doctor turned to bend over the prostrate figure, and as he did so voices rose from the *calle* where already had sounded the alarm and response of running feet. “Or, perhaps,” added the doctor with stubborn suggestiveness, “you acted in self-defense.”

Presently the door opened and the corporal of the guard entered and saluted. His eyes traveled rapidly about the room and he addressed Spurrier, since James was not a line officer.

“I picked this revolver up, sir, just outside the window,” he said, holding out a service pistol. “It was lying in the moonlight and one chamber is empty.”

Spurrier took the weapon, but when the man had gone James suggested in an even voice: “Don’t you think you had better hand that gun to me?”

“To you? Why?”

“Because this looks like a case for G. C. M. It will have a better aspect if I can testify that, after the gun was brought in, it wasn’t handled by you except while I saw you?”

“It seems to me”—a belligerent flash darted in the lieutenant’s eyes—“that you are singularly set on hanging this affair around my neck.”

“You were with him and no one else was. If I were you, I’d go direct to the major and make a statement of facts. He’ll be getting reports from other sources by now.”

“Perhaps you are right. Is *he* dead?”

The surgeon nodded, and Spurrier turned and closed the door softly behind him.

CHAPTER II

The situation of John Spurrier, who was Jack Spurrier to every man in that command, standing under the monstrous presumption of having murdered a brother officer, called for a reaccommodation of the battalion's whole habit of thought. It demanded a new and unwelcome word in their vocabulary of ideas, and against it argued, with the hot advocacy of tested acquaintance, every characteristic of the man himself, and every law of probability. For its acceptance spoke only one forceful plea—evidence which unpleasantly skirted the actuality of demonstration. Short of seeing Spurrier shoot his captain down and toss his pistol through the open window, Major James could hardly have witnessed a more damaging picture than the hurriedly opened door had framed to his vision.

Within the close-drawn cordon of a post, held to military accountability, facts were as traceable as entries on a card index—and these facts began building to the lieutenant's undoing. They seemed to bring out like acid on sympathetic ink the miracle of a Mr. Hyde where his comrades had known only a Doctor Jekyll.

The one man out of the two skeleton companies of infantry stationed in the interior town who remained seemingly impervious to the strangulating force of the tightening net was Spurrier himself.

In another man that insulated and steady-eyed confidence might have served as a manifest of innocence and a proclamation of clean conscience. But Spurrier wore a nick-name, until now lightly considered, to which new conditions had added importance.

They had called him "The Plunger," and now they could not forget the nicked and chrome-hardened gambling nerve which had won for him the sobriquet. There had been the *coup* at Oakland, for example, when a stretch finish had stood to ruin him or suddenly enrich him—an incident that had gone down in racing history and made café talk.

Through a smother of concealing dust and a thunder of hoofs, the field had struggled into the stretch that afternoon, tight-bunched, with its snapping silks too closely tangled for easy distinguishing—but the cerise cap that proclaimed Spurrier's choice was nowhere in sight. The bookmakers pedestalled on their high stools with field glasses glued to their eyes had been more excited than the young officer on the club-house lawn, who put away his binoculars while the horses were still in the back stretch and turned to chat with a girl.

Three lengths from the finish a pair of distended nostrils had thrust themselves ahead of the other muzzles to catch the judges' eyes, and bending over steaming withers had nodded a cerise cap.

But the lieutenant who had escaped financial disaster and won a miniature fortune had gone on talking to the girl.

Might it not be suspected in these circumstances that "Plunger" Spurrier's refusal to treat his accusation seriously was only an attitude? He was sitting in a game now with his neck at stake and the cards running against him. Perhaps he was only bluffing as he had never bluffed before. Possibly he was brazening it out.

It was not until the battalion had hiked back through bosque and over mountains to Manila that the lieutenant faced his tribunal: a court whose simplified methods cut away the maze of technicalities at which a man may grasp before a civilian jury of his peers.

If, when he actually sat in the room where the evidence was heard, his assurance that he was to emerge clean-shriven began to reel under blows more powerful than he had expected, at least his face continued to testify for him with an outward serenity of confidence.

Doctor James told his story with an admirable restraint and an absolute absence of coloring. He had meant to go to Comyn, because he read in his eyes the signs of nerve waste and insomnia; the same things that had caused too many suicides among the men whose nervous constitutions failed to adapt themselves to the climate.

Before he had carried his purpose to fulfillment—perhaps a half hour before—he had gone to look in on the case of Private Grant, who was suffering from just such a malady, though in a more serious degree. That private, a

mountaineer from the Cumberland hills of Kentucky, had been to all appearances merely a lunatic, although it was a case which would yield to treatment or perhaps come to recovery even if left to itself. On this night he had gone to see if Grant needed an opiate, but had found the patient apparently sleeping without restlessness, and had not roused him. At the door of the place where Grant was under guard, he had paused for a word with Private Severance who stood there on sentry duty.

It had been a sticky night following a hot day, and in the *calle* upon which lay the command in billets of nipa-thatched houses, no one but himself and the sentries were astir during the twenty minutes he had spent strolling in the moonlight. On rounding a corner he had seen a light in Comyn's window, and he had gone around the angle of the adobe house, since the door was on the farther side, to offer the captain a sleeping potion, too. That was how he chanced on the scene of the tragedy, just a moment too late for service.

"You say," began Spurrier's counsel, on cross-examination, "that you visited Private Grant about half an hour before Captain Comyn was killed and found him apparently resting naturally, although on previous nights you had thought morphia necessary to quiet his delirium?"

The major nodded, then qualified slowly:

"Grant had not, of course, been continuously out of his head nor had he always slept brokenly. There had been lucid periods alternating with exhausting storm."

"You are not prepared to swear, though, that this seeming sleep might not have been feigned?"

"I am prepared to testify that it is most unlikely."

"Yet that same night he did make his escape and deserted. That is true, is it not?"

The major bowed. "He had sought to escape before. That was symptomatic of his condition."

"And since then he has not been recaptured, though he was in your opinion too ill and deranged to have deceived you by feigning sleep?"

"Quite true."

“Have you ever heard Grant threaten Captain Comyn’s life?”

“Never.”

“Whether he had made such threats to your knowledge or not, he did come from that hill county of the Kentucky mountains commonly called Bloody Brackton, did he not?”

“I believe so. His enlistment record will answer that.”

“You do know, though, that the man on guard duty—the man with whom you spoke outside—was Private Severance, also from the so-called Kentucky feud belt and a friend of the sick man?”

“I can testify of my own knowledge only that he was Private Severance and that he and Grant were of the same platoon—Lieutenant Spurrier’s.”

The defense advocate paused and carefully framed a hypothetical question to be answered by the witness as a medical expert.

“I will now ask you to speak from your knowledge of blood tendencies as affected or distorted by mental abnormalities. Suppose a man to have been born and raised under a code which still adheres to feudal violence and the private avenging of personal grievances both real and fancied. Suppose such a man to have conceived a bitter hatred against his commanding officer and to have brooded over that hatred until it had become a fixed idea—a monomania—a determination to kill; suppose such a man to have known only the fierce influences of his retarded hills until he came into the army and to have encountered there a discipline which seemed to him a tyranny. I will ask you whether such a man might not be apt to react to a homicidal mania under nervous derangement, and whether such a homicidal mania might not develop its own craftiness of method?”

“Such,” testified the medical officer, “is a conceivable but a highly imaginative possibility.”

Then Private Severance was called and came into the room, where he stood smartly at attention until instructed to take the witness chair. This dark-haired private from the Cumberlandts looked the soldier from crown to sole leather, yet his features seemed to hold under their present repose an ancient stamp of sullenness. It was an intangible quality rather than an expression, as though it bore less relation to his present than to some unconquerable

survival from generations that had passed on; generations that had been always peering into shadows and searching them for lurking perils.

In his speech lingered quaintly remnants of dialect from the laureled hills that army life had failed to eradicate, and in his manner one could note a wariness of extreme caution. That was easy to understand, because Private Severance, too, stood under the charge of having permitted a prisoner to escape, and his evidence would confront him later when he in turn occupied the dock.

“I didn’t have no speech with Bud Grant that night,” he testified, “but I’d looked in some several times through the window. It was a barred window, an’ every time I peeked through it I could see Bud layin’ there asleep. The moon fell acrost his cot so I could see him plain.”

“When did you see him last?”

“After Major James had been in and come out—a full fifteen minutes later. I’m able to swear to that, because I noticed the moon just as the major went out, and, when I looked in through the window the last time, the moon was a full quarter hour lower down to’rds settin’.”

After a moment’s pause the witness volunteered in amplification: “Where I come from we don’t have many clocks or watches. We goes by the sun and moon.”

“Then you can swear that if Private Grant fired the shot that killed Captain Comyn, he must have escaped and eluded your sight; armed himself, crossed the plaza; turned the corner; accomplished the act and gotten clean away, all within the brief period of five minutes?”

“I can swear to more than that. He didn’t get past me till *after* the pistol went off. There wasn’t no way out but by the one door, and I was right at that door all the time until I left it.”

“When did you leave?”

The witness gave response without hesitation, yet with the same serious weighing of his words.

“I was standing there, sorter peerin’ up at the stars an’ beginning to feel right smart tired when I heard the shot. I heard the shout of the corporal of the guard, too, an’ then it was that I made my mistake.” He paused and went

on evenly. "I hadn't ought to have stirred away from my post, but it seemed like a sort of a general alarm, an' I went runnin' to'rds it. That was the first chanst Bud had to get away. When I got back he was gone."

"You are sure he was still there when the shot sounded?"

"As God looks down, I can swear he was!"

Then the defense took the witness.

"When does your enlistment expire?"

"Two months, come Sunday."

"You know to the day, don't you? You are keenly anxious for that day to come, aren't you?"

"Why wouldn't I be? I've got folks at home."

"Haven't you and Grant both been malcontents throughout your entire period of service?"

"It's news to me, if it's true."

"Haven't you often heard Private Grant swear vengeance against Captain Comyn?"

"Not no more than to belly-ache some little."

"Is it not a fact that since you and Grant ran amuck on the transport coming over, and Comyn put you both in irons, the two of you had sworn vengeance against him; that you had both taken the blood oath to get him?"

Severance looked blankly at his questioner and blankly shook his head.

"That's all new tidings ter me," he asserted with entire calmness.

"Don't you know that you deliberately let Grant out immediately after the visit of Major James and slipped him the pistol with which he fired the shot? Didn't you do that, knowing that when the report sounded you could make it your excuse for leaving your post, and then perjure yourself as to the time?"

"I know full well," asserted the witness with an unshaken composure, "that nothing like that didn't happen."

Fact built on fact until even the defendant's counsel found himself arguing against a growing and ugly conviction. The pistol had been identified as Spurrier's, and his explanation that he had left it hanging in his holster at his quarters, whence some unknown person might have abstracted it, lacked persuasiveness. The defense built a structure of hypothesis based upon the fact that the open door of Spurrier's room was visible from the house where Grant had been tossing on his cot. The claim was urgently advanced that a skulking lunatic might easily have seen the glint of blued steel, and have been spurred in his madness by the temptation of such an implement ready to his hand. But that, too, was held to be a fantastic claim. So the verdict was guilty and the sentence life imprisonment. It must have been death, had the case, for all its warp of presumption and woof of logic, been other than circumstantial.

The defendant felt that this mitigation of the extreme penalty was a misplaced mercy. The disgrace could be no blacker and death would at least have brought to its period the hideousness of the nightmare which must now stretch endlessly into the future.

It was to a prisoner, sentenced and branded, that Major Withers came one afternoon when the court-martial of Lieutenant Spurrier had run its course as topic-in-chief for the Officers' Club at Manila. Other matters were already crowding it out of the minds it had profoundly shocked.

"I want to talk to you, Jack," began the major bluntly. "I want to talk to you with a candor that grows out of the affection we all felt for you—before this damnable thing upset our little world. My God, boy, you had life in your sling. You had every quality that makes the soldier; you had every social requisite except wealth. This besetting passion for gambling has brought the whole train of disaster—as logically as if you had killed him at the card table itself."

"You are overlooking the fact, major," interrupted the prisoner dryly, "that I didn't kill him. Moreover, it's too late now for the warning to benefit me. I dare say in Leavenworth I shall have no trouble curbing my passion for gaming." He paused and added with an irony of despairing bitterness: "But I suppose I should thank you and say, like the negro standing on the gallows, 'dis hyar is surely g'wine to be a great lesson ter me.'" Suddenly the voice broke and the young man wheeled to avert his face. "My God," he

cried out, “why didn’t you let them hang me or shoot me? Any man can stiffen his legs and his spine for five minutes of dying—even public dying—but back of those walls with a convict’s number instead of a name——” There he broke off and the battalion commander laid a hand on his heaving shoulder.

“I didn’t come to rub in preachments while you stood at the edge of the scaffold or the jail, Jack. My warning may not be too late, after all. We’ve passed the matter up to the war department with a strong recommendation for clemency. We mean to pull every wire that can honorably be pulled. We’re making the most of your good record heretofore and of the conviction being based on circumstantial evidence.”

He paused a moment and then went on with a trifle of embarrassment in his voice:

“You know that Senator Beverly is at the governor general’s palace—and that his daughter is with him.”

Spurrier wheeled at that and stood facing his visitor with eyes that had kindled, but in which the light at once faded as he commented shortly:

“Neither the senator nor Augusta has made any effort to see me since I was brought to Manila.”

“Perhaps the senator thought that was best, Jack,” argued Withers. “For the daughter, of course, I’m not prepared to speak—but I know that Beverly has been keeping the cable hot in your behalf. Your name has become so familiar to the operators between here and Washington that they don’t spell it out any more: they only need to rap out Sp. now—and if I needed a voice to speak for me on Pennsylvania Avenue or on Capitol Hill, there’s no man I’d pick before the senator.”

When he had gone Spurrier sat alone and to his ears came the distant playing of a band in the plaza. Somewhere in that ancient town was the girl who had not been to see him, nor written to him, even though, just before his battalion had gone into the bosques across the mountains, she had let him slip a ring on her finger, and had answered “yes” to his question—the most personal question in the world.

CHAPTER III

There was a more assured light in Major Withers' eyes when he next came as a visitor into the prison quarters, and the heartiness of his hand clasp was in itself a congratulation.

"The thing was carried up to the president himself," he declared. "Washington is sick of you, Spurrier. Because of you miles of red tape have been snarled up. Departments have worked overtime until the single hope of the United States government is that it may never hear of you again. You don't go to prison, after all, my boy."

"You mean I am pardoned?"

Then, remembering that the rose of his bringing carried a sharp thorn the senior proceeded with a note of concern sobering his voice.

"The red tape has not only been tangled because of you—but it has tangled you in its meshes, too, Spurrier. Yes, you are pardoned. You are as free as I am—but 'in view of the gravely convincing evidence, et cetera, et cetera'—it seems that some sort of compromise was deemed necessary."

Spurrier stood where he had risen from his seat and his eyes held those of his informant with a blending of inquiry and suspense.

"What sort of compromise, major?"

"You leave the army with a dishonorable discharge. The world is open to you and you've got an equipment for success—but you might as well recognize from the start that you're riding with a heavy impost in your saddle clothes, my boy." He paused a moment and then, dropping his race-track metaphor, went hurriedly on: "For myself, I think you're guilty or innocent and you ought to be hanged or clean-shriven. I don't get this dubious middle ground of freedom with a tarnished name. It's going to crop up to crab things for you just when they hang in the balance, and I'm damned if I can see its fairness! It will cause men to look askance and to say 'he was saved from rope-stretching only by wire-pulling.'"

The major ended somewhat savagely and Spurrier made no answer. He was gazing out at the patch of blue that blazed hotly through the high, barred window and, seeing there reminders of the bars sinister that would henceforth stand between himself and the sky.

The battalion chief interrupted the long pause to suggest:

“The *Empress* sails on Tuesday. If I were you I’d take passage on her. I suppose you will, won’t you?”

“That depends,” answered the liberated man hesitantly. “I’ve got to thank the senator—and, though she hasn’t sent me any message, there’s a question to ask a girl.”

“It’s none of my business, of course, Spurrier,” came the advising voice quietly. “But the Beverlys have engaged passage on the *Empress*. If I were you, I’d drop a formal note of gratitude and leave the rest until you meet them aboard.”

After a moment’s thought the other nodded. “I’ll follow that suggestion.²⁵ It may be less embarrassing for—they.”

“The other fellows are going to send a sort of a hamper down to the boat. There won’t be any cards, but you’ll know that a spirit of Godspeed goes with the stirrup cup.”

For an instant Spurrier looked puzzled and the major, whose note of embarrassment had been growing until it seemed to choke him, now spluttered and sought to bury his confusion under a forced paroxysm of coughing.

Then impulsively he thrust out his hand and gripped that of the man of whom just now he could remember only gallant things; soldierly qualities and gently bred charm.

“In a fashion, Jack, you must shake hands with all of them through me. I come as their proxy. They can’t give you a blowout, you know. They can’t even come to see you off. I can say what I like now. The papers aren’t signed up yet, but afterward—well, you know! Damn it, I forget the exact words that the Articles of War employ—about an officer who goes out—this way.”

“Don’t bother, major. I get your meaning.” Spurrier took the proffered hand in both his own. “No officer can give me social recognition. I believe the official words are that I shall be ‘deemed ignominious.’ Tell the boys I understand.”

On the sailing day John Spurrier, whose engagingly bold eyes had not yet learned to evade the challenge of any glance, timed his arrival on board almost as surreptitiously as a stowaway. It was from behind the closed door of his own stateroom that he listened to the deck commotion of laughter and leave-taking and heard, when the whistle had shrieked its warning to shore-going visitors, the grind of anchor chain on winch and windlass.

That evening he dined in an inconspicuous corner by arrangement with the dining-saloon steward, and bolted his meal with nervous haste.

From afar, as he had stood in a companionway, he had glimpsed a panama-hatted girl—a girl who did not see him, and who had shown only between the shifting heads and shoulders of the crowd. He could not have told even had he been closer whether her gloved left hand still wore upon its third finger the ring that he had put there—before things had happened.

He must face the issue of questioning her and being questioned, and he hoped that he might have his first meeting with her alone—free from the gaze of other eyes that would torture him, and perhaps mortify her.

So when the moon had risen and the band had begun its evening concert he slipped out on deck and took up his station alone at the stern rail. It was not entirely dark even here, but the light was mercifully tempered, and upon the promenaders he turned his back, remaining in a seclusion from which, with sidewise glances, he appraised each figure that drifted by.

Once his eyes encountered those of a tall and elderly gentleman in uniform upon whose shoulder straps glittered the brigadier’s single star.

For an instant Spurrier forgot the sadly altered color of his status and his hand, answering to instinct, rose in salute, while his lips parted in a smile.

But the older man, who fortunately was alone, after an embarrassed instant went on, pretending an absent-mindedness that ignored the salutation. Spurrier could feel that the general was scarcely more comfortable than himself.

Slowly, at length, he left his outlook over the phosphorescent wake and drifted isolatedly about the decks, giving preference to the spots where the shadows lay heaviest. But when his wandering brought him again to the place he had abandoned at the stern, he found that it had been preëmpted by another. A figure stood there alone and so quiet that at first he hardly distinguished it as separate from the black contour of a capstan.

But with the realization he recognized a panama hat, from under whose brim escaped a breeze-stirred strand of dark hair, and promptly he stepped to the rail, his rubber-soled shoes making no sound.

The girl did not hear him, nor did she, as he found himself reflecting, feel his presence as lovers do in romances, and turn to greet him before he announced himself. But as she stood there in the shadow, with moonlight and starlight around her, his pulses quickened with an insupportable commotion of mingled hope and fear.

Her beauty was that of the aristocrat. It was this patrician quality which had first challenged his interest in her and answered to his own inordinate pride of self-confidence.

He had liked the lightness with which her small feet trod the earth and the prideful tilt of her exquisitely modeled chin.

After all, he had known her only a short time—and now he realized that he did not know her well: certainly not well enough to estimate with any surety how they would meet again, after an interval which had tarnished the name that had come to him from two generations of accrued distinction.

He bent forward, and, in a low voice, spoke her name, and she turned without a start so that she stood looking into his eyes.

“I suppose you know,” he began, and for once he spoke without self-assurance, “that I didn’t hunt you out sooner because I wanted to spare you embarrassment. I knew you were sailing by this boat—and so I took it, too.”

She nodded her head, but remained silent. Her eyes met his and lingered, but they were like curtained windows and told him nothing. It was as if she wished to let him pitch the plane of their meeting without interference, and he was grateful.

“I don’t suppose,” he began, forcing himself to speak with forthright directness, “I need protest my innocence to you—and I don’t suppose I need confess that the stigma will stick to me—that in—some quarters—it will mean ostracism. I wanted to meet you the first time alone as much for your sake as my own.”

“I know——” she agreed faintly, but there was no rush of confidence, of sympathy that thought only of the black situation in which he stood.

“I know, too,” he went on with the same steadiness, “that but for your father’s efforts I should have had to spend the rest of my life in prison. Above all, I know that your father made those efforts because you ordained it.”

“It was too horrible,” she whispered with a little shudder. “It was inconceivable.”

“It still is,” he reminded her. “There is a question, then, to be asked—²⁹a question for you to answer.”

The girl’s hands dropped on the rail and her fingers tightened as her eyes, deeply pained, went off across the wake. She seemed unable to help him, unable to do more than give back monosyllabic responses to the things he said.

“Of course, I can’t assume that the promise you gave me—before all this—still stands, unless you can ratify it. I’m the same man, yet quite a different man.”

At last she turned, and he saw that her lashes were wet with tears.

“Some day,” she suggested almost pleadingly, “some day surely you will be able to clear your name—now that you’re free to give yourself to it.”

He shook his head, “That is going to be the purpose of my life,” he answered. “But God only knows——”

“When you have done that,” she impetuously exclaimed, “come back to me. I’ll wait.”

But Spurrier shook his head and stiffened a little, not indignantly, but painfully, and his face grew paler than it had yet been.

“That is generous of you,” he said slowly. “That is the best I had the right to hope for—but it’s not enough. It would be a false position for you—with a mortgage of doubt on your future. I’ve got to face this thing nakedly. I’ve got to depend only on those people who don’t need proof—who simply know that I must be innocent of—of *this* because it would be impossible for me to be guilty of it—people,” he added, his voice rising with just a moment’s betrayal of boyish passion, “who will take the seeming facts, just as they are, and still say, ‘Damn the facts!’”

“Can I do that?” She asked the question honestly, with eyes in which sincere tears glistened, and at last words came in fresher volume. “Can I ignore the fact that father is in public life, where his affairs and those of his family are public property? You know he is talked of as presidential timber. Can I ask him to move heaven and earth to give you back your liberty—and then have his critics say that it was all for a member of his own family—a private use of public power?”

“Then you want your promise back?” he demanded quietly.

Suddenly the girl carried her hands to her face, a face all the lovelier for its distress. “I don’t—know what—I want,” she gasped.

Her lover stood looking down at her, and his temples grew coldly moist where the veins stood out.

“If you don’t know what you want, dear, I know one thing that you can’t do,” he said. “Under these circumstances, your only chance of happiness would lie in your wanting one thing so much that the rest wouldn’t count.” He paused, and then he, too, moved aside and stood with her, leaning on the rail while in the phosphorescent play of the water and the broken reflections of the low-hung stars he seemed to find a sort of anodyne.

“I said that what you offered was the most I had the right to hope for. That was true. Your father’s objections are legitimate. I owe you both more than I can ever pay—but I won’t add to that debt.”

“I thought,” said the girl miserably, “that I loved you—enough for anything.” The shock of all this—has made my mind swirl so that now—I’m not sure of anything.”

“Yes,” he said dully, “I understand.”

Yet perhaps what he understood, or thought he understood, just then was either more or less than implied in the deferential compliance of his voice. This girl had given her promise to an officer and a gentleman with two generations of gallant army record behind him and a promising future ahead. She was talking now to one who, in the words of the Articles of War was neither an officer nor a gentleman and who had been saved from life imprisonment only by influence of her own importuning.

Her own distress of mind and incertitude were so palpable and pathetic that the man had spoken with apology in his voice, because through him she had been forced into her dilemma. Yet, until now, he had been young enough and naïve enough to believe in certain tenets of romance—and, in romance, a woman who really loved a man would not be weighing at such a time her father's aspirations toward the White House. In romance, even had he been as guilty as perdition, he would have stood in her eyes, incapable of crime. Palpably life and romance followed variant laws and, for a bitter moment, Spurrier wished that the senator had kept hands off, and left him to his fate.

He had heard the senator himself characterized as a man cold-bloodedly ambitious and contemptuous of others and, having seen only the genial side of that prominent gentleman, he had resentfully denied such statements and made mental comment of the calumny that attaches to celebrity.

Yet, Spurrier argued to himself, the girl was right. Quite probably if he had a sister similarly placed, he would be seeking to show her the need of curbing impulse with common sense.

From a steamer chair off somewhere at their backs came a low peal of laughter, and the orchestra was busy with a fox trot. For perhaps five minutes neither of them spoke again, but at last the girl twisted the ring from her finger. At least her loyalty had kept it there until she could remove it in his presence. She handed it to him and he turned it this way and that. The moonlight teased from its setting a jet of cold radiance.

Then Spurrier tossed it outward and watched the white arc of its bright vanishing. He heard a muffled sob and saw the girl turn and start toward the companionway door. Instinctively he took a step forward following, then halted and stood where he was.

Later, Spurrier forced himself toward the smoke room where already under cigar and cigarette smoke, poker and bridge games were in progress, and where in little groups those men who were not playing discussed the topics of East and West. He was following no urge of personal fancy in entering that place, but rather obeying a resolution he had made out there on deck. Now that he had asked his question and had his answer there was nothing from which he could afford to hide. He knew that he came heralded by the advance agency of gossip and that it behooved him from the start to meet and give back glance for glance: to declare by his bearing that he had no intention of skulking, and no apologies to make.

Yet, having reached the entrance from the deck, he hesitated, and while he still stood, with his back to the lighted door of the smoke room, he reeled under a sudden impact and was thrown against the rail. Recovering himself with an exclamation of anger, Spurrier found himself confronting a man rising from his knees, whose awkwardness had caused the collision.

But the stumbling person having regained his feet, stood seemingly shaken by his fall, and after a moment, during which Spurrier eyed him with hostile silence, exclaimed:

“Plunger Spurrier!”

“That is not my name, sir,” retorted the ex-officer hotly. “And it’s not one that I care to have strangers employ.”

The man drew back a step, and the light from the doorway fell across a face a little beyond middle age; showing a broad forehead and strongly chiseled features upon which sat an expression of directness and force.

“My apology is, at least, as ready as was my exclamation,” declared the stranger in a pleasant voice that disarmed hostility. “The term was not meant offensively. I saw you at Oakland one day when a race was run, and I’ve heard certain qualities of yours yarned about at mess tables in the East. I ask your pardon.”

“It’s granted,” acceded Spurrier of necessity. “And since you’ve heard of me, you doubtless know enough to make allowances for my short temper and excuse it.”

“I *have* heard your story,” admitted the other man frankly. “My name³³ is Snowden. It’s just possible you may have heard of me, too.”

“You’re not Snowdon the engineer: the Panama Canal man, the Chinese railway builder, are you?”

“I had a hand in those enterprises,” was the answer, and with a slight bow the gentleman went his way.

The spot where the two men had stood talking was far enough aft to look down on the space one deck lower and one degree farther astern, where, as through a well space, showed the meaner life of the steerage. There was a light third-class list on this voyage, and when Spurrier moved out of the obscurity which had been thrown over him by the life boat’s shadow, he stood gazing idly down on an empty prospect. He gazed with an interest too moodily self-centered for easy inciting.

He himself stood now clear shown under the frosted globe of an overhead light and, after a little, roused to a tepid curiosity, he fancied he could make out what seemed to be a human figure that clung to the blackest of the shadows below him.

He even fancied that in that lower darkness he caught the momentary dull glint of metal reflecting some half light, and an impression of furtive movement struck in upon him. But after a moment’s scrutiny, which failed to clarify the picture, he decided that his imagination had invented the vague shape out of nothing more tangible than shadow. If there had been a man there he seemed to have dissolved now.

So Spurrier turned away.

Had his eyes possessed a nearer kinship to those of the cat, which can read the dark, he would have altered his course of action from that instant forward. He would, first, have gone to the captain and demanded permission to search the steerage for an ex-private of the infantry company that had lately been his own; a private against whose name on the muster roll stood the entry: “Dead or deserted.”

Yet when he turned on his heel and passed from the lighted area he unconsciously walked out of range of a revolver aimed at his breast—thereby temporarily settling for the man who fingered the trigger his question, “to shoot or not to shoot.”

For Private Grant, a fleeing deserter, convalescent from fever and lunacy, had been casting up the chances of his own life just then and debating the

dangers and advantages of letting Spurrier live. Recognizing his former officer as he himself looked out of his hiding, his first impulse had been one of panic terror and in Spurrier he had seen a pursuer.

The finger had twitched nervously on the trigger—then while he wavered in decision the other had calmly walked out of range. Now, if he kept out of sight until they reached Frisco, the deserter told himself, a larger territory would spread itself for his escape than the confines of a steamer, and he belonged to a race that can bide its time.

CHAPTER IV

Spurrier entered the smoke room and stood for a moment in its threshold.

There were uniforms there, and some men in them whom he had known, though now these other-time acquaintances avoided his eye and the necessity of an embarrassment which must have come from meeting it.

But from an alcove seat near the door rose a stocky gentleman, well groomed and indubitably distinguished of guise, who had been tearing the covering from a bridge deck.

“Spurrier, my boy,” he exclaimed cordially, “I’m glad to see you. I read your name on the list. Won’t you join us?”

This was the man who had rolled away the mountains of official inertia and saved him from prison; who had stipulated with his daughter that she should not write to him in his cell; and who now embraced the first opportunity to greet him publicly with cordial words. Here, reflected the cashiered soldier, was poise more calculated than his own, and he smiled as he shook his head, giving the answer which he knew to be expected of him.

“No, thank you, senator.” Then he added a request: “But if these gentlemen can spare you for a few minutes I would appreciate a word with you.”

“Certainly, my boy.” With a glance about the little company which made his excuses, Beverly rose and linked his arm through Spurrier’s, but when they stood alone on deck that graciousness stiffened immediately into manner more austere.

“I’ve seen Augusta,” began the younger man briefly, “and told her I wouldn’t seek to hold her to her promise. I suppose that meets with your approval?”

The public man, whom rumor credited with presidential aspirations, nodded. “Under the circumstances it is necessary. I may as well be candid. I tried vainly to persuade her to throw you over entirely, but I had to end in a

compromise. She agreed not to communicate with you in any manner until your trial came to its conclusion.”

The cashiered officer felt his temples hammering with the surge of indignant blood to his forehead. This man who had so studiedly and successfully feigned genuine pleasure at seeing him, when other eyes were looking on, was telling him now with salamander coolness that he had urged upon his daughter the policy of callous desertion. The impulse toward resentful retort was almost overpowering, but with it came the galling recognition that, except for Beverly’s bull-dog pertinacity, Spurrier himself would have been a life-termer, and that now humility became him better than anger.

“Did you seek to have Augusta throw me over, without even a farewell—because you believed me guilty, sir?” His inquiry came quietly and the older man shook a noncommittal head.

“It’s not so much what I think as what the world will think,” he made even response. “To put it in the kindest words, Spurrier, you rest under a cloud.”

“Senator,” said the other in measured syllables, “I rest, also, under a great weight of obligation to you, but, there were times, sir, when for a note from her I’d willingly have accepted the death penalty.”

“I won’t pretend that I fail to understand—even to sympathize with you,” came the answer. “You must see none the less that I had no alternative. Augusta’s husband must be—well, like Cæsar’s wife.”

“There is nothing more to be said, I think,” admitted Spurrier, and the senator held out his hand.

“In every other matter, I feel only as your friend. It will be better if to other eyes our relations remain cordial. Otherwise my efforts on your behalf would give the busy-bodies food for gossip. That’s what we are both seeking to avoid.”

Spurrier bowed and watched the well-groomed figure disappear.

The cloudless days and the brilliant nights of low-hung stars and phosphor waters were times of memorable opportunity and paradise for other lovers on that steamer. For Spurrier they were purgatorial and when he realized Augusta Beverly’s clearly indicated wish that he should leave her free from

the embarrassment of any tete-a-tete, he knew definitely that her silence was as final as words could have made it. The familiar panama hat seen at intervals and the curve of the cheek that he had once been privileged to kiss seemed now to belong to an orbit of life remote from his own with an utterness of distance no less actual because intangible.

The young soldier's nature, which had been prodigally generous, began to harden into a new and unlovely bitterness. Once he passed her as she leaned on the rail with a young lieutenant who was going to the States on his first leave from Island duty, and when the girl met his eyes and nodded, the cub of an officer looked up—and cut him dead with needless ostentation.

For the old general, who had pretended not to see him, Jack Spurrier had felt only the sympathy due to a man bound and embarrassed by a severe code of etiquette, but with this cocksure young martinet, his hands itched for chastisement.

Throughout the trying voyage Spurrier felt that Snowdon, the engineer, was holding him under an interested sort of observation, and this surveillance he mildly resented, though the entire politeness of the other left him helpless to make his feeling outspoken. But when they had stood off from Honolulu and brought near to completion the last leg of the Pacific voyage, Snowdon invited him into his own stateroom and with candid directness spoke his mind.

“Spurrier,” he began, “I’d like to have a straight talk with you if you will accept my assurance of the most friendly motive.”

Spurrier was not immediately receptive. He sat eying the other for a little while with a slight frown between his eyes, but in the end he nodded.

“I should dislike to seem churlish,” he answered slowly. “But I’ve had my nerves rubbed raw of late, and they haven’t yet grown callous.”

“You see, it’s rather in my line,” suggested Snowdon by way of preface, “to assay the minerals of character in men and to gauge the percentage of pay-dirt that lies in the lodes of their natures. So I’ve watched you, and if you care to have the results of my superficial research, I’m ready to report. No man knows himself until introduced to himself by another, because one can’t see one’s self at sufficient distance to gain perspective.”

Spurrier smiled. "So you're like the announcer at a boxing match," he suggested. "You're ready to say, 'Plunger Spurrier, shake hands with Jack Spurrier—both members of this club.'"

"Precisely," assented Snowden as naturally as though there had been no element of facetiousness in the suggestion. "And now in the first place, what do you mean to do with yourself?"

"I have no idea."

"I suppose you have thought of the possibilities open to a West Point man—as a soldier of fortune?"

"Yes," the answer was unenthusiastic. "Thought of them and discarded them."

"Why?"

The voice laughed and then spoke contemptuously.

"A man's sword belongs to his flag. It can no more be honorably hired out than a woman's love. I can see in either only a form of prostitution."

"Good!" exclaimed Snowden heartily. "I couldn't have coached you to a better answer. Are you financially independent?"

"On the contrary, I have nothing. Until now there was my pay and——" He paused there but went on again with a dogged self-forcing. "I might as well confess that the gaming table has always left a balance on my side of the ledger."

"I haven't seen you playing since you came aboard."

"No. I've cut that out——"

"Good again—and that brings us to where I stop eliciting information about yourself and begin giving it. I had heard of your gambling exploits before I saw you. I found that you had that cold quality of nerve which a few gamblers have, fewer than are credited with it, by far! Incidentally, it's precisely the same quality that makes notable generals—and adroit diplomats—if they have the other qualities to support it. It's sublimated self-control and boldness. You were using it badly, but it was because you were seeking an outlet through the wrong channels. So I studied you, quite impersonally. Your situation on board wasn't easy or enviable. You knew

that eyes followed you and tongues wagged about you with a morbid interest. You saw chatting groups fall abruptly silent when you approached them and officers you had once fraternized with look hurriedly elsewhere. In short, my young friend, you have faced an acid test of ordeal, and you have borne yourself with neither the defiance of braggadocio, nor the visible hint of flinching. If I were looking for a certain type of specialized ability, I should say you had qualified.”

A flush spread on the face of the listener.

“You are indeed introducing me to some one I haven’t known,” he said.

“I know, too,” went on Snowden, “that there has been a girl—and,” he hastened to add as his companion stiffened, “I mention her only to show you that my observations have not been *too* superficial. Those qualities which I have catalogued have engaged my attention, because they are rare—rare enough to be profitably capitalized.”

“All this is parable to me, sir.”

“Quite probably. I mean to construe it. There are men who originate⁴² or discover great opportunities of industry—and they need capital to bring their plans to fruition—but capital can be approached only through envoys and will receive only ambassadors who can compel recognition. The man who can hope to be successfully accredited to the court of Big Money must possess uncommon attributes. Pinch-beck promoters and plausible charlatans have made cynics of our lords of wealth.”

“What would such a man accomplish,” inquired Spurrier, “aside from a sort of non-resident membership in the association of plutocrats?”

“He would,” declared Snowden promptly, “help bridge the chasm between the world’s unfinanced achievers, and its unachieving finances.”

“That,” conceded the ex-soldier, “would be worth the doing.”

“John Law at twenty-one built a scheme of finance for Great Britain,” the engineer reminded him. “He could come into the presence of a king and in five minutes the king would urge him to stay. Force and presence can make such an ambassador, and those things are the veins of human ore I’ve assayed in you in paying quantities.”

Spurrier looked across at the strange companion whom chance had thrown across his path with a commotion of pulses which his face in no wise mirrored into outward expression. It had begun to occur to him that if a man is born for an adventurous life even the Articles of War cannot cancel his destiny.

“It would seem,” he suggested casually enough, “that this need of which you speak is for fellows, in finance, who can carry the message to Garcia, as it were. Isn’t that it?”

“That’s it, and messengers to Garcia don’t tramp on each other’s heels. Yet I have spoken of only one phase of the career I’m outlining. It has another side to it as well, if one man is going to unite in himself the whole of the possibility.”

Snowdon broke off there a moment and seemed to be distracted by some thought of his own, but presently he began again.

“My hypothetical man would act largely as a free lance, knocking about the world on a sort of constantly renewed exploration. He would be the prospector hunting gold and the explorer searching for new continents of industrial development, only instead of being just the one or the other he would be a sort of sublimation. His job would sometimes call him into the wildernesses, but more often, I think, his discoveries would lie under the noses of crowds, passed by every day by clever folk who never saw them—clever folk who are not quite clever enough.”

“It would seem to me that those discoveries,” demurred Spurrier thoughtfully, “would come each time to some highly trained technician in some particular line.”

Snowdon shook his head again. “That’s why they have come slowly heretofore,” he declared with conviction. “That man I have in mind is one with a sure nose for the trail and a power of absorbing readily and rapidly what he requires of the other man’s technical knowledge. It’s the policy that Japan has followed as a nation. They let others work the problems out over there—then they appropriate the results. I’m not commending it as a national trait, but for this work it’s the first essential. Having made his discovery, this new type of business man will enlist for it the needful

financial support.” He paused again and Spurrier, lighting a fresh cigarette, regarded him through eyes slit-narrowed against the flare of the match.

“He must be a sort of opportunity hound,” continued Snowden smilingly. “He would go baying across the world in full cry and come back to the kennel at the end of each chase.”

Spurrier laughed. “If you’ll pardon me, sir,” he hazarded, “you make a very bad metaphor. I should fancy that the opportunity hound would do the stillest sort of still hunting.”

The older man smiled and bowed his head affirmatively.

“I accept the amendment. The point is, do I give you the concept of the work?”

“In a broad, extremely sketchy way, I think I get the picture,” replied Spurrier. “But could you give me some sort of illustration that would make it a shade more concrete?”

His companion sat considering the question for a while and at last inquired: “Do you know anything about oil? I mean about its production?”

“I’ve been on the Pennsylvania Railroad, coming west,” testified the former lieutenant. “And I’ve run through ragged hills where on every side, stood clumsy, timber affairs like overgrown windmills from which some victorious Don Quizote had knocked off the whirligigs. Then I’ve read a little of Ida Tarbell.”

“Even that will serve for a sort of background. Now, people in general think of striking oil as they might think of finding money on the sidewalk or of lightning striking a particular spire—as a matter of purest chance. To some extent that idea is correct enough, but the brains of oil production are less haphazard. In the office of a few gentlemen who hold dominion over oil and gas hangs a map drawn by the intelligence department of their general staff. On that map are traced lines not unlike those showing ocean currents, but their arrows point instead to currents far under ground, where runs the crude petroleum, discovered—and undiscovered.”

“Undiscovered?” Spurrier’s brows were lifted in polite incredulity, but his companion nodded decisively.

“Discovered and undiscovered,” he repeated. “Geological surveys told the mapmakers how certain lines and structures ran in tendency. Where went a particular formation of Nature’s masonry, there in probability would go oil. The method was not absolute, I grant you, but neither was it haphazard. Sitting in an office in Pittsburgh a certain man drew on his chart what has since been recognized as the line of the forty-second degree, running definitely from the Pennsylvania fields down through Ohio and into the Appalachian hills of Kentucky—thence west and south. Study your fields in Oklahoma, in old Mexico, and you will find that, widely separated as they are, each of them is marked by a cross on that map, and that each of them lies along the current trend which the Pittsburgh man traced before many of them were touched by a drill.”

“That, surely,” argued Spurrier, “testifies for the highly skilled technician, doesn’t it?”

“So far. I now come to the chance of the opportunity hound. The present fields are spots of production here and there. Between them lie others, virgin to pump or rig. Much of that ground is, of course, barren territory, for even on an acre of proven location dry holes may lie close to gushers; one man’s farm may be a ‘duster’ while his neighbor’s spouts black wealth. But along that charted line run the probabilities.”

Into Spurrier’s eyes stole the gleam of the adventuring spirit that was strong in him.

“It sounds like Robert Louis Stevenson and buried treasure,” he declared with unconcealed enthusiasm, but Snowdon only smiled.

“Remember,” he cautioned, “I’m illustrating—nothing more. Now in the foothills of the Kentucky Cumberlands, for example, some years ago men began finding oil. It lay for the most part in a country where the roads were creek beds—remote from railway facilities. It was an expensive sort of proposition to develop, but the cry of ‘Oil! Oil!’ has never failed to set the pack a-running, and it ran.”

“I don’t remember hearing of that rush,” admitted Spurrier.

“No, I dare say you didn’t. It was a flare-up and a die-down. The men who rushed in, plodded dejectedly out again, poorer by the time they had spent.”

“Then the boom collapsed?”

“It collapsed—but why? Because the gentlemen who hold dominion over oil and gas caucussed and so ordained. They gathered around their map and stuck pins here and there. They said, ‘This oil can come out in two ways only: by pipe line or tank cars. We will stand aloof and develop where the cost is less and the profit greater—and without us, it cannot succeed.’”

“Were there no independent concerns to bring the stuff to market?”

Snowdon laughed. “The gentlemen who hold dominion have their own defenses against competition. You may have heard of a certain dog in the manger? Well, they said as they sat about their table on which the map was spread, ‘Some day other fields may run out. Some day something may set oil soaring until even this yield may be well worth our attention. We will therefore hold this card in reserve against that day and that contingency.’ So quietly, inconspicuously, yet with a power that strangled competition, lobbies operated in State legislatures. The independents failed to secure needful charters—the lines were never laid. Those particular fields starved, and now the ignorant mountaineers who woke for a while to dreams of wealth, laugh at the man who says ‘oil’ to them. Yet at some properly, or improperly designated day, those failure fields will flash on the astonished world as something risen from the dead, and fortunes will blossom for the lucky.”

“Yes?” prompted the listener.

“Now let us suppose our opportunity hound as willing to go unostentatiously into that country; as willing to spend part of each year there for a term of years; nipping options here and there, waiting patiently and watching his chance to slip a charter through one of those bound and gagged legislatures in some moment of relaxed vigilance. Such a man might find himself ultimately standing with the key to the situation in his own hand. It’s just a story, but perhaps it serves to give you my meaning.”

“Did I understand you to suggest,” inquired Spurrier with a forced calmness, “that you fancy you see in me the qualities of your opportunity hound?”

“Our own concern,” said Snowdon quietly, “is fortunate enough to have passed through the period of cooling its heels in the anterooms of capital,

but we can still use a man such as I have described. There's a place for you with us if you want it."

"When do I go to work?" demanded the former lieutenant rising from his seat, and Snowdon countered:

"When will you be ready to begin?"

"When we dock at 'Frisco," came the immediate response, "provided I be allowed time for an affair of my own, two months from now. A certain private in my old company will be discharged from the service then. I fancy he'll land there, and I want to be waiting for him when he steps ashore."

"A reprisal?" inquired Snowdon in a disappointed tone, but the other shook his head.

"He is the one man through whom there's a chance of clearing my name," Spurrier said slowly. "I hope it won't call for violence."

CHAPTER V

Private Grant had been bred of the blood of hatred and suckled in vindictiveness. He had come into being out of the heritage of feud fighting "foreparents," and he thought in the terms of his ancestry.

When he had fled into the jungle beyond the island village, though he had been demented and enfeebled, the instinct of a race that had often "hidden out" guided him. That instinct and chance had led him to a native house where his disloyalty gave him a welcome, and there he had found sanctuary until his fever subsided and he emerged cadaverous, but free. Word had filtered through to him there of Spurrier's court-martial and its result.

In the course of time, fever-wasted yet restored out of his semi-lunacy, he had made his way furtively but successfully toward Manila and there he had supplemented the sketchy fragments of information with which his disloyal native friends had been able to provide him.

He knew now that the accused officer had pitched his defense upon an accusation of the deserter and the refugee's eyes smoldered as he learned that he himself had been charged with prefacing his flight with murder. He knew what that meant. The disgraced officer would move heaven and earth to clear his smirched name, and the condition precedent would be the capture of Private Grant and the placing of him in the prisoner's dock. To be wanted for desertion was grave enough. To be wanted both for desertion and the assassination of his company commander was infinitely worse, and to stand in that position and face, as he believed he would have to, a conspiracy of class feeling, was intolerable.

Haunting the shadowy places about Manila, Grant had been almost crazed by his fears but with the lifting of the steamer's anchor, a great spirit of hope had brightened in him, feeding on the solace of the thought that, once more in the States, he could lose himself from pursuit and vigilance.

Then he had seen, on the same ship, the face of the man whom, above all others, he had occasion to fear!

For their joint lives the world was not large enough. One of them must die, and in the passion that swept over him with the dread of discovery. Grant had skirted a relapse into his recent mania.

At that moment when Spurrier had looked down and he had looked up, the deserter had seen only one way out, and that was to kill. But when the other had moved away, seemingly without recognition, his thoughts had moved more lucidly again.

Until he had tried soldiering he had known only the isolated life of forested mountains and here on a ship at sea he felt surrounded and helpless—almost timid. When he landed at San Francisco, if his luck held him undiscovered that long, he would have dry land under him and space into which to flee.

The refugee had hated Comyn. Now Comyn was dead and Grant transferred his hatred from the dead captain to the living lieutenant, resolving that he also must die.

The moment to which he looked forward with the most harrowing apprehension was that when the vessel docked and put her passengers ashore. Here at sea a comforting isolation lay between first and third cabin passengers and one could remain unseen from those deck levels that lay forward and above. But with the arrangements for disembarkation, he was unfamiliar, and for all he knew, the steerage people might be herded along under the eyes of those who traveled more luxuriously. He might have to march in such a procession, willy-nilly, over a gang-plank swept by a watchful eye.

So Private Grant brooded deeply and his thoughts were not pretty. Also he kept his pistol near him and when the hour for debarkation arrived he was ripe for trouble.

It happened that a group of steerage passengers, including himself, were gathered together much as he had feared they might be, and Grant's face paled and hardened as he saw, leaning with his elbows on a rail above him and a pipe in his mouth, the officer whom he dreaded.

Grant's hand slipped unobtrusively under his coat and his eyes narrowed as his heart tightened and became resolved.

Spurrier had not yet seen him but at any moment he might do so. There was nothing to prevent the wandering and casual glance from alighting on the spot where the deserter stood, and when it did so the mountaineer would draw and fire.

But as the ex-officer's eyes went absently here and there a girl passed at his back and perhaps she spoke as she passed. At all events the officer straightened and stiffened. Across his face flashed swiftly such an expression as might have come from a sudden and stinging blow, and then, losing all interest in the bustle of the lower decks, the man turned on his heel and walked rapidly away.

The deserter's hand stole away from the pistol grip and his breath ran out in a long, sibilant gasp of relief and reaction. When later he had landed safely and unmolested, he turned in flight toward the mountains that he knew over there across the continent—mountains where only bloodhounds could run him to earth.

Beyond the rims of those forest-tangled peaks he had never looked out until he had joined the army, and once back in them, though he dare not go, for a while, to his own home county, he could shake off his palsy of fear.

He traveled as a hobo, moneyless, ignorant, and unprepossessing of appearance, yet before the leaves began to fall he was at last tramping slopes where the air tasted sweeter to his nostrils, and the speech of mankind fell on his ear with the music of the accustomed.

The name of Bud Grant no longer went with him. That, since it carried certain unfulfilled duties to an oath of allegiance, he generously ceded to the United States Army, and contented himself with the random substitute of Sim Colby.

Now he tramped swingingly along a boulder-broken creek bed which by local euphemism was called a road. When his way led him over the backbone of a ridge he could see, almost merged with the blue of the horizon, the smoky purple of a sugar loaf peak, which marked his objective.

When he passed that he would be in territory where his journeying might end. To reach it he must transverse the present vicinity in which a collateral branch of his large family still dwelt, and where he himself preferred to walk softly, wary of possible recognition.

To the man whose terror had been seen in every casual eye that rested on him while he crossed a continent, a gleam of accusation, it was as though he had reached sanctuary. The shoulders that he had forced into a hang-dog slouch to disguise the soldierly bearing which had become habitual in uniform, came back into a more buoyant and upright swing. The face that had been sullen with fear now looked out with something of the bravado of earlier days, and the whole experience of the immediate past; of months and even years, took on the unreality of a nightmare from which he was waking.

The utmost of caution was still required, but the long flight was reaching a goal where substantial safety lay like a land of promise. It was a land of promise broken with ragged ranges and it was fiercely austere; the Cumberland mountains reared themselves like a colossal and inhospitable wall of isolation between the abundant richness of lowland Kentucky to the west, and Virginia's slope seaward to the east.

But isolation spelled refuge and the taciturn silences of the men who dwelt there, asking few questions and answering fewer, gave promise of unmolested days.

These hills were a world in themselves; a world that had stood, marking time for a hundred and fifty years, while to east and west life had changed and developed and marched with the march of the years. Sequestered by broken steepes of granite and sand stone, the human life that had come to the coves and valleys in days when the pioneers pushed westward, had stagnated and remained unaltered.

Illiteracy and ignorance had sprung chokingly into weed-like prevalence. The blood-feud still survived among men who fiercely insisted upon being laws unto themselves. Speech fell in quaint uncouthness that belonged to another century, and the tides of progress that had risen on either hand, left untouched and uninfluenced the men and women of mountain blood, who called their lowland brethren "furriners" and who distrusted all that was "new-fangled" or "fotched-on."

Habitations were widely separated cabins. Roads were creekbeds. Life was meager and stern, and in the labyrinths of honeycombed and forest-tangled wilds, men who were "hidin' out" from sheriffs, from revenueurs, from personal enemies, had a sentimental claim on the sympathy of the native-born.

This was the life from which the deserter had sprung. It was the life to which with eager impatience he was returning; a life of countless hiding places and of no undue disposition to goad a man with questioning.

Through the billowing richness of the Bluegrass lowlands, he had hurried with a homing throb in his pulses. As the foothills began to break out of the fallow meadows and the brush to tangle at the fringe of the smoothness, his breath had come deeper and more satisfying. When the foothills rose in steepness until low, wet streamers of cloud trailed their slopes like shrapnel smoke, and the timber thickened and he saw an eagle on the wing, something like song broke into being in his heart.

He was home. Home in the wild mountains where air and the water had zest and life instead of the staleness that had made him sick in the flat world from which he came. He was home in the mountains where others were like him and he was not a barbarian any longer among contemptuous strangers.

He plodded along the shale-bottomed water course for a little way and halted. As his woodsman's eye took bearings he muttered to himself: "Hit's a right slavish way through them la'rel hills, but hit's a cut-off," and, suiting his course to his decision, he turned upward into the thickets and began to climb.

An hour later he had covered the "hitherside" and "yon side" of a small mountain, and when he came to the highway again he found himself confronted by a half dozen armed horsemen whose appearance gave him apprehensive pause, because at once he recognized in them the officialdom of the law. The mounted travelers drew rein, and he halted at the roadside, nodding his greeting in affected unconcern.

The man who had been riding at the fore held in his left hand the halter line of a led horse, and now he looked down at the pedestrian and spoke in the familiar phrase of wayside amenity.

"Howdy, stranger, what mout yore name be?"

"Sim Colby from acrost Hemlock Mountain ways, but I've done been west fer a year gone by, though, an' I'm jest broguein' along to'rds home."

The questioner, a long, gaunt man with a face that had been scarred, but never altered out of its obstinate set, eyed him for a moment, then shot out the question:

“Did ye ever hear tell of Sam Mosebury over thet-away?”

It was lucky that the fugitive had given as his home a territory with which he had some familiarity. Now his reply came promptly.

“Yes, I knows him when I sees him. Some folks used ter give him a right hard name over thar, but I reckon he’s all right ef a man don’t aim ter crowd him too fur.”

“I don’t know how fur he mout of been crowded,” brusquely replied the man with the extra horse, “but he kilt a man in Rattletown yestiddy noon an’ tuck ter ther woods. I’m after him.”

The foot traveler expressed an appropriate interest, then added:

“Howsomever, hit ain’t none of my affair, an’ seein’ thet I’ve got a right far journey ahead of me, I’ll hike along.”

But the leader of the mounted group shook his head.

“One of my men got horse flung back thar an’ broke a bone inside him. I’m ther high sheriff of this hyar county, an’ I hereby summons ye ter go along with me an’ ack as a member of my possey.”

Under his tan Private Grant paled a little. This mischance carried a triple menace to his safety. It involved riding back to the county seat where some man might remember his face, and recall that two years ago he had gone away on a three years’ enlistment. But even if he escaped that contingency, it meant tarrying in this neighborhood through which he had meant to pass inconspicuously and rapidly. To be attached to a *posse comitatus* riding the hills on a man hunt meant to challenge every passing eye with an interest beyond the casual.

Finally, though he might well have forgotten him, the man whose trail he was now called to take in pursuit had once known him slightly, and if they met under such hostile auspices, might recognize and denounce him.

But the sheriff sat enthroned in his saddle and robed in the color of authority. At his back sat five other men with rifles across their pommels, and with such a situation there was no argument. The law’s officer threw the bridle rein of the empty-saddled mount to the man in the road.

“Get up on this critter,” he commanded tersely, “and don’t let him git his head down too low. He follers buck-jumpin’.”

When Grant, alias Colby, found that the men riding with him were more disposed to somber silence than to inquisitiveness or loquacity, he breathed easier. He even made a shrewd guess that there were others in that small group who answered the call of the law as reluctantly as he.

Sam Mosebury was accounted as dangerous as a rattlesnake, and Bud doubted whether even the high sheriff himself would make more than a perfunctory effort to come to grips with him in his present desperation.

When the posse had ridden several hours, and had come to a spot in the forest where the trail forked diversely, a halt was called. They had traveled steep ways and floundered through many belly-deep fords. Dust lay gray upon them and spattered mud overlaid the dust.

“We’ve done come ter a pass, now,” declared the sheriff, “where hit ain’t goin’ ter profit us no longer ter go trailin’ in one bunch. We hev need ter split up an’ turkey tail out along different routes.”

The sun had long crossed the meridian and dyed the steep horizon with burning orange and violet when Bud Grant and Mose Biggerstaff, with whom he had been paired off, drew rein to let their horses blow in a gorge between beetling walls of cliff.

“Me, I ain’t got no master relish for this task, no-how,” declared Mose morosely as he spat at the black loam of rotting leaves. “No man ain’t jedgmatically proved ter me, yit, thet ther feller Sam kilt didn’t need killin’.”

Bud nodded a solemn concurrence in the sentiment. Then abruptly the two of them started as though at the intrusion of a ghost and, of instinct, their hands swept holsterward, but stopped halfway.

This sudden galvanizing of their apathy into life was effected by the sight of a figure which had materialized without warning and in uncanny silence in a fissure where the rocks dripped from reeking moss on either side.

It stood with a cocked repeating rifle held easily at the ready, and it was a figure that required no heralding of its identity or menace.

“Were ye lookin’ fer me, boys?” drawled Sam Mosebury with a palpable enjoyment of the situation, not unlike that which brightens the eyes of a cat as it plays with a mouse already crippled.

With swift apprehension the eyes of the two deputies met and effected an understanding. Mose Biggerstaff licked his bearded lips until their stiffness relaxed enough for speech.

“Me an’ Sim Colby hyar,” he protested, “got summoned by ther high sheriff. We didn’t hev no rather erbout hit one way ner t’other. All we’ve got ter go on air ther *deescription* thet war give ter us—an’ we don’t see no resemblance atween ye an’ ther feller we’re atter.”

The murderer stood eying them with an amused contempt, and one could recognize the qualities of dominance which, despite his infamies, had won him both fear and admiration.

“Ef ye thinks ye’d ought ter take me along an’ show me ter yore high sheriff,” he suggested, and the finger toyed with the trigger, “I’m right hyar.”

“Afore God, no!” It was Bud who spoke now contradicting his colleague. “I’ve seed Sam Mosebury often times—an’ ye don’t no fashion faver him.”

Sam laughed. “I’ve seed ye afore, too, I reckon,” he commented dryly. “But ef ye don’t know me, I reckon I don’t need ter know *you*, nuther.”

The two sat atremble in their saddles until the apparition had disappeared in the laurel.

Gray-templed and seamed of face, Dyke Cappeze entered the courthouse at Carnettsville one day a few months later and paused for a moment, his battered law books under his threadbare elbow, to gaze around the murky hall of which his memory needed no refreshing.

About the stained walls hung fly-specked notices of sheriff’s sales, and between them stamped long-haired, lean-visaged men drawn in by litigation or jury service from branchwater and remote valley.

Out where the sun lay mellow on the town square was the brick pavement, on which Cappeze’s law partner had fallen dead ten years ago, because he dared to prosecute too vigorously. Across the way stood the general store

upon which one could still see the pock-marking of bullets reminiscent of that day when the Heatons and the Blacks made war, and terrorized the county seat.

Dyke Cappeze looked over it all with a deep melancholy in his eyes. He knew his mountains and loved his people whose virtues were more numerous, if less conspicuous, than their sins. In his heart burned a militant insurgency. These hills cried out for development, and development demanded a conception of law broader gauged and more serious than obtained. It needed fearless courts, unterrified juries, intrepid lawyers.

He had been such a lawyer, and when he had applied for life insurance he had been adjudged a prohibitive risk. To-day the career of three decades was to end, and as the bell in the teetering cupola began to clang its summons he shook his head—and pressed tight the straight lips that slashed his rugged face.

On the bench sat the circuit-riding judge of that district; a man to whom, save when he addressed him as “your honor,” Dyke Cappeze had not spoken in three years. They were implacable enemies, because too often the lawyer had complained that justice waited here on expediency.

Cappeze looked at the windows bleared with their residue of dust and out through them at the hills mantling to an autumnal glory. Then he heard that suave—to himself he said hypocritical—voice from the bench.

“Gentlemen of the bar, any motions?”

Wearily the thin, tall-framed lawyer came to his feet and stood erect and silent for a moment in his long, black coat, corroding into the green of dilapidation.

“May it please your honor,” he grimly declared. “I hardly know whether my statement may be properly called a motion or not. It’s more a valedictory.”

He drew from his breast pocket a bit of coarse, lined writing paper and waved it in his talon-like hand.

“I was retained by the widow Sales, whose husband was shot down by Sam Mosebury, to assist the prosecution in bringing the assassin to punishment. The grand jury has failed to indict this defendant. The sheriff has failed to arrest him. The court has failed to produce those witnesses whom I have

subpœnaed. The machinery of the law which is created for the sole purpose of protecting the weak against the encroachments of the malevolent has failed.”

He paused, and through the crowded room the shuffling feet fell silent and heads bent excitedly forward. Then Cappeze lifted the paper in his hand and went on:

“I hold here an unsigned letter that threatens me with death if I persist with this prosecution. It came to me two weeks ago, and since receiving it I have redoubled my energy. When this grand jury was impaneled and charged, such a note also reached each of its members. I know not what temper of soul actuates those men who have sworn to perform the duties of grand jurors. I know not whether these threats have affected their deliberations, but I know that they have failed to return a true bill against Sam Mosebury!”

The judge fingering his gavel frowned gravely. “Does counsel mean to charge that the court has proven lax?”

“I mean to say,” declared the lawyer in a voice that suddenly mounted and rung like a trumpeted challenge, “that in these hills of Kentucky the militant spirit of the law seems paralyzed! I mean to say that terrorism towers higher than the people’s safeguards! For a lifetime I have battled here to put the law above the feud—and I have failed. In this courthouse my partner fought for a recognition of justice and at its door he paid the penalty with his life. I wish to make no charges other than to state the facts. I am growing old, and I have lost heart in a vain fight. I wish to withdraw from this case as associate commonwealth counsel, because I can do nothing more than I have done, and that is enough. I wish to state publicly that to-day I shall take down my shingle and withdraw from the practice of law, because law among us seems to me a misnomer and a futile semblance.”

In a dead silence the elderly attorney came to his period and gathered up again under his threadbare elbow his two or three battered books. Turning, he walked down the center aisle toward the door, and as he went his head sagged dejectedly forward on his chest.

He heard the instruction of his enemy on the bench, still suave:

“Mr. Clerk, let the order be entered striking the name of Mr. Cappeze from the record as associate counsel for the commonwealth.”

It was early forenoon when the elderly attorney left the dingy law office which he was closing, and the sunset fires were dying when he swung himself down from the saddle at his own stile in the hills and walked between the bee-gums and bird boxes to his door. But before he reached it the stern pain in his eyes yielded to a brightening thought, and as if responsive to that thought the door swung open and in it stood a slim girl with eyes violet deep, and a beauty so alluring and so wildly natural that her father felt as if youth had met him again, when he had begun to think of all life as musty and decrepit with age.

CHAPTER VI

Except in that narrow circle of American life which follows the doings and interests of the army and navy, the world had forgotten, in the several years since its happening, the court-martial and disgrace of John Spurrier—but Spurrier himself had not been able to forget.

His name had become forcefully identified with other things and, in the employ of Snowdon's company, he had been into those parts of the world which call to a man of energy and constructive ability of major calibre. But the joy of seeing mine fields open to the rush where there had been only desert before: of seeing chasms bridged into roadways had not been enough to banish the brooding which sprung from the old stigma. In remote places he had encountered occasional army men to remind him that he was no longer one of them and, though he was often doing worthier things than they, they were bound by regulations which branded him.

So Spurrier had hardened, not into outward crustiness of admitted chagrin, but with an inner congealing of spirit which made him look on life as a somewhat merciless fight and what he could wrest from life as the booty of conquest.

One day, in Snowdon's office after a more than usually difficult task had reached accomplishment, the chief candidly proclaimed justification for his first estimate of his aide, and Spurrier smiled.

"It's generous of you to speak so, sir," he said slowly, "and I'm glad to leave you with that impression—because with many regrets I *am* leaving you."

The older man raised his brows in surprise.

"I had hoped our association would be permanent," he responded. "I suppose, though, you have an opening to a broader horizon. If so it comes as recognition well earned."

“It’s an offer from Martin Harrison, sir,” came the reply in slowly weighed words. “There are objections, of course, but the man who gains Harrison’s confidence stands in the temple of big money.”

“Yes. Of course Harrison’s name needs no amplification.” The man who had opened a door for Spurrier in what had seemed a blank wall, sat for a moment silent then broke out with more than his customary emphasis of expression. “Objection from me may seem self-interested because I am losing a valuable assistant. But—damn it all, Harrison is a pirate!”

Spurrier’s tanned cheeks flushed a shade darker but he nodded his head. His fine eyes took on that glint of hardness which, in former times, had never marred their engaging candor.

“I’d like to have you understand me, sir. I owe you that much and a great deal more. I know that Harrison and his ilk of big money operators are none too scrupulous—but they have power and opportunity and those are things I must gain.”

“I had supposed,” suggested Snowden deliberately, “that you wanted two things above all else. First to establish your innocence to the world, and secondly, even if you failed in that, to make your name so substantially respected that you could bear—the other.”

“Until recently I had no other thought.” The young man rose and stood with his fine body erect and as full of disciplined strength as that of a Praxiteles athlete. Then he took several restless turns across the floor and halted tensely before his benefactor.

“I have let no grass grow under my feet. You know how I have run down every conceivable clue and how I stand as uncleared as the day the verdict was brought at Manila. I’ve begun to despair of vindication.... I am not by nature a beast of prey.... I prefer fair play and the courtesies of sportsmanlike conflict.”

He paused, then went forward again in a hardening voice: “But in this land of ours there are two aristocracies and only two—and I want to be an aristocrat of sorts.”

“I didn’t realize we had even so much variety as that,” observed Snowden and the younger man continued.

“The real aristocracy is that of gentle blood and ideals. Our little army is its true nucleus and there a man doesn’t have to be rich. I was born to that and reared to it as to a deep religion—but I’ve been cast out, unfrocked, cashiered. I can’t go back. One class is still open to me; the brazen, arrogant circles of wealth into which a double-fisted achiever can bruise his way. I don’t love them. I don’t revere them, but they offer power and I mean to take my place on their tawdry eminence. It’s all that’s left.”

“I’m not preaching humility,” persisted Snowdon quietly. “I started you along the paths of financial combat and I see no fault in your continuing, but may I be candid to the point of bluntness?”

He paused for permission and Spurrier prompted: “Yes, please go on.”

“Then,” finished Snowdon, “since you’ve been with me I’ve watched you grow—and you *have* grown. But I’ve also seen a fine chivalric sense gradually blunting; a generous predisposition hardening out of flexibility into something more implacable, less gracious. It’s a pity—and Martin Harrison won’t soften you.”

For a while Spurrier stood meditatively silent, then he smiled and once more nodded his head.

“There isn’t a thing you’ve said that isn’t true, Mr. Snowdon, and you’re the one man who could say it without any touch of offensiveness. I’ve counted the costs. God knows if I could go back to the army to-morrow with a shriven record, I’d rather have my lieutenant’s pay than all the success that could ever come from moneyed buccaneers! But I can’t do that. I can’t think of myself as a fighting man under my own flag whose largest pay is his contentment and his honor. Very well, I have accepted Hobson’s choice. I will join that group which fights with power, for power; the group that’s strong enough to defy the approval they can’t successfully court. I *have* hardened but I’ve needed to. I hope I shan’t become so flagrant, however, that you’ll have to regret sponsoring me.”

Snowdon laughed.

“I’m not afraid of that,” he made hasty assurance. “And my friendliest wishes go with you.”

Since that day John Spurrier had come to a place of confidence in the counsels over which Harrison presided with despotic authority.

The man in the street, deriving his information from news print, would have accorded Martin Harrison a place on the steering committee of the country's wealth and affairs, and in such a classification he would have been both right and wrong.

There were exclusive coteries of money manipulation to which Harrison was denied an entree. These combinations were few but mighty, and until he won the sesame of admission to their supreme circle his ambition must chafe, unsatisfied: his power, greater than that of many kings, must seem to himself too weak.

It must not be inferred that Harrison was embittered by the wormwood of failure. His trophies of success were numerous and tangible enough for every purpose except his own contentment.

To-night he was smiling with baronial graciousness while he stood welcoming a group of dinner guests in his own house, and as his butler passed the tray of canapes and cocktail glasses the latest arrival presented himself.

The host nodded. "Spurrier," he said, "I think you know every one here, don't you?"

The young man who had just come was perfectly tailored and self-confident of bearing, and as vigorous of bodily strength as a wrestler in training. The time that had passed over him since he had left Snowdon's company for wider and more independent fields had wrought changes in him, and in so far as the observer could estimate values from the externals of life, every development had been upward toward improvement. Yet, between the man's impressive surface and his soul lay an acquired coat of cynicism and a shell of cultivated selfishness.

John Spurrier, who had renounced the gaming table, was more passionately and coldly than ever the plunger, dedicated to the single religion of ambition. He had failed to remove the blot of the court-martial from his name, and, denied the soldier's ethical place, he had become a sort of moss-trooper of finance.

Backed only by his personal qualifications, he had won his way into a circle of active wealth, and though he seemed no more a stranger there than a

duckling in a pool, he himself knew that another simile would more truly describe his status.

He was like an exhibition skater whose eye-filling feats are watched with admiration and bated breath. His evolutions and dizzy pirouettings were performed with an adroit ease and grace, but he could feel the swaying of the thin ice under him and could never forget that only the swift smoothness of his flight stood between himself and disaster.

He must live on a lavish scale or lose step with the fast-moving procession. He must maintain appearances in keeping with his associations—or drop downscale to meaner opportunities and paltrier prizes. The wealth which would establish him firmly seemed always just a shade farther away than the reach of his outstretched grasp.

“We were just talking about Trabue, Spurrier,” his host enlightened him as he looked across the rim of his lifted glass, with eyes hardening at the mention of that name.

Spurrier did not ask what had been said about Trabue, but he guessed that it savored of anathema. For Trabue, whose name rarely appeared in the public announcements of American Oil and Gas, was none the less the white-hot power and genius of that organization—its unheralded chief of staff. Just as A. O. and G. dominated the world of finance, so he dominated A. O. and G.

Harrison laughed. “I’m not a vindictive man,” he declared in humorous self-defense, “but I want his scalp as Salome wanted the head of John the Baptist.”

The newly arrived guest smiled quietly.

“That’s a large order, Mr. Harrison,” he suggested, “and yet it’s in line with a matter I want to take up with you. My conspiracy won’t exactly separate O. H. Trabue from his scalp lock, but it may pull some pet feathers out of his war bonnet. I’m leaving to-morrow on a mission of reconnaissance—and when I come back——”

The eyes of the elder and younger engaged with a quiet interchange of understanding, and Spurrier knew that into Martin’s mind, as crowded with activities as a busy harbor, an idea had fallen which would grow into interest.

When dinner was announced, the adventurer de luxe—for it was so that he recognized himself in the confessional of his own mind—took in the daughter of his host, and this mark of distinction did not escape the notice of several men.

Spurrier himself was gravely listening to some low-voiced aside from the girl who nibbled at an olive, and who merited his attention.

She was tall and undeniably handsome, and if her mentality sparkled with a cool and brilliant light rather than a warm and appealing glow, that was because she had inherited the pattern of her father's mind.

If, notwithstanding her wealth and position, she was still unmarried three seasons after her coming-out, it was her own affair and possibly his good fortune. For when the Jack Spurrier of these days contemplated marriage at all, he thought of it as an aid to his career rather than a sentimental adventure.

"I'm leaving in the morning," he was saying in a low voice, "for the Kentucky Cumberlands, where I'm told life hasn't changed much since the pioneers crossed over their divide. It's the Land of Do-Without."

"The Land of Do-Without?" she repeated after him. "It's an expressive phrase, Jack. Is it your own or should there be quotation marks?"

Spurrier laughed as he admitted: "I claim no credit; I merely quote, but the land down there in the steeps is one, from all I hear, to stir the imagination into terms more or less poetic."

He leaned forward a little and his engaging face mirrored his own interest so that the girl found herself murmuring: "Tell me something about it, then."

"It is," he assured her, "a stretch of unaltered mediævalism entirely surrounded by modernity—yet holding aloof. Though the country has spread to the Pacific and it lies within three hundred miles of Atlantic tidewater, it is still our one frontier where pioneers live under the conditions that obtained in the days of the Indian."

"That seems difficult to grasp," she demurred, and he nodded his head, abstractedly sketching lines on the damask cloth with his oyster fork.

“When the nation was born,” he enlightened, “and the questing spirit of the overland voyagers asserted itself, the bulk of its human tide flowed west along the Wilderness Road. Through Cumberland Gap lay their one discovered gate in the wall that nature had built to the sky across their path. It was a wall more ancient than that of the Alps and between the ridges many of them were stranded.”

“How?” she demanded, arrested by the vibrant interest of his own voice, and he continued with a shrug of the shoulder.

“Many reasons. A pack mule fallen lame—a broken wagon-wheel; small things were enough in such times of hardship to make a family settle where it found itself balked. The more fortunate won through to ‘take the west with the axe and hold it with the rifle.’ Then came railroads and steamboats, going other ways, and the ridges were swallowed again by the wilderness. The stranded brethren remained stranded and they did not alter or progress. They remained self-willed, fiercely independent and dedicated to the creed ‘Leave us alone.’ Their life to-day is the life of two centuries ago.”

The girl lifted the brows that were dark enough to require no penciling.

“That was the speech of a dreamer and a poet, Jack, and I thought you the most practical of men. What calls you into a land of poverty? I didn’t know you ever ran on cold trails.” She spoke with a delicately shaded irony, as though for the materialism of his own viewpoint, yet he knew that her interest in him would survive no failure of worldly attainment.

He did not repeat to her the story told him so long ago by Snowdon, the engineer, nor confide to her that ever since then his mind had harked back insistently to that topic and its possibilities. Now he only smiled with diplomatic suavity.

“Pearls,” he said, “don’t feed oysters into robustness. They make ’em most uncomfortable. The poverty-stricken illiterates in these hills, where I’m going, might starve for centuries over buried treasure—which some one else might find.”

The girl nodded.

“In the stories,” she answered, though she did not seem disturbed at the thought, “the stranger in the Cumberlands always arouses the ire of some

whiskered moonshiner and falls in a creek bed pierced by a shot from the laurel.”

Spurrier grinned.

“Or he falls in love with a barefoot Diana and teaches her to adore him in return.”

Miss Harrison made a satirical little grimace. “At least teach her to eat with a fork, too, Jack,” she begged him. “It will contribute to your fastidious comfort when you come back here to sell your pearls at Tiffany’s or in Maiden Lane, or wherever it is that one wholesales his treasure-trove.”

If John Spurrier had presented the picture of a man to the manner born as he sat with Martin Harrison’s daughter at Martin Harrison’s table, he fitted into the ensemble, too, a week later, as he crossed the hard-tramped dirt of the street from the railway station at Waterfall and entered the shabby tavern over the way—for the opportunity hound must be adaptable.

Here he would leave the end of the rails and travel by mule into a wilder country, for on the geological survey maps that he carried with him he had made tracings of underground currents which it had not been easy to procure.

These red-inkings were exact miniatures of a huge wall chart in the headquarters of American Oil and Gas, and to others than a trusted few they were not readily accessible. How Spurrier had achieved his purpose is a separate story and one over which he smiled inwardly, though it may have involved features that were not nicely ethical.

The tavern had been built in the days when Waterfall had attracted men answering the challenge of oil discovery. Now it had fallen wretchedly into decay, and over it brooded the depression of hopes and dreams long dead. Gladly Spurrier had left that town behind him.

Now, on a crisp afternoon, when the hill slopes were all garbed in the rugged splendor of the autumn’s high color, he was tramping with a shotgun on his elbow and a borrowed dog at his heels. He had crossed Hemlock Mountain and struck into the hinterland at its back.

Until now he had thought of Hemlock Mountain as a single peak, but he had discovered it to be, instead, an unbroken range beginning at Hell’s Door

and ending at Praise the Lord, which zigzagged for a hundred miles and arched its bristling backbone two thousand feet into the sky. Along this entire length it offered only a few passes over which a traveler could cross except on foot or horseback.

He had found entertainment overnight at a clay-chinked log-cabin, where he had shared the single room with six human beings and two dogs. This census takes no account of a razor-back pig which was segregated in a box under the dining table, where its feeding with scraps simplified the problem of stock raising.

His present objective was the house of Dyke Cappeze, the retired lawyer, whose name had drifted into talk at every town in which he had stopped along the railroad.

Cappeze was a “queer fellow,” a recluse who had quit the villages and drawn far back into the hills themselves. He was one who could neither win nor stop fighting; who wanted to change the unalterable, and, having failed, sulked like Achilles in his tent. But whoever spoke of Cappeze credited him with being a positive and unique personality, and Spurrier meant to know him.

So he pretended to hunt quail—in a country where a covey rose and scattered beyond gorges over which neither dog nor man could follow. One excuse served as well as another so long as he seemed sufficiently careless of the things which were really the core and center of his interest. And now Cappeze’s place ought to be near by.

Off to one side of the ragged way stretched a brown patch of stubble, and suddenly the dog stopped at its edge, lifted his muzzle with distended nostrils delicately aquiver, and then went streaking away into the rattling weed stalks, eagerly quartering the bare field.

Spurrier followed, growling skeptically to himself: “He’s made a stand on a rabbit. That dog’s a liar and the truth is not in him!”

But the setter had come to a halt and held motionless, his statuesque pose with one foreleg uplifted as rigid as a piece of bronze save for the black muzzle sensitively alert and tremulous.

Then as the man walked in there came that startling little thunder of whirring wings with which quail break cover.

The ground seemed to burst with a tiny drumming eruption of up-surfing feathery shapes, and Spurrier's gun spoke rapidly from both barrels. Save for the two he had downed, the covey crossed a little rise beyond a thicket of blackberry brier where he marked them by the tips of a few gnarled trees, and the man nodded his head in satisfaction as the dog he had libeled neatly retrieved his dead birds and cast off again toward the hummock's ridge.

Spurrier, following more slowly, lost sight of his setter and, before he had caught up, he heard a whimpering of fright and pain. Puzzled, he hastened forward until from a slight elevation, which commanded a burial ground, choked with a tangle of brambles and twisted fox grapes, he found himself looking on a picture for which he was entirely unprepared.

His dog was crouching and crawling in supplication, while above him, with eyes that snapped lightning jets of fury, stood a slender girl with a hickory switch tightly clenched in a small but merciless hand.

As the gunner came into sight she stood her ground, a little startled but obdurately determined, and her expression appeared to transfer her anger from the animal she had whipped to the master, until he almost wondered whether she might not likewise use the hickory upon him.

He tried not to let the vivid and unexpected beauty of the apparition cloud his just indignation, and his voice was stern with offended dignity as he demanded:

"Would you mind telling me why you're mistreating my dog? He's the gentlest beast I ever knew."

The girl was straight and slim and as colorful as the landscape which the autumn had painted with crimson and violet, but in her eyes flamed a war fire.

"What's that a-bulgin' out yore coat pocket, thar?" she demanded breathlessly. "You an' yore dog air both murderers! Ye've been shootin' into my gang of pet pa'tridges."

"Pet—partridges?" He repeated the words in a mystified manner, as under the compulsion of her gaze he drew out the incriminating bodies of the lifeless victims.

The girl snatched the dead birds from him and laid their soft breasts against her cheek, crooning sorrowfully over them.

“They trusted me ter hold ’em safe,” she declared in a grief-stricken tone. “I’d kept all the gunners from harmin’ ’em—an’ now they’ve done been betrayed—an’ murdered.”

“I’m sorry,” declared Spurrier humbly. “I didn’t know they were pets. They behaved very much like wild birds.”

The dog rose from his cowering position and came over to shelter himself behind Spurrier, who just then heard the underbrush stir at his back and wheeled to find himself facing an elderly man with a ruggedly chiseled face and a mane of gray hair. It was a face that one could not see without feeling a spirit force behind it, and when the man spoke his sonorous voice, too, carried a quality of impressiveness.

“He didn’t have no way of knowin’, Glory,” he said placatingly to the girl. “Bob Whites are mostly wild, you know.” Then turning back to the man again he courteously explained: “She fed this gang through last winter when the snows were heavy. They’d come up to the door yard an’ peck ’round with the chickens. She’s gifted with the knack of gentlin’ wild things.” He paused, then added with a grim touch of irony. “It’s a lesson that it would have profited me to learn—but I never could master it. You’re a furriner hereabouts, ain’t you?”

“My name is John Spurrier,” said the stranger. “I was looking for Dyke Cappeze.”

“I’m Dyke Cappeze,” said the elderly man, “an’ this is my daughter, Glory. Come inside. Yore welcome needs some mendin’, I reckon.”

CHAPTER VII

As John Spurrier followed his host between rhododendron thickets that rose above their heads, he found himself wondering what had become of the girl, but when they drew near to an old house whose stamp of orderly neatness proclaimed its contrast to the scattering hovels of widely separated neighbors, he caught a flash of blue gingham by the open door and realized that the Valkyrie had taken a short cut.

The dog, too, had arrived there ahead of its master and was fawning now on the girl, who leaned impulsively over to take the gentle-pointed muzzle between her palms.

“I’m sorry I whopped ye,” she declared in a silver-voiced contrition that made the man think of thrush notes. “Hit wasn’t *yore* fault no-how. Hit was thet—thet stuck-up furriner. I *hates* him!”

The setter waved its plumed tail in forgiveness and contentment, and the girl, discovering with an upward glance that she had been overheard, rose and stood for a moment defiantly facing the object of her denunciation, then, as embarrassment flooded her cheeks with color, fled into the house.

The sense of having stepped back into an older century had been growing on John Spurrier ever since he had turned away from the town of Waterfall, and now it possessed him with a singular fascination.

Here was a different world, somber under its shadow of frugality, and breathing out the heavy atmosphere of isolation. The spirit of this strange life looked out from the wearied eyes of Dyke Cappeze as he sat filling his pipe across the hearth, a little later, and it sounded in his voice when he announced slowly:

“It’s not for me to withhold hospitality in a land where a ready welcome is about all we have to offer, and yet you could hardly have picked a worse house to come to between the Virginia border and the Kaintuck ridges.”

Spurrier raised his brows interrogatively, and at the same moment he noticed matters hitherto overlooked. The windows were heavily shuttered and his host sat beyond the line of vision from the open door—with a rifle leaning an arm's length away.

“Coming as a stranger,” continued Cappeze, “you start without enmities—with a clean page. You might spend your life here and find a sincere welcome everywhere—so long as you avoided other men's controversies. But you come to me and that, sir, is a bad beginning—a very bad beginning.”

A contemplative cloud of smoke went up from the pipe, and the voice finished in a tone of bitterness.

“I'm the most hated man in this region where hatreds grow like weeds.”

“You mean because you have stood out for the enforcement of law?”

The other nodded, “It has taken me a lifetime,” he observed, “to learn that the mountains are stronger, if not more obstinate, than I.”

“Is that the only reason they hate you?” inquired the visitor, and the lawyer, removing the pipe stem from his teeth, regarded him for a space in silence. Then he commented quietly:

“If you knew this country better, you wouldn't have to ask that question. In Athens, I believe, they ostracized Aristides because he was ‘too just a man.’”

“Nonetheless, I'm glad I came to you.”

Cappeze smiled gravely. He had a rude sort of dignity which Spurrier found beguiling; a politeness that sprang from a deeper rooting than mere formula.

“Merely coming to see me—once in a while—won't damn you, I reckon. A man has a license to be interested in freaks. But take my advice, and I sha'n't be offended. Tell every one that you hold no brief for me and listen with an open mind when they blackguard me.”

Spurrier laughed. “In a place where assassination is said to come cheap, you have at least been able to take care of yourself, sir.”

“That,” said the other slowly, “is as it happens. My partner was less lucky. My own luck may break some day.”

“And yet you go on living here when you’d be safe enough anywhere else.”

“Yes, I go on living here. It’s a land where a man’s mind starves and where the great marching song of the world’s progress is silent—and yet——” Again he paused to draw in and exhale a cloud of pipe smoke. “Yet there’s something in the winds that blow here, in the air one breathes, that ‘is native to my blood.’ Elsewhere I should be miserable, sir, and my daughter _____”

He came to an abrupt stop and Spurrier took him up quickly. “She seems young and vital enough to crave all of life’s variety.”

“But she is contented, sir.” The elderly man spoke eagerly as though to convince himself and quiet troubling doubts. “She, too, would rather be here. We know this life and take it as we find it.”

Spurrier felt that the conversation was tending into channels too personal for the participation of a chance acquaintance, and he guided it to a less intimate subject.

“I understand, Mr. Cappeze, that in the campaign just ended, you stumped this district whole-heartedly in behalf of one of the candidates for the circuit judgeship.”

Again the hawk-keen blaze flared in the eyes of his host.

“You are mistaken, sir,” he declared with heated emphasis. “It was less *for* a candidate than *against* one that I worked. The man whom circumstances compelled me to support was a poor thing, but he was better than his adversary.”

“Was it party spirit that prompted you, then?” inquired the guest, feeling that politeness called for some show of interest.

“Sometimes I think,” said the lawyer with a grim smile, “that from some men God withholds the blessed power of riding life’s waves. All they can do is to buffet and fight and wear themselves out. Perhaps I’m that sort. The man who won—who succeeded himself on the bench—is an expedientist. So long as he presides, timid juries will return timid verdicts and the law will falter. I took the stump to brand him before the people as an apostate to his oath. I knew he would win, but I meant to make him wear his trademark of cowardice along with his smirk of self-righteousness!”

As Spurrier listened, not to a feudist but to a man who had worn himself out fighting feudism, there came to him like a revelation an appreciation of the bitterness which runs in the grim undertow of this blood.

“I believe,” he suggested, glancing sidewise at the door beyond which he heard the thrushlike voice of the girl, “that you made an issue of a murder case which collapsed—a case in which you had been employed to prosecute.”

“Yes,” Cappeze told him. “Because I believe it to be one in which the officers of the court lay down and quit like dogs. The defendant was a red-handed bully, generally feared—and the law was in timid keeping. I am still trying to have the grand jury call before it the prosecutor, the sheriff, and every deputy who served on that posse. I want to make them tell, on oath, just how hard they sought to apprehend the assassin—who still walks boldly and freely among us—unwhipped of justice.”

Spurrier rose, deeply impressed by the headstrong, willful courage of this old insurgent, whose daughter’s eyes were so full of spring gentleness.

Far up the dwindling thread of a small water course, where the forest was jungle-thick, a log cabin hung perched to a rocky cornfield that tilted like a steep roof, and under its shingles Sim Colby dwelt alone. Since his coming here he had been assimilated into the commonplace life of the neighborhood and the question of his origin was no longer discussed. The time had gone by when even an acquaintance of other days would be apt to calculate that his term of enlistment in the army had not run its full course. Moreover, there were no such acquaintances here; none who had known him before he changed his name from Grant to Colby. The shadow of dread which had once obsessed him had gradually and imperceptibly lightened until for weeks together he forgot how poignantly it had once haunted him. He had painstakingly established a reputation exemplary beyond the tendencies of his nature in this new habitat—since trouble might cause closed pages to reopen.

Now on a November afternoon a deputy sheriff, serving summonses in that neighborhood dismounted at the door where Sim stood with his hand resting on the jamb, and the two mulled over what sparse gossip the uneventful neighborhood afforded.

“Old Cappeze, he’s a-seekin’ ter rake up hell afresh an’ brew more pestilence fer everybody,” announced the deputy glumly.

“What’s he projeckin’ at now?” asked Sim.

“He’s seekin’ ter warm over thet ancient Sam Mosebury case afore ther grand jury. Come ter think of hit, Sim, ye rid with ther high sheriff yoreself thet time, didn’t ye?”

Moodily the other nodded. That was a matter he preferred to leave buried.

“Waal, Cappeze is claimin’ now thet ther possey didn’t make no master effort ter lay hands on Sam. He aims ter hev all ye boys tell ther grand jury what ye knows erbout ther matter.”

The deputy turned away, but in afterthought he paused, thrashing idly with his switch at the weed stalks, as he retailed an almost forgotten item of news.

“A furriner come ter town yistidday, an’ sot out straightway acrost Hemlock Mountain fer old Cappeze’s dwellin’ house.”

“What manner of man war he, Joe?” Sim’s interest was perfunctory. Had he been haled into the grand-jury room in those earlier days, the prospect would have bristled with apprehensions, but now he had behind him the background of respectability and Mose Biggerstaff, who alone knew of his craven behavior as a member of the posse, was dead. Sim felt secure in his mantle of virtue.

“He war a right upstandin’ sort of feller—ther furriner,” enlightened the deputy. “He goes under ther name of Spurrier—John Spurrier.”

As though an electric wire of high tension had broken and brushed him in falling, Sim Colby’s attitude stiffened and every muscle grew taut from neck to ankles as his jaw sagged.

The deputy, with his foot already in the stirrup, missed the terror spasms of the face gone suddenly putty gray. He missed the gasp that contracted the throat and caused its breath to wheeze, and when he glanced back again from his saddle, the other had, with an effort of sheer desperation, regained his outward semblance of composure. He still leaned indolently against the door frame, but now he needed its support, because all his nerves jumped and a confusion like the swarming of angry bees filled his brain.

Afterward he groped his way inside and dropped down into a low chair by the hearth. For a long time he sat there breathing stertorously while the untended fire died away to ashen dreariness. The sun went down beyond the pine tops and still he sat dully with his hands hanging over his knees, their fingers twitching in panic aimlessness.

Out of a past that he had cut away from the present had arisen a ghost of hideous menace. Here into the laurel which had promised sanctuary his Nemesis had pursued him.

Two men with the guilt of a murder standing between them had come into a radius too small to contain them both. It was as if they had met on a narrow log spanning a chasm where only one could pass and the other must fall.

If old Cappeze dragged him to the courthouse now, he would be delivered over to Spurrier, waiting there to identify him, as a fox in a trap is delivered to the skinning knife. That must be the meaning of the stranger's visit to the lawyer.

Sim Colby went to an ancient and dilapidated bureau and from a creaking drawer took out a memento which, for some reason, he had preserved from times not treasured in memory. He carried it to the open door and stood looking at it as it lay on the palm of his hand with the light glinting upon it.

It was a sharpshooter's medal, for, whatever his military shortcomings, Private Grant had been an efficient rifleman, and as he looked at it now his lips twisted into a grim smile. Then he took his rifle from its corner and, sitting on the doorstep, polished it with a fond particularity, oiling its mechanism and burnishing its bore.

Already Spurrier had made arrangements to ensconce himself under the roof of a house he had rented. Already the faces that he met in the road were, for the most part, familiar, and without exception they were friendly. Quick on the heels of his first disgust for the squalor of this lapsed and retarded life, had succeeded an exhilaration born of the wine-like sparkle of the air and the majestic breadth of vistas across ridge and valley. As he watched mile-wide shadows creep between sky-high lines of peaks, his dreams borrowed something of their vastness.

Through half-closed lids imagination looked out until the range-broken spaces altered to its vision. Spurrier saw white roads and the glitter of rails running off into gossamer webs of distance. Where now stood virgin forests of hard wood he visualized the shaftings of oil derricks, the red iron sheeting of tanks, the belching stacks of refineries, and in that defaced landscape he read the triumph of conquest; the guerdon of wealth; the satisfaction of power.

One afternoon Spurrier started over to the house he had rented, but into which he had not yet moved. The way lay for a furlong or more through a gorge deeply and somberly shaded. Even now, at midday, the sunlight of the upper places left it cloistered and the boulders trooped along in ferny dampness, where the little waters whispered.

Beside a bulky hummock of green-corroded sandstone the man halted and stood musingly, with eyes downcast and thoughts uplifted—uplifted to the worship of his one god: Ambition. At his feet was an oily sediment along the water's edge and the gravel was thick with "sand blossom"—tiny fossil formations that are prima facie evidence of oil. Then, without warning, he felt a light sting along his cheek and the rock-walled fissure reverberated under what seemed a volley of musketry.

But the magnified and crumbling effect of the echo struck him with a less poignant realization than a slighter sound and a sharper one. As if a taut piano wire had been sharply struck, came the clear whang that he recognized as the flight song of a rifle bullet, and, whatever its origin it called for a prompt taking of cover.

Spurrier side-stepped as quickly as a boxer, and stood, for the moment at least, bulwarked behind the rock that was so providentially close.

“I’m John Spurrier—a stranger in these parts,” he sung out in a confident voice of forced boldness and cheerfulness. “I reckon you’ve made a mistake in your man.”

There was no answer and Spurrier cautiously raised his hat on the end of a stick with the same deliberation that might have marked his action had it been his own head emerging from cover.

Instantly the hidden rifle spoke again and the hat came down pierced through its band, while the rocks once more reverberated to multiplied detonations.

“It would seem,” the man told himself grimly, “that after all there was no mistake.”

He was unarmed and in no position to pursue investigations of the mystery, but by crawling along on his belly he could keep his body shielded behind the litter of broken stone that edged the brook until he reached the end of the gorge itself and came to safer territory.

Slowly, Spurrier traveled out of his precarious position, flattening himself when he paused to rest and listen, as he had made his men flatten themselves over there in the islands when they were going forward without cover under the fire of snipers.

CHAPTER VIII

Spurrier was not frightened, but he was deeply mystified, and when he reached the cabin which he was preparing for occupancy he sat down on the old millstone that served as a doorstep and sought enlightenment from reflection and the companionship of an ancient pipe.

In an hour or two “Uncle Jimmy” Litchfield, under whose smoky roof he was being temporarily sheltered, would arrive with a jolt wagon and yoke of oxen, teaming over the household goods that Spurrier meant to install. Already the new tenant had swept and whitewashed his cabin interior and had let the clear winds rake away the mildew of its long vacancy. Now he sat smoking with a perplexity-drawn brow, while a tuneful sky seemed to laugh mockingly at the absurd idea of riflemen in ambush.

Every neighbor had manifested a spirit of cordiality toward him. To many of them he was indebted for small and voluntary kindnesses, and he had maintained a diplomatic neutrality in all local affairs that bore a controversial aspect.

Certainly, he could not flatter himself that as yet any premonition of danger had percolated to those distant centers of industry against which he was devising a campaign of surprise. One explanation only presented itself with any color of plausibility.

That trickle of water might come to the gorge from a spot back in the laurel where, under the shelter of a felled hemlock top, some one tended a small “blockade” distillery; some one who resented an invasion of his privacy.

Yet even that inference was not satisfactory. Only yesterday a man had offered him moonshine whisky, declaring quite unsuspectingly: “Ef ye’re vouched fer by Uncle Jimmy, I ain’t a’skeered of ye none. I made thet lick myself—drink hearty.”

Of the real truth no ghostly glimmer of suspicion came in even the most shadowy fashion to his mind.

His efforts to trace to definite result some filament of fact that might prove the court-martial to have reached a conclusion at variance with the truth, had all ended in failure. That the matter was hopeless was an admission which he could not afford to make and which he doggedly denied, but with waning confidence.

This state of mind prevented him from suspecting any connection between this present and mysterious enmity and those things which had happened across the Pacific.

He had kept himself informed as to the movements of Private Severance and when that time-expired man had stepped ashore at San Francisco, John Spurrier had been waiting to confront him, even though it involved facing men who had once been brother officers and who could no longer speak to him as an equal.

From the former soldier, who brought a flush to his cheeks by saluting him and calling him "Lieutenant," he had learned nothing. There had been no reason to hope for much. It was unlikely that he would be able to shake into a damaging admission of complicity—and any statement of value must have amounted to that—the witness who had come unscathed out of the cross-examination of two courts-martial.

Indeed Spurrier had expected to encounter unveiled hostility in the attitude of the mountaineer, who had been doing sentry duty at the door through which the prisoner, Grant, had escaped. It might have followed logically upon the officer's defense, which had sought to involve that sentinel as an accomplice in the fugitive's flight, and even in the murder itself.

But Severance had greeted him without rancor and with the disarming guise of candid friendliness.

"I'd be full willin' ter help ye, Lieutenant—ef so be I could," he had protested. "I knows full well yore lawyers was plum obliged ter seek ter hang ther blame wharsoever they was able, an' I ain't harborin' no grudge because I happened ter be one they sought ter hurt. But I don't know nothin' that kin aid ye."

"Do you think Grant escaped alive?" demanded Spurrier, and the other shook his head.

“I feels so plum, dead sartain he died,” came the prompt response, “thet when I gits back home I’m goin’ ter tell his folks he did. Bud Grant was a friend of mine, but when he went out inter thet jungle he was too weakly ter keer fer hisself an’ ef he’d lived they would hev done found him an’ brought him back.”

Spurrier had come to embrace that belief himself. The one man whose admission, wrung from him by persuasion or compulsion, could give him back his clean name, must have perished there in the *bijuca* tangles. The hope of meeting the runaway in life had died in the ex-officer’s heart and consequently it did not now occur to him to think of the deserter as a living menace.

At length he rose and stood against the shadowy background of his door, which was an oblong of darkness behind the golden outer clarity.

Off in the tangle of oak and poplar and pine a ruffed grouse drummed and a “cock of the woods” rapped its tattoo on a sycamore top.

Once he fancied he heard a stirring in the rhododendron where its large waxen leaves banked themselves thickly a hundred yards distant, and his eyes turned that way seeking to pierce the impenetrable screen—but unavailingly. Perhaps some small, wild thing had moved there.

Then, as had happened before that afternoon, the stillness broke to a rifle shot—this time clean and sharp, unclogged by echoes.

Spurrier stood for an instant while a surprised expression showed in his out-staring eyes, then he swayed on his feet. His hands came up and clutched spasmodically at his left breast, and with a sudden collapse he dropped heavily backward, and lay full length, swallowed in the darkness that hung beyond the door.

Over the rhododendron thicket quiet settled drowsily again, but through the toughness of interlaced branches stole upward and outward an acrid powder smell and a barely perceptible trickle of smoke.

Crouched there, his neutral-hued clothing merging into the earth tones about him, a man peered out, but he did not rise to go forward and inspect his work. Instead, he opened the breech block of his piece and with unhurried care blew through the barrel—cleansing it of its vapors.

“I reckon thar ain’t no needcessity to go over thar an’ look at him,” he reflected. “When they draps down *thet*-away, they don’t git up no more—an’ some person from afar mout spy me crossin’ ther dooryard.”

So he edged backward into the tangle, moving like a crawfish and noiselessly took up his homeward journey.

When the slow plodding ox team came at last to the dooryard and Uncle Billy stood shouting outside the house, Sim Colby, holding to tangles where he would meet no chance wayfarer, was already miles away and hurrying to establish his alibi against suspicion, in his own neighborhood—where no one knew he had been absent.

Though it be an evil thing and shameful to confess, ex-private Bud Grant, alias Sim Colby, traveled light-heartedly, roweled by no tortures of conscience, but blithe in the assurance of a ghost laid, and a peril averted.

He would have been both amazed and chagrined had he remained peering from his ambushade, for when Uncle Billy’s shadow fell through the open door the man to whom he had come rose from a chair to meet him, and he presented no mangled or blood-stained breast to the eyes of his visitors.

“Ye ain’t jest a-quippin’ with me, be ye?” demanded the old mountaineer incredulously when he had heard the story in all its detail. “This hyar’s a right serious-soundin’ matter—an’ ye ain’t got no enemies amongst us thet I’ve heered tell of.”

Spurrier pointed out the spot in the newly whitewashed wall where the bullet lay imbedded with its glint of freshly flattened lead.

“After the first experience,” he explained, “I’d had some time to think. I was standing in the door so I fell down—and played dead.” He added after a pause quietly: “I’ve seen men shot to death, and I happened to know how a man drops when it’s a heart hit. I fell inside where I’d be out of sight, because I was unarmed, and all I could do was to wait for you. I watched through the door, but the fellow never showed himself.”

“Come on, boys,” commanded the old mountaineer in a determined voice. “Let’s beat thet la’rel while ther tracks is still fresh. Mebby we mout l’arn somethin’ of this hyar monstrous matter.”

But they learned nothing. Sim Colby had spent painstaking thought upon his effort and he had left no evidence written in the mold of the forest.

“Hit beats all hell,” declared the nonplussed Uncle Billy at last. “I ain’t got ther power ter fathom hit. Ef I war you I wouldn’t talk erbout this ter no man save only me an’ old Dyke Cappeze. Still-huntin’ lands more game then blowin’ a fox horn.” And Spurrier nodded his head.

Though Spurrier for a few days after that slipped through the gorge with the stealth of a sharpshooter, covering himself behind rocks as he went, he heard no sound there more alarming than the chatter of squirrels or the grunt of a strayed razor-back rooting among the acorns. Gradually he relaxed his vigilance as a man will if his nature is bold and his dreams too sweeping to be forever hobbled by petty precautions.

The purpose which he privately served called for ranging the country with a trained eye, and with him went the contour maps upon which were traced red lines.

One day he came, somewhat winded from a stiff climb, to an eminence that spread the earth below him and made of it a panorama. The bright carnival of the autumn was spending itself to its end, but among trees already naked stood others that clung to a gorgeousness of color the more brilliant in the face of death. Overhead was flawless blue, and there was a dreamy violet where it merged mistily with the skyline ridges.

“All that it needs,” mused the man whimsically and aloud, “is the music of Pan’s pipes—and perhaps a small chorus of dryads.”

Then he heard a laugh and, wheeling suddenly, discovered Glory Cappeze regarding him from the cap of a towering rock where, until he had reached this level, she had been hidden from view. Now she flushed shyly as the man strode over and confronted her.

“Do you still hate me?” he inquired.

“I reckon thet don’t make no master differ ter ye, does hit?” The musical voice was painfully diffident, and he remembered that she had always been shy with him except on that first meeting when the leaping anger in her eyes had burned away self-consciousness.

“You know,” he gravely reminded her, “when I first saw you, you were on the point of thrashing me. You had me cowed and timid. Since then I’ve come to think of you as the shooting star.”

He paused, waiting for her to demand an elucidation of that somewhat obscure statement, but she said nothing. She only sat gazing over his head toward the horizon, and her cheeks were excitedly flushed from the delicate pink of apple bloom to the warmer color of peach blossom.

“Since you don’t ask what I mean,” he continued easily, “I shall tell you. I’ve been to your house perhaps four or five times. From afar, each time, I’ve seen a scrap of color. Sometimes it has been blue, sometimes red, but always it has vanished with the swiftness of a shooting star. It is a flash and it is gone. Sometimes from beyond a door I also hear a voice singing.”

He leaned his elbows on the rock at her feet and stood gazing into the eyes that would not meet his own, and still she favored him with no response. After a little silence the man altered his tone and spoke argumentatively:

“You forgave the dog, you know—why not the man?”

That question carried her thoughts back to the murdered quail and a gusty back-flash of resentment conquered her diffidence. Her sternness of tone and the thrushlike softness of her voice, mingled with the piquancy of paradox.

“A dawg don’t know no better.”

“Some dogs are very wise,” he assured her. “And some men very foolish.”

“The dawg,” she went on still unplacated, “got right down on his stomach and asked my pardon. I *hed* ter fergive him, when he humbled hisself like that.”

“I’m willing,” John Spurrier amiably assured her, “to get right down on my stomach, too.”

Then she laughed, and though she sought to retreat again into her aloofness, the spell was broken.

“Am I forgiven?” he demanded, and she shook her head doubtfully though no longer with conviction.

“No,” she told him; then she added with a startlingly exact mimicry of her father’s most legalistic manner: “No. The co’té will take the case under advisement an’ defer jedgment.”

“I forgot,” he said, “that you are a lawyer’s daughter. What were you looking at across there—so fascinatedly?”

“Them hills,” she enlightened succinctly.

Spurrier studied her. Her deep eyes had held a glow of almost prayerful enchantment for which her laconic words seemed inadequate.

Watching her out of the tail of his eye he fell into borrowed phrases: ““Violet peaks uplifted through the crystal evening air.””

She shot a glance at him suddenly, eagerly; then at once the lids lowered, masking the eyes again as she inquired:

“Thet thar’s poetry, ain’t hit?”

“I’m prepared to go to the mat with any critic who holds the contrary,” he assured her.

“Hit’s comin’ on ter be night. I’ve got ter start home,” she irrelevantly announced, as she slid from her rough throne, and the man fell boldly in step at her side.

“When your honor rules on the matter under advisement,” he said humbly before their paths separated, “please remember that the defendant was a poor wretch who didn’t know he was breaking the law.”

For the first time their glances engaged fully and without avoidance, and a twinkle flashed in the girl’s pupils.

“*Ignorantia legis neminem excusat*,” she serenely responded, and Spurrier gasped. Here was a girl who could not steer her English around the shoals of illiteracy, giving him his retort in Latin: “Ignorance of the law excuses no one.” Of course, it meant only that her quick memory had appropriated and was parroting legal phrases learned from her father, but it struck the chord of contrasts, and to the man’s imagination it dramatized her so that when she had gone on with the lissome grace of her light stride, he stood looking after her.

Rather abruptly after that the autumn fires of splendor burned out to the ashes of coming winter, and then it was that Spurrier went north. As his train carried him seaward he had the feeling that it was also transporting him from an older to a younger century, and that while his mind dwelt on the stalwart and unsophisticated folk with whom he had been brushing shoulders, the life resolved itself into an austere picture against which the image of Glory stood out with the quick vividness of a red cardinal flitting among somber pine branches.

Because she was so far removed from his own orbit he could think of her impersonally and enjoy the thought as though it were of a new type of flower or bird, recognizing her attractive qualities in a detached fashion. ¹⁰⁰

As Spurrier gave himself up to the relaxation of reminiscence with that abandon of train travel which admits of no sustained effort, he began comparing this life, left over from another era, with that he had known against more cultivated and complex backgrounds.

Then in analytical mood he reviewed his own past, looking with a lengthening of perspective on the love affair that had been broken by his court-martial. His adoration of the Beverly girl had been youthful enough to surround itself with young illusions.

That was why it had all hurt so bitterly, perhaps, with its ripping away of his faith in romantic conceptions of love-loyalty.

He wondered now if he had not borne himself with the Quixotic martyrdom of callowness. He had sought to shield the girl from even the realization that her lack of confidence was ungenerous. He had sought to take all the pain and spare her from sharing it. But she had solaced herself with a swift recovery and a new lover, and had he been guilty she could not have abandoned him more cavalierly. Well, that softness belonged to an out-grown stage of development.

He had seen himself then as obeying the dictates of chivalry. He thought of it now as inexperienced folly—perhaps, so far as she was concerned, as a lucky escape. His amours of the present were not so naively conducted. To Vivian he had paid his attentions with an eye watchful of material advantages. They belonged to a sophisticated circle which seasoned life's

fare rather with the salt of cynicism than with the sugar of romanticism. Yet the thought of Vivian caused no pulse to flutter excitedly.

The glimpse of Glory had been refreshing because she was so honest and sincere that she disquieted one's acquired cynicism of viewpoint. One might as well spout world-wisdom to a lilac bush as to Glory! Yet there was a sureness about her which argued for her creed of wholesome, simple things and old half-forgotten faiths which one would like to keep alive—if one could.

Snow drifted in the air and made a nimbus about each arc light as Spurrier's taxi, turning between the collonade pillars of the Pennsylvania Station, gave him his first returning glimpse of New York. He had come East in obedience to a wired summons from Martin Harrison, brief to curtness as were all business messages from that man of few and trenchant words. The telegram had been slow crossing the mountain, but Spurrier had been prompt in his response.

A tempered glare hung mistily above the Longacre Square district through the snow flurries to the north, and the rumbled voice of the town, after these months in quiet places, was to the returned pilgrim like the heavy breathing of a monster sleeping out a fever.

At the room that he kept at his club in Fifth Avenue—for that was a part of the pretentious display of affluence made necessary by his ambitious scheme of things—he called up a number from memory. It was a number not included in the telephone directory, and, recognizing the voice that answered him, he said briefly:

"Manners, this is Mr. Spurrier. Will you tell Mr. Harrison I'm on the wire?"

"Hello, Spurrier," boomed a deep voice after an interval. "We're dining out this evening and we go to the opera afterward, but I want a word with you to-night. In fact, I want you to start for Russia on Wednesday. Drop into our box, and drive home with me for a few minutes afterward."

Russia on Wednesday! Spurrier's unoccupied hand clenched in irritation, but his voice was as unruffled as if he had been asked to make ready for a journey to Hoboken. He knew enough of Harrison's methods to ask no questions. If they could have been answered over the phone Harrison could

have found many men to send to Russia. It was because they were for his ear alone that he had been called to New York.

That evening he listened to “Otello” with thoughts that wandered from the voices of the singers. They refused even to be chained by the novelty of a slender tenor as a new Russian star held the spotlight. He was studying the almost too regular beauty of Vivian Harrison’s profile as she sat serene and self-confident with the horseshoe of the Metropolitan beyond her.

At midnight Spurrier sat with Harrison in his study and listened to a crisp summarizing of the Russian scheme. It proved to be a project boldly conceived on a broad scale and requiring an ambassador dependable enough and resourceful enough to decide large matters as they arose, without cabling for instructions.

In turn Spurrier talked of his own past doings, and through their cigar smoke the seeming idleness of those weeks assayed a wealth of exact information and stood revealed as the incubation period of a large conception. Keenly formulated plans emerged from his recitals so simply and convincingly that the greater financier leaned forward and let his cigar die.

Then Harrison rose and paced the room.

“You know something about me, Spurrier,” he began. “When I came East they laughed at me—if they deigned to notice me at all. They said: ‘Here comes a bushleaguer who thinks he’s good enough for the big game. It’s one more lamb to the shearing shed.’ That’s the East, Spurrier! That’s cocksure New York! They sneer at a Western-bred horse—or a Western-trained prize fighter—and when the newcomer licks the best they’ve got they straightway let out a holler that they taught him all he knows. Why, New York would die of lassitude and anæmia if it wasn’t for blood infusions from the provinces!”

Spurrier gazed interestedly at the tall figure of the man with the sandy red mustache, and the snapping eyes, who for all his impeccability of evening dress, might have taken a shovel or pick from a section hand and taught him how to level a road bed. Harrison laughed shortly.

“They haven’t inhaled me so far. I brought only a million with me to this town, and I’ve got—well, I’ve got plenty, but I can’t call it a day quite yet.

There's one buccaneer to be settled with first! He's got to go to the mat with me and come up bloody enough to admit that he's been in a ruction. He chooses to pretend that I'm nonexistent, and I won't stand being ignored! I want to leave my mark on that man, and with God's help—and yours—I'm going to do it!"

"You mean Trabue?" asked Spurrier, and Harrison's head gave a decisive jerk of affirmation while the hot glow of his eyes made his companion think of smelting furnaces.

"That's why this thing of yours interests me. That's why I'm willing to get behind you and back you to the hilt," the big fellow of finance went on. "A. O. and G. are trying to hold others out of this Kentucky field. That proves that they think enough of it to be hurt by having it torn from their teeth. All I need to know is what will hurt them! If you can take some teeth along with the bone, so much the better." He paused, then in a voice that had altered to cold steadiness, commanded: "Now, give me your facts."

"At present prices of oil," summarized Spurrier, "the development back of Hemlock Mountain wouldn't pay. With higher market values, it *would* pay, but less handsomely than other fields A. O. and G. can work. Once the initial cost is laid out, the profit will be constant. The A. O. and G. idea is to hold it in reserve and await developments—meanwhile keeping up the 'no trespass' sign."

"Doesn't the range practically prohibit railroading?"

"Possibly—but it doesn't prohibit pipe lines."

Spurrier opened the packet he had brought in his overcoat pocket and spread a map under the flooding light of a table lamp.

"I have traced there what seems to me a practical piping route," he explained. "I call it the neck of the bottle. There is a sort of gap through the hills and a porous formation caused by a chain of caverns. Nature is willing to help with some ready-made tunnels."

"Why haven't they discovered that?"

"The oil development of fifteen years ago never crossed Hemlock Mountain. It came the other way."

Harrison stood thinking for a time, then demanded tersely: "Have you secured any land or options?"

"Not an acre, nor an inch," laughed Spurrier. "This is a waiting game. I don't mean to appear interested. If any man offered to give me a farm I should say it wasn't worth State taxes."

"How do we get the property into our hands then?"

"The buying must be gradual and through men with whom we appear to have no connection."

"And the State charter—how about that?"

"There lies the chief problem," admitted Spurrier. "The charter must come from a legislature that A. O. and G. can, at present, control."

"What," Harrison shot the question out like a cross-examiner, "is the present attitude of the natives toward oil and oil men?"

"Indifference and skepticism." The reply was prompt but the amplification more deliberate. "Once they saw wealth ahead—then the boom collapsed, and they have no longer any faith in the magic of the word 'oil.'"

"I presume," suggested Harrison, "you are encouraging that disbelief?"

Spurrier's face clouded, but only for a moment. "I am the most skeptical of all the skeptics," he assented, "and yet I'm sorry that they can't be gainers. They are an honest, upstanding folk and they have always felt the pinch of privation. After all they are the rightful owners and development of their country ought to benefit them. Of course, though, to forecast the possibilities would kill the game. We can't take them into our confidence without sounding a warning to the enemy."

"Growing sentimental?" queried Harrison dryly, and the younger man shook his head.

"No," he responded slowly, "I can't afford that—yet."

"And see that you don't," admonished the chief sharply. "Bear in mind, as you have in the past, that we don't want to depend on men of brittle resolution and temperamental squeamishness. We are in this thing toward a definite end and not as humanitarian dreamers. However——" He broke off

abruptly and added in a milder voice, "I don't have to caution you. You understand the proposition."

For some minutes the cigar smoke floated in a silent room, while Martin Harrison sat with the knitted brows of concentrated thought. Spurrier did not interrupt the mental process which he knew had the heat and power of an ore smelter, reducing to fluid amenability the hard metal of a stubborn proposition. He knew, too, that the fuel which fed the fire was his principal's animosity against Trabue, rather than the possibilities or extent of the loot. This, no less than the mountain vendetta, was, in last analysis, a personal feud and in the parlance of the Cumberlands a "war was in ther b'ilin'."

At last Harrison straightened up and tossed away his cigar.

"You are ambitious, Spurrier," he said. "Put this thing over and I should say that all your ambitions can come to realization."

While he sat waiting Spurrier had lifted from the table a photograph of Vivien, appropriately framed in silver. He had taken it up idly because it was a new portrait and one that he had not before seen, but into the gesture the father read a deeper significance. It was as if Spurrier had asked "All my ambitions?" and had emphasized his question by laying his hands on the picture of the girl. That, thought Harrison, was an audacious suggestion, but it was Spurrier's audacity that recommended him.

Slowly the capitalist's eyes lighted into an amused smile as their glance traveled from the younger face to the framed photograph, and slowly he nodded his head.

"*All* your ambitions," he repeated meaningly, then with the electric snap of warning in his voice he added an admonition: "But don't underestimate the difficulties of your undertaking. You are bucking the strongest and most relentless piracy in finance. You will incur enmities that will stop nowhere, and you must operate in a country where murderers are for 'hire.'"

The threat of personal danger just at that moment disquieted John Spurrier less than the other curtailment of freedom implied in Harrison's words; the tacit acceptance of him as Vivien's suitor. It came to him abruptly that he did not love Vivien; that he wished to remain untrammelled. Heretofore, he

had always postponed matrimonial thoughts for the misty future. Now they became embarrassingly near and tangible.

But quick on this realization followed another. Here was an offered alliance¹⁰⁸ of tremendous advantage and one not to be ignored. To be Vivien's husband might fail of rapture, but to be Martin Harrison's son-in-law meant triumph. It meant his own nomination as heir apparent and successor in that position of cardinal importance to which he had looked upward as to a throne.

There was no trace of dubiety in his voice as he answered:

"I have counted the handicaps, sir. I'm taking my chance with open eyes."

CHAPTER IX

Sim Colby, after that day when he had slipped through the laurel, had gone back to his own house and waited for the talk of John Spurrier's mysterious death to drift along the waterways where news is the only speedy traveler.

There had been no such gossip and he had dared betray his interest by no inquiry, but he knew it could have only one meaning; that he had failed.

Spurrier was alive, and obviously he was holding his counsel concerning his narrow escape. This silence seemed to Sim Colby an ominous thing indicative of some crafty purpose—as if the intended victim were stalking grimly as well as being stalked. Sim came of a race that knows how to bide its time and that can keep bright the edge of hatred against long-delayed reprisals. It was certainly to be presumed that Spurrier had taken some of his friends into his confidence and that under the mantle of silence over on Little Turkey Tail, these friends were now watchfully alert. The enterprise that had once failed could not be reundertaken at once. Sim must wait for the vigilance to “blow over,” and while he waited the rancor of his hatred must fester with the thorn-prickings of a thousand doubts and apprehensions.

Then he heard one day that Spurrier had left the mountains, and on another day the news was brought that the grand jury had declined to reopen the old issues of the murder case in which Mosebury had escaped justice. Both these things were comforting in themselves, but they failed of complete reassurance for the deserter.

Men said that Spurrier was coming back again, so the day of reckoning was only deferred—not escaped.

The determination with which Sim had set out on his mission of death had largely preëmpted his field of thought. Now, after weeks and months of brooding reflection, he himself had become only a sort of human garment worn by the sinister spirit of resolve.

So all that winter while John Spurrier was away as the ambassador, practicing in Moscow and Odessa the adroit arts of financial diplomacy, the fixed idea of his assassination was festering in the mind of the man who lived, under an assumed name, at the head of Little Quicksand.

That obsession took fantastic shapes and wove webs of grotesque patterns of hate as Colby, who had been Grant, sat brooding before his untidy hearth while the winter winds wailed about the eaves and lashed the mountain world into forlorn bleakness.

And while Colby meditated unendingly on the absentee and built ugly plans against his return, so in another house and in another spirit, the ex-officer was also remembered.

Winter in these well-nigh roadless hills meant a blockade and a siege with loneliness and stagnation as the impregnably intrenched attackers. The victims could only wait and endure until the rescue forces of spring should come to raise the chill and sodden barricade, with a flaunting of blossom-banners and the whispered song of warm victory.

Glory Cappeze, for the first time in her life, suffered from loneliness. She had thought herself too used to it to mind it much, but John Spurrier had brought a new element to her existence and left behind him a void. She had been hardly more than an onlooker to his occasional visits with her father, but she had been a very interested onlooker. When he talked a vigorous mind had spoken and had brought the greater, unknown, outer world to her door. The striking face with its square jaw; the ingrained graces and courtesies of his bearing; the quickness of his understanding—all these things had been a light in the gray mediocrity of uneventful days and a flame that had fired her imagination to a splendid disquiet.

The infectious smile and force of personality that had been a challenge to more critical women, had been almost dazzling qualities to the mountain girl of strangled opportunities.

But it was that last meeting in which he had thawed her shyness into friendliness that Glory remembered most eagerly. That had seemed to make of Spurrier not only a hero admired from a distance but a hero who was also a friend, and she was hungry for friends.

So it came to pass that to these two widely variant welcomes, neither of which he suspected, John Spurrier was returning from Russia when spring had lightly brushed the Cumberland slopes with delicate fragrance and the color of blossoming.

In Louisville, in Frankfort, and in other Kentucky towns along his way the returning man had made stops and investigations, to the end that he came primed with certain information of an ex-cathedra sort.

The fruits of this research included an abstract of the personnel of the legislature and the trend of oil influences in State politics, and he studied his notebook as he traveled from the rolling, almost voluptuous fertility of the bluegrass section to the piedmont where the foothills began to break the sky.

On the porch of the dilapidated hotel at Waterfall a sparse crowd centered about a seated figure, and when he had reached the spot Spurrier paused, challenged by a sense of the medieval, that gripped him as tangibly as a hand clapped upon his shoulder.

The seated man was blind and shabby, with a beggar's cup strapped to his knee, and a "fiddle" nestling close to the stubbled chin of a disfigured face. He sang in a weird falsetto, with minors that rose thin and dolorous, but he was in every essential the ballad singer who improvised his lays upon topical themes, as did Scott's last minstrel—a survival of antiquity.

Now he was whining out a personal plaint in the words of his "song ballet."

"I used ter hev ther sight ter see ther hills so high an' green,
I used ter work a standard rig an' drill fer kerosene."

The singer's lugubrious pathos appeared to be received with attentive and uncritical interest. Beyond doubt he took himself seriously and sadly.

"I used ter know a woman's love, an' read a woman's eyes,
An' look into my baby's face an' dwell in paradise,
Until a comp'ny foreman, plum' heedless in his mind
Let nitroglycereen explode an' made me go stone blind."

Spurrier, half-turning, saw a traveling salesman standing at his elbow with a repressed grin of amusement struggling in his glance.

“Queer card, that,” whispered the drummer. “I’ve seen him before; one of the wrecks left over from the oil-boom days. A ‘go-devil’ let loose too soon and blinded him.” He paused, then added as though by way of apology for his seeming callousness: “Some people say the old boy is a sort of a miser and has a snug pile salted away.”

Spurrier nodded and went on into the office, but later in the day he sought out the blind fiddler and engaged him in conversation. The man’s blinding had left him a legacy of hate for all oil operators, and from such relics as this of the active days Spurrier knew how to evoke scraps of available information. It was not until later that it occurred to him that he had answered questions as well as asked them—but, of course, he had not been indiscreet.

With John Spurrier, riding across hills afoam with dogwood blossom and tenderly vivid with young green, went persistently the thought of the blind beggar who seemed almost epic in his symbolism of human wreckage adrift in the wake of the boom. Yet he was honest enough to admit inwardly that should victory fall to his banners there would be flotsam in the wake of his triumph, too; simple folk despoiled of their birthright. He came as no altruist to fight for the native born. He, no less than A. O. and G., sought to exploit them.

When he went to the house of Dyke Cappeze he did not admit the curiosity, amounting to positive anxiety, to see again the little barbarian, who slurred consonants, doubled her negatives, split her infinitives and retorted in the Latin of Blackstone. Yet when Glory did not at once appear, he found himself unaccountably disappointed.

“There’s been another stranger in here since you went away,” the old man smilingly told him. “What is he doing here? That’s the one burning question debated along the highways when men ‘meet and make their manners.’”

“Well,” laughed Spurrier, “what is he doing here?”

Cappeze shrugged his bent shoulders as he knocked the rubble from his pipe and a quizzical twinkle came into his eyes.

“So far as I can make out, sir, he’s as much a gentleman of leisure as you are yourself.”

Spurrier knew what an excellent subterfuge may sometimes lie in frankness, and now he had recourse to its concealment.

“Good heavens, Mr. Cappeze, I’m no idler!” he declared. “I’m associated with capitalists who work me like a mule. Since I saw you, for example, I’ve been in Russia and I’ve been hard-driven. That’s why I come here. If I couldn’t get absolutely away from it all now and then, I’d soon be ready for a madhouse. Here I can forget all that and keep fit.”

Cappeze nodded. “That’s just about the way I sized you up. At first, folks pondered about you, too, but now they take you on faith.”

“I hope so—and this new man? Has he stepped on anybody’s toes?”

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“Not yet. He hasn’t even bought any land, but there have been some several transfers of property, in other names, since he came. He *may* be some man’s silent partner.”

“What sort of partnership would it be?”

“God knows.” For an instant the shrewd eyes leaped into a glint of feeling. “These poor benighted devils suspect the Greeks bearing gifts. Civilization has always come here only to leave its scar. They have been stung once—over oil. God pity the man who seeks to sting them again.”

“You think,” Spurrier responded lightly, as one without personal interest, “they wouldn’t take it kindly?”

Once again the sonorous and kindly voice mounted abruptly to vehemence.

“As kindly, sir, as a wolf bitch robbed, the second time, of her whelps. It’s all a wolf bitch has.”

That evening as he walked slowly homeward with a neighbor whom he had met by the way, Spurrier came face to face with Wharton, the other stranger, and the mountaineer performed the offices of introduction.

The two men from the outer world eyed each other incuriously and parted after an exchange of commonplaces.

When Spurrier separated from his chance companion, the hillsman drawled: "Folks says thet feller's buyin' land. God knows what fer he wants hit, but ef he *does* hone fer hit, hit's kinderly probable thet hit's wuth holdin' on to."

When the brook trout began to leap and flash Cappeze delegated Glory¹¹⁶ to act for him as Spurrier's guide, and as the girl led the way to the likeliest pools, the young, straight-growing trees were not more gracefully slender.

The fragrance from the pink-hearted laurel and the locust bloom had no delicacy more subtle or provocative than that of her cheeks and hair. The breeze in the nodding poplar tops seemed scarcely freer or lighter than her movements. Like the season she was young and in blossom and like the hills she was wild of beauty.

Spurrier admitted to himself that, were he free to respond to the pagan and vital promptings of impulse, instead of standing pledged to rigid and austere purposes, this girl would have made something ring within him as a tuning fork rings to its note.

Since the days of Augusta Beverly's ascendancy, he had never felt the need of raising any sort of defense between himself and a woman. At first he had believed himself, with youthful resentment, a woman-hater and more latterly he had become in this, as in other affairs, an expedientist. Augusta had proven weak in loyalty, under stress, and Vivian had been indifferent to the ostracism of his former comrades so long as her own aristocracy of money accepted him. Both had been snobs in a sense, and in a sense he too was a snob.

But because this girl was of a simplicity that regarded all things in their primary colors and nothing in the shaded half-tones of politer usage, it was needful to guard against her mistaking his proffered comradeship for the attitude of the lover—and that would have been most disastrous. It would have made necessary awkward explanations that would wound her, embarrass him and arouse the old man's just ire. For people, he was learning, may be elementally uncouth and yet prouder than Lucifer, and except when he was here on their own ground there was no common meeting place between their standards of living.

Yet Glory's presence was like a gypsy-song to his senses; rich and lyrical with a touch of the plaintive. Glory, he knew, would have believed in him

when Augusta Beverly had doubted, and would have stood fast when Augusta had cut loose.

This was the sort of thought with which it was dangerous to dally—and perhaps that was precisely why, under this tuneful sky, it pleased him to humor it. Certainly, whatever the cause, the sight of her made him step more elastically as she went on ahead.

When they had whipped the streams for trout until hunger clamored, Spurrier sat, with a sandwich in his hand in grass that waved knee-high, and through half closed lids watched Glory as she moved about crooning an old ballad, and seemingly unconscious of himself, herself and all but the sunlit spirit of the early summer day.

“Glory,” he said suddenly, calling her by her given name for the first time and in a mood of experiment.

As naturally as though she had not noted his lapsed formality, she turned toward him and answered in kind.

“What air hit, Jack?”

“Thank you.”

“What fer?”

“For calling me Jack.”

Then her cheeks colored deeply and she wheeled to her work again. But after a little she faced him once more to say half angrily:

“I called ye Jack because ye called me Glory. You’ve always put a Miss afore hit till now, an’ I ’lowed ye’d done made up yore mind ter be friendly at last.”

“I’ve always wanted to be friendly,” he assured her. “It was you who began with a hickory switch and went on with hard words in Latin.”

The girl laughed, and the peal of her mirth transmuted their status and dispelled her self-consciousness. She came over and stood looking down at him with violet eyes mischievously a-sparkle.

“The co’té,” she announced, “hes carefully weighed there evidence in ther case of Jack Spurrier, charged with ther willful murder of Bob White, and is

ready to enter judgment. Jack Spurrier, stand up ter be sentenced!”

The man rose to his feet and stood with such well-feigned abjectness of suspense that she had to fight back the laughter from her eyes to preserve her own pose of judicial gravity.

“It is well established by the evidence befo’ ther co’t^e,” she went solemnly on, “thet ther defendant is guilty on every count contained in the indictment.” She checked off upon the fingers of the left hand the roster of his crime as she summarized it.

“He entered inter an unlawful conspiracy with the codefendant Rover, a setter dawg. He made a felonious assault without provocation. He committed murder in the first degree with malice prepense.”

Spurrier’s head sank low in mock despair, until Glory came to her peroration and sentence.

“Yet since the defendant is amply proved to be a poor, ignorant wanderer upon the face of the earth, unpossessed of ordinary knowledge, the court is constrained to hold him incapable of discrimination between right an’ wrong. Hence he is not fully responsible for his acts of violence. Mercy as well as justice lies in the province of the law, twins of a sacred parentage and equal before the throne.”

She broke off in a laugh, and so sudden was the transition from absolute mimicry that the man forgot to laugh with her.

“Glory,” he demanded somewhat breathlessly, “have you ever been to a theater in your life? Have you ever seen a real actress?”

“No. Why?”

“Because you *are* one. Does this life satisfy you? Isn’t there anything off there beyond the hills that ever calls you?”

The dancing eyes grew abruptly grave, almost pained, and the response came slowly.

“*Everything* down thar calls ter me. I craves hit all!”

Spurrier suddenly recalled old Cappeze’s half-frightened vehemence when the recluse had inveighed against the awakening of vain longings in his daughter. Now he changed his manner as he asked:

“I wonder if I’d offend you if I put a question. I don’t want to.”

“Ye mout try an’ see. I ain’t got no power ter answer twell I hears hit.”

“All right. I’ll risk it. Your father doesn’t talk mountain dialect. His English is pure—and you were raised close to him. Why do *you* use—the other kind?”

She did not at once reply and, when she did, the astonishingly adaptable creature no longer employed vernacular, though she spoke slowly and guardedly as one might who ventured into a foreign tongue.

“My father has lived down below as well as here. He’s a gentleman, but he aims—I mean he intends—to live here now till he dies.”

As she paused Spurrier prompted her.

“Yes—and you?”

“My father thinks that while I *do* live here, I’d better fit into the life and talk in the phrases that don’t seem high-falutin’ to my neighbors.”

“I dare say,” he assured her with forced conviction, “that your father is right.”

There was a brief silence between them while the warm stillness of the woods breathed its incense and its langour, then the girl broke out impulsively:

“I want to see and hear and taste everything, out there!”

Her hands swept outward with an all-embracing gesture toward the whole of the unknown. “There aren’t any words to tell how I want it! What do you want more than anything else, Jack?”

The man remained silent for a little, studying her under half-lowered lids while a smile hovered at the corners of his lips. But the smile died abruptly and it was with deep seriousness that he answered.

“I think, more than anything else, I want a clean name and a vindicated reputation.”

Glory’s eyes widened so that their violet depths became pools of wondering color and her lips parted in surprise.

“A clean name!” she echoed incredulously. “What blight have you got on it, Jack?” Then catching herself up abruptly she flushed crimson and said apologetically: “That’s a question I haven’t any license to put to you, though. Only you broached the subject yourself.”

“And having broached it, I am willing to pursue it,” he assured her evenly. “I was an army officer until I was charged with unprovoked murder—and court-martialed; dishonorably discharged from the service in which my father and grandfather had lived and died.”

For a moment or two she made no answer but her quick expressiveness of lip and eye did not, even for a startled interval, betray any shock of horror. When she did speak it was in a voice so soft and compassionate that the man thought of its quality before he realized its words.

“Did the man that—that was *really* guilty go scot free, whilst you had to shoulder his blame?”

There had been no question of evidence; no waiting for any denial of guilt. She had assumed his innocence with the same certainty that her eye assumed the flawlessness of the overheard blue. Her interest was all for his wronging and not at all for his alleged wrong.

The man started with surprise; the surprise of one who had trained himself into an unnatural callousness as a defense against what had seemed a universal proneness to convict. He had told himself that Glory would see with a straighter and more intuitive eye. He had told her baldly of the thing which he seldom mentioned out of an inquisitiveness to test her reaction to the revelation, but he was unprepared for such unhesitant belief.

“I think you are the first human being, Glory,” he said quietly but with unaccustomed feeling in his voice, “who ever heard that much and gave me a clean bill of health without hearing a good bit more. Why didn’t you ask whether or not I was guilty?”

“I didn’t have to,” she said slowly. “Some men could be murderers and some couldn’t. You couldn’t. You might have to *kill* a man—but not murder him. You might do lots of things that wouldn’t be right. I don’t know about that—but those people that convicted you were fools!”

“Thank you,” he said soberly. “You’re right, Glory. I was as innocent of that assassination as you are, yet they proved me guilty. It was only through

influence that I escaped ending my days in prison.”

Then he gave her the story, which he had already told her father and no one else in the mountains. She listened, thinking not at all of the damaging circumstances, but secretly triumphant that she had been chosen as a confidant.

But that night Spurrier looked up from a letter he was reading and let his eyes wander to the rafters and his thoughts to the trout stream.

It was a letter, too, which should have held his attention. It contained, on a separate sheet of paper, a list of names which was typed and headed: “Confidential Memorandum.” Below that appeared the notation: “Members of the general assembly, under American Oil and Gas influence. Also names of candidates who oppose them at the next election, and who may be reached by us.”

Spurrier lighted his pipe and his face became studious, but presently he looked up frowning.

“I must speak to old Cappeze,” he said aloud and musingly. “He’s being unfair to her.” And that did not seem a relevant comment upon the paper he held in his hand.

Then Spurrier started a little as from outside a human voice sounded above the chorus of the frogs and whippoorwills.

“Hallo,” it sung out. “Hit’s Blind Joe Givins. Kin I come in?”

A few minutes later into the lamplight of the room shambled the beggar of the disfigured face, whom Spurrier had last seen at the town of Waterfall, led by a small, brattish boy. His violin case was tightly grasped under his arm, and his free hand was groping.

“I’d done sot out ter visit a kinsman over at ther head of Big Wolfpen branch,” explained the blind man, “but ther boy hyar’s got a stone bruise on his heel an’ he kain’t handily go on, ter-night. We wonder could we sleep hyar?”

Spurrier bowed to the law of the mountains, which does not deny shelter to the wayfarer, but he shivered fastidiously at the unkempt raggedness of his tramp-like visitor, and he slipped into his pocket the papers in his hand.

That night before Spurrier's hearth, as in elder times before the roaring logs of some feudal castle, the wandering minstrel paid his board with song and music; his voice rising high and tremulous in quaint tales set to measure.

But on the next morning the boy set out on some mission in the neighborhood and left his charge to await his return, seated in a low chair, and gazing emptily ahead.

Spurrier went out to the road in response to the shout of a passing neighbor, and left his papers lying on the table top, forgetful of the presence of the sightless guest, who sat so negligibly quiet in the chimney corner.

When he entered the room again the blind man had risen from his seat and moved across to the hearth. On the threshold the householder halted and stood keenly eyeing him while he groped along the mantel shelf as if searching with wavering fingers for something that his eyes could not discover—and the thought of the papers which he had left exposed caused an uneasy suspicion to dart into Spurrier's mind. Any eye that fell on that list would have gained the key to his whole strategy and intent, but, of course, this man could not see. Still Spurrier cursed himself for a careless fool.

"I was jest seekin' fer a match," said Joe Givins as a slight sound from the other attracted his attention. "I aimed ter smoke for a leetle spell."

The host struck a match and held it while the broken guest kindled his pipe, then he hurriedly glanced through his papers to assure himself that nothing had been disturbed—and though each sheet seemed as he had left it, the uneasiness in Spurrier's mind refused to be stilled.

Presumably this bat-blind ragamuffin was no greater menace to the secrecy of his plans than a bat itself would have been, yet a glimpse of this letter would have been so fatal that he asked himself anxiously, "How do I know he's not faking?" The far-fetched apprehension gathered weight like a snowslide until suddenly out of it was born a grim determination.

He would make a test.

Noiselessly, while the ugly face that had been mutilated by a blasting charge gazed straight and sightlessly at him, Spurrier opened the table drawer and took from it a heavy calibered automatic pistol. It was a deadly looking thing and it needed no cocking; only the silent slipping forward of a

safety catch. In this experiment Spurrier must not startle his guest by any ominous sound, but he must satisfy himself that his sight was genuinely dead.

“I thought,” said the host in a matter-of-fact voice as he searchingly studied the other face through narrowed lids, “that when sight went, the enjoyment of tobacco went with it.” As he spoke he raised and leveled the cocked pistol until its muzzle was pointed full into the staring face. Deliberately he set his own features into the baleful stamp of deadly threat, until his expression was as wicked and ugly as a gargoyle of hatred.

If the man were by any possibility shamming it would take cold nerve to sit there without any hint of confession as this unwarned demonstration was made against him—a demonstration that seemed genuine and murderous. For an instant Spurrier fancied that he heard the breath rasp in the other’s throat, but that, he realized, must have been fancy. The face itself altered no line of expression, flickered no eyelid. It remained as it had been, stolid and blank, so that the man with the pistol felt ashamed of his suspicion. 126

But Spurrier rose and leaned across the table slowly advancing the muzzle until it almost touched the bridge of the nose, just between the eyes he was so severely testing. Still no hint of realization came from the threatened guest. Then the voice of the blind man sounded phlegmatically:

“That’s what folks say erbout terbaccy an’ blind men—but, by crickety, hit *ain’t* so.”

John Spurrier withdrew his pistol and put it back in the drawer.

“I guess,” he said to himself, “he didn’t read my letters.”

CHAPTER X

Across a tree-shaded public square from the courthouse and “jail house” at Carnettsville stood a building that wore the dejected guise of uncomforted old age, and among the business signs nailed about its entrance was the shingle bearing the name of “Creed Faggott, Atty. at Law.”

The way to this oracle’s sanctum lay up a creaking stairway, and on a brilliant summer day not long after Spurrier had entertained his blind guest it was climbed by that guest in person, led by the impish boy whose young mouth was stained with chewing-tobacco.

This precocious child opened the door and led his charge in and, from a deal table, Creed Faggott removed his broganned feet and turned sly eyes upon the visitors, out of a cadaverous and furtive face.

“You don’t let no grass grow under your feet, do you, Joe?” inquired the lawyer shortly. “When the day rolls round, you show up without default or miscarriage.” He paused as the boy led the blind man to a chair and then facetiously capped his interrogation. “I reckon I don’t err in surmisin’ that you’ve come to collect your pension?”

The blind man gazed vacantly ahead. “Who, me?” he inquired with half-witted dullness.

“Yes, you. Who else would I mean?”

“Hit’s due, ain’t hit—my money?”

“Due at noon to-day and noon is still ten minutes off. I’m not sure the company didn’t make a mistake in allowing you such a generous compensation for your accident.” There was a pause, then Faggott added argumentatively: “Your damage suit would have come to naught, most likely.”

“Thet ain’t ther way ye talked when I lawed ther comp’ny,” whined the blind man. “Ye ’peared to be right ambitious ter settle outen co’te in them days, Mr. Faggott.”

“The company didn’t want the thing hanging on. They got cold feet. Well, I’ll give you your check.”

“I’d ruther have hit in cash money—silver money,” stipulated the recipient of the compromise settlement. “I kin count *thet* over by ther feel of hit.”

Faggott snorted his disgust but he deposited in the outstretched palm the amount that fell due on each quarterly pay day, and the visitor thumbed over every coin and tested the edges of all with his teeth. After that, instead of rising to go, he sat silently reflective.

“That’s all, ain’t it,” demanded the attorney, and something like a pallid grin lifted the lip corners in the blind man’s ugly face.

“Not quite all,” replied Joe Givins as he shook his head. “No, thar’s one other leetle matter yit. I’d love ter hev ye write me a letter ter ther comp’ny’s boss-man in Looeyville. I kinderly aims ter go thar an’ see him.”

This time it was the attorney who, with an incredulity-freighted voice, demanded: “Who, you?”

“Yes, sir. Me.”

“The Louisville manager,” announced Faggott loftily, “is a man of affairs. The company conducts its business here through its local counsel—that’s me.”

“Nevertheless an’ notwithstandin’, I reckon hit’ll kinderly pleasure ^{ther} boss-man ter talk ter *me*—when he hears what I’ve got ter tell him.”

A light of greed quickened in the shyster’s narrow eyes. It was possible that Blind Joe had come by some scrap of salable information. It had been stipulated when his damage suit was settled, that he should, paradoxically speaking, keep his blind eyes open.

“See here, Joe,” the attorney, no longer condescending of bearing, spoke now with a wheedling insistence, “if you’ve got any tidings, tell ’em to me. I’m your friend and I can get the matter before the parties that hold the purse strings.”

Joe Givins stretched out a wavering hand and groped before him. “Lead me on outen hyar, boy,” he gave laconic command to his youthful varlet. “I’m tarryin’ overlong an’ wastin’ daylight.”

“What’s daylight to you, Joe?” snapped Faggott brutally, but recognizing his mistake he, at once, softened his manner to a mollifying tone. “Set still a spell an’ let’s have speech tergether—an’ a little dram of licker.”

Ten minutes of nimble-witted fencing ensued between the two sons of avarice, and at their end the blind man stumped out, carrying in his breast pocket a note of introduction to a business man in Louisville—whose real business was lobbying and directing underground investigations—but the lawyer was no wiser than he had been.

And when eventually from the murky lobby of the Farmers’ Haven Hotel, which sits between distillery warehouses in Louisville, the shabby mountaineer was led to the office building he sought, he was received while more presentable beings waited in an anteroom.

It chanced that on the same day John Spurrier spoke to Dyke Cappeze of Glory.

“When we went fishing,” he said, “I asked her whether she never felt a curiosity for the things beyond the ridges—and her eagerness startled me.”

An abrupt seriousness overspread the older face and the answering voice was sternly pitched.

“I should be profoundly distressed, sir,” said Cappeze, “to have discontent brought home to her. I should resent it as unfriendly and disloyal.”

“And yet,” Spurrier’s own voice was quickened into a more argumentative timber, “she has a splendid vitality that it’s a pity to crush.”

“She has,” came the swift retort, “a contented heart which it’s a pity to unsettle.”

The elder eyes hardened and looked out over the wall of obstinacy that had immured Dyke Cappeze’s life, but his words quivered to a tremor of deep feeling.

“I’ve given her an education of sorts. She knows more law than some judges, and if she’s ignorant of the world of to-day she’s got a bowing acquaintance with the classics. I’m not wholly selfish. If there was some one—down below that I could send her to—some one who would love her enough because she needs to be loved—I’d stay here alone, and willingly, despite the fact that it would well-nigh kill me.” He paused there and his

eyes were broodingly somber, then almost fiercely he went on: "I would trust her in no society where she might be affronted or belittled. I would rather see her live and die here, talking the honest, old crudities of the pioneers, than have her venture into a life where she could not make her own terms."

"Perhaps she could make her own terms," hazarded Spurrier, and the other snapped his head up indignantly.

"Perhaps—yes—and perhaps not. You yourself are a man of the world, sir. What would—one of your own sort—have to offer her out there?"

Under that challenging gaze the man from the East found himself flushing. It was almost as though under the hypothetical form of the question, the father had bluntly warned him off from any interference unless he came as an avowed suitor. He had no answer and again the lawyer spoke with the compelling force of an ultimatum.

"She must stay here with me, who would die for her, until she goes to some man who offers her everything he has to offer; some man who would die for her, too." His voice had fallen into tenderness, but a stern ring went with his final words. "Meanwhile, I stand guard over her like a faithful dog. I may be old and scarred but, by God, sir, I am vigilant and devoted!" He waved his thin hand with a gesture of dismissal for a closed subject, and in a changed tone added:

"I've recently heard of two other travelers riding through—and they have taken up several land options."

"What meaning do you read into it, Mr. Cappeze?"

The lawyer shrugged his shoulders. If he had no explanation to offer, it was plain that he did not regard the coming of the strangers as meaningless.

"I'm going," said Spurrier casually, "to make a trip up Snake Fork to the head of Little Quicksand. Is there any one up there I can call on for lodging and information?"

The lawyer shook his head. "It's a mighty rough country and sparsely settled. You'll find a lavish of rattlesnakes—and a few unlettered humans. There's a fellow up there named Sim Colby who might shelter you

overnight. He lives by himself, and has a roof that sheds the rain. It's about all you can ask."

"It's enough," smiled Spurrier, and a few days later he found himself climbing a stiff ascent toward a point where over the tree-tops a thread of smoke proclaimed a human habitation.

He was coming unannounced to the house of Sim Colby, but if he had expected his visit to be an entire surprise he was mistaken, and if he had known the agitation that went a little way ahead of him, he would have made a wide detour and passed the place by.

Sim was hoeing in his steeply pitched field when he saw and recognized the figure which was yet a half-hour's walk distant, by the meanderings of the trail. The hoe fell from his hand and his posture stiffened so inimically that the hound at his feet rose and bristled, a low growl running half smothered in its throat.

Doubtless, Colby reasoned, Spurrier was coming to his lonely house with a purpose of venom and punishment, yet he walked boldly and to the outward glance he seemed unarmed. Hence it must be that in the former army officer's plan lay some intent more complex than mere open-and-shut meeting and slaying: some carefully planned and guileful climax to be approached by indirection. Very well, he would also play the game out, burying his suspicion under a guise of artlessness, but watching every move—and when the moment came striking first.

At a brook, as he hastened toward his house by a short cut, he knelt to drink, for his throat was damnably dry, and in the clear water the pasty pallor and terror of his face was given back to him, and warned him. But also the mirroring brought another thought and the thought fathered swift action. In the army he had been spare and clean-shaven and a scar had marked his chin. Now he was bearded. He carried a beefier bulk and an altered appearance.

Could there be any possibility of Spurrier's failing to recognize him—of his having been, after all, ignorant of his presence here?

Yet his eyes would be recognizable. They were arrestingly distinctive, for one of them was pale-blue and the other noticeably grayish.

By the path he was following, stalks of Jimson weed grew rank, and Sim, rising from his knees, pulled off a handful of leaves and crushed them between his palms. When he had reached the house his first action was to force from this bruised leafage a few drops of liquid into a saucer and this juice he carefully injected into his eyes.

Then he went to the door and squinted up at the sun. It would be fifteen minutes before Spurrier would arrive and fifteen minutes might be enough. He half closed his eyes, because they were stinging painfully, and sat waiting, to all appearances indolent and thoughtless.

Spurrier plodded on, measuring the distance to the smoke thread until he came in view of the cabin itself, then he approached slowly since the stiff climb had winded him.

Now he could see the shingle roof and the log walls, trailed over with morning-glory vines, and in the door the slouching figure of a man. He came on and the native rose lazily.

“My name’s John Spurrier,” called out the traveler, “and Lawyer Cappeze cited you to me as a man who might shelter me overnight.”

The man who had deserted chewed nonchalantly on a grass straw and regarded the other incuriously—which was a master bit of dissembling. Between them, it seemed to Sim Colby who had once been Private Grant, lay the body of a murdered captain. Between them, too, lay the guilt of his assassination. To the Easterner’s appraisal this heavy-set mountaineer with unkempt hair and ragged beard was merely a local type and yet in one respect he was unforgettable.

It was his eyes. They were arrestingly uncommon eyes and, once seen, they must be remembered. What was the quality that made one notice them so instantly, Spurrier questioned himself. Then he realized.

They were inkily black eyes, but that was not all. There seemed to be in them no line of demarcation between iris and pupil—only liquid pools of jet.

The two men sat there as the shadows lengthened and talked “plumb friendly” as Colby later admitted to himself. They smoked Spurrier’s “fotched-on” tobacco and drank native distillation from the demijohn that Colby took down from its place on a rafter. Yet the host was filling each

tranquilly flowing minute with the intensive planning of a hospitality that was, like Macbeth's, to end in murder.

Spurrier would sleep in an alcovelike room which could be locked from the outside. Back through the brush was a spot of quicksand where a body would leave no trace. One thing only troubled the planning brain. He wished he could learn just who knew of his guest's coming here; just what precautions that guest had taken before embarking on such a venture.

From outside came a shout, interrupting these reflections, and Sim was at once on his feet facing the front door, with a surreptitious hand inside his shirt, and one eye covertly watching Spurrier, even as he looked out. A snarl, too, drew his lips into an unpleasant twist.

The Easterner put down to mountain caution the amazing swiftness with which the other had come from his hulking proneness to upstanding alertness. But with equal rapidity, Sim's pose relaxed into ease and he shouted a welcome as the door darkened with a figure physically splendid in its spare strength and commanding height.

Spurrier rose and found himself looking into a face with most engaging eyes and teeth that flashed white in smiling.

For a moment as the newcomer gazed at Sim Colby his expression mirrored some sort of surprise and his lips moved as if to speak, but Spurrier could not see, because Colby's back was turned, the warning glance that shot between the two, and the big fellow's lips closed again without giving utterance to whatever he had been on the point of saying—something to do with eyes that had mystifyingly changed their color.

"Mister Spurrier, this hyar's Sam Mosebury," announced the host. "Mebby ye mout of heered tell of him."

Spurrier nodded. So this was the outlaw against whose terrorism old Cappeze had broken his Quixote lances, the windmill that had unhorsed him; the man with a criminal record at which a wild region trembled.

"I've heered tell of Mr. Spurrier, too," vouchsafed the murderer equably. "He's a friend of old Dyke Cappeze's."

The "furriner" made no denial. Though he had been sitting with his head in the jaws of death ever since he entered this door, it had been without any

presentiment of danger. Now he felt the menace of this terrorist's presence, and that menace was totally fictitious.

"Mr. Cappeze has befriended me," he answered stiffly. "I reckon that's not a recommendation to you, is it?"

The man who had newly entered laughed. He drew a chair forward and seated himself.

"I reckon, Mr. Spurrier, hit ain't none of my business one way ner t'other," he said. "Anyhow, hit ain't no reason why you an' me kain't be friends, is hit?"

"It doesn't make any difficulty with me," laughed Spurrier in relief, "if it doesn't with you."

Sam Mosebury looked at him, then his voice came with a dry chuckle of humor.

"Over at my dwellin' house," he announced with a pleasant drawl, "I've got me a pet mockin'-bird—an' I've got me a pet cat, too. Ther three of us meks up ther fam'ly over thar."

Spurrier looked at the strong-featured face as he prompted, "Yes?"

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"Waal," Sam Mosebury waved his hand, and even his gestures had a spacious bigness about them, "ef God Almighty didn't see fit fer thet thar bird an' thet thar cat ter love one another—I don't seek ter alter His plan. Nonetheless I sets a passel of store by both of 'em." He filled his pipe, then his words became musing, possibly allegorical. "Mebby some day I'll reelax a leetle mite too much in watchin' an' then I reckon ther cat'll kill ther bird—but thet's accordin' ter nature, too, an' deespite I'll grieve some, I won't disgust ther cat none."

That night Spurrier lay on the same shuck-filled mattress with the man whom the law had not been strong enough to hang, and for a while he remained wakeful, reflecting on the strangeness of his bed-fellowship.

But, had he known it, his life was saved that night because the murderer had arrived and provided an interfering presence when the plans on foot required solitude.

CHAPTER XI

Perhaps old Cappeze had spoken too late when he sounded his sharp warning to the newcomer against unsettling the simple contentment of his daughter's mind. Always realizing his transient status in the aloofness of this life, Spurrier had scrupulously guarded his contact with the girl who belonged to it and who had no prospect of escaping it. He had sought to behave to her as he might have behaved to a child, with grave or gay friendliness untouched by those gallantries that might have been misunderstood, yet treating her intelligence with full and adult equality.

But his inclination to see more of her than formerly was one that he indulged because it gave him pleasure and because a failure to do so would have had the aspect of churlishness.

Those self-confessed traces of snobbery that adhered to this courtier at the throne of wealth, were attributes of which the girl saw nothing. Neither did she see the shell of cynicism which Spurrier had cultivated and this was not because her insight failed of keenness, but because in these surroundings they were dormant qualities.

The self that he displayed here was the self of the infectious smile, of the frank boldness and good humor that had made him beloved among his army mess-mates before these more gracious qualities had been winter-killed by misfortune.

So he was the picturesque and charming version of himself, and he became to Glory an object of hero worship, whose presence made the day eventful and whose intervals of absence were filled with dreams of his next coming.

It was about this time that John Spurrier, the "opportunity hound," made a disquieting discovery. It came upon him one night as he sat on the porch of Dyke Cappeze's log house at twilight, with pipes glowing and seductive influences stealing into the senses. Daylight color had faded to the mistiness of tarnished silver except for a lemon afterglow above western ridges that

were violet-gray, and the evening star was a single lantern hanging softly luminous, where soon there would be many others.

Cadenced and melodious as a lullaby fraught with the magic of the solitudes, the night song of frog and whippoorwill rose stealingly out of silence, and the materialist who had been city bound so much since conviction of crime had shadowed his life discovered the thing which threatened danger.

It came to him as his eyes met those of Glory, who sat in the doorway itself—since she, at least, need not fear to show her face to any lurking rifleman.

The yellow lamplight from within outlined the lovely contour of her rounded cheek and throat and livened her hair, but it was not only her undeniable beauty that caused Spurrier sudden anxiety. It was the eyes and what he read in them. Instantly as their gazes engaged she dropped her glance but, in the moment before she had masked her expression, Spurrier knew that she had fallen in love with him. The eyes had said it in that instant when he had surprised them. They had immediately seized back their secret and hidden it away, but not in time.

The opportunity hound rose and knocked the ash from his pipe. He wondered whether old Dyke Cappeze, sitting there inscrutable and dimly shaped in the shadows, had shared his discovery—that grizzled old watchdog who was not too far gone to fight for his own with the strength of his yellowed fangs.

The visitor shook hands and walked moodily home, and as he went he sought to dismiss the matter from his mind. It was all a delusion, he assured himself; some weird psychological quirk born of a man's innate vanity; incited by a girl's physical allurements. He would go to sleep and to-morrow he would laugh at the moonshine problem. But he did not find it so easy to sleep. He remembered one of those men in the islands who had become a melancholiac. The fellow had been normal at one moment; then without warning something like an impenetrable shadow had struck across him. He had never come out of the shadow. So this disquiet—though it was abnormal elation rather than melancholy, had suddenly become a fact with himself, and instead of dismissing it Spurrier found himself reacting to it. Not only was Glory Cappeze in love with him but—absurdity of absurdities—he was in love with Glory!

It was as irreconcilable with all the logic of his own nature as any conceivable thing could be, yet it was undeniably true.

But Spurrier had been there in the hills when summer had overcome winter. He had seen trickles of water grow into freshets and feed rivers. He had seen clouds as large as one's hand swell abruptly into tempests that cannonaded mightily through the peaks, with the lashing of torrents, the sting of lightnings, and the on sweep of hurricanes. He had seen the pink flower of laurel and rhododendron make fragrant magic over wastes of chocolate and slag-gray mountain sides, and in himself something akin to these elemental forces had declared itself. He found himself two men, and though he swore resolutely that his brain should dominate and govern, he also recognized in himself the man of new-born impulses who drew the high air into his chest with a keen elation, and who wanted to laugh at the artificial things that life has wrought into its structure of accepted civilization.

That insurgent part of himself found a truer congeniality in the company of grizzled old Dyke Cappeze than that of Martin Harrison; a stronger comradeship in the frank laugh of Glory than in the cool intelligence of Vivien's smile.

Glory's brain was as alert as quicksilver, and her heart as high and clean as the hills. Yet in his own world these two would be as unplaced as gypsies strayed from their dilapidated caravan. Moreover, it was ordained that he was to win his game and upon him was to be conferred an accolade—the hand, in marriage, of his principal's daughter.

Spurrier laughed a little grimly to himself. Of the woman whose hand had been half-promised him he could think dispassionately and of this other, whom he could not take with him into his world of artificial values, he could not think at all without a pounding of pulses and a tumult which he thought he had left behind him with his early youth.

In character and genuine metal of mind, Glory was the superior of most of those women he knew, yet because she was country bred and trained to a code that did not obtain elsewhere, she could no more be removed from her setting than a blooming eidelweiss could be successfully transplanted in a conservatory. He himself was fixed into a certain place which he had attained by fighting his way, in the figurative sense at least, over the bodies

of the less successful and the less enduring. It was too late for him to transplant himself, and he and she were plants of differing soil, as though one were a snow flower and one a tropic growth.

Also there were immediate things of which to think, such as an unexpired threat upon his life.

Already he had escaped the assassin's first effort, and he had no guess where the enmity lay which had actuated that attack. That it still existed and would strike again he had a full realization. He was not walking in the shadow of dread but, because he knew of the menace lurking where all the faces were friendly, he had begun to feel that companionship of suspense: that nearness of something in hiding under which men lived here; and under which women grew old in their twenties.

And it is not given to a man to live under such conditions, and remain the man who fights only across mahogany tabletops in offices. Yet John Spurrier scornfully reasoned that if he could not remain himself even in a new and altered habitat, he was a weakling, and he had no intention of proving a weakling.

His hand had grasped the plow-haft and, for the present, at least, his loyalty belonged to his undertaking.

This inward conflict went with him as he rode across the singing hills to gather up his mail at the nearest post office and he told himself, "I am a fool to ponder it."

Then his thoughts ran on: "It is dwelling on factitious things that gives them force. Life presents a Janus aspect of the double-faced at times, but a man must choose his way and ignore the turnings. Glory has pure charm. She has a quick mind and a captivating beauty, but so far as I'm concerned, she is simply out of the picture. I could be mad about her, if I let myself—but presumably I am not adrift on a gulf stream of emotionalism."

When he had spent an hour in the dusty little town and turned again into the coolness of the hills, he dismounted under the shade of a "cucumber tree" and glanced through those letters that were still unopened. One envelope was addressed in a hand that tantalized memory with a half sense of the familiar, and Spurrier's brow contracted in perplexity.

Then his face grew abruptly grave. “By heavens!” he exclaimed. “It’s Withers—Major Withers! What can he be writing about?”

He opened it and drew out the sheet of paper, and, as he read, his expression went through the gamut of surprise and incredulity to a settled sternness of purpose that made his face stony.

“If it’s true,” he exclaimed, “the man is mine to kill! No, not to kill, either, but to take alive at all costs.”

He stood for a moment, his sinewy body answering to a tremor of deeply shaken emotion. Had he been mountain-bred and feud-nurtured, the sinister glitter of his eyes could have been no more relentless. He was for that moment a man dedicating himself to the blood oath of vengeance.

Then he composed his features and smoothed out the letter that his clenched fingers had unconsciously crumpled. Again he read what Major Withers had to say:

I am writing because though I infer that you have succeeded in material ways, I have heard nothing of your progress in clearing your name and I know that until that is accomplished, no success will be complete for you.

Quite recently I have had as my striker a fellow named Wiley, who used to be in your platoon—and I have talked with him a good bit. Not long ago he declared to me his belief that Private Grant who is listed as officially dead, did *not* die in the Islands.

He seems to think that Grant made a clean getaway and went back to the Kentucky mountains from which he came. He confesses that he gets this idea from nothing more tangible than casual hints dropped by Private Severance, whose discharge came shortly after you left us, yet his impression is so strong as to amount to conviction. Possibly if you could trace Severance you might learn something. It’s a vague clew, I admit, but I pass it along to you for whatever it may be worth.

Slowly, as though his tireless limbs had grown suddenly old, Spurrier mounted and rode on with reins hanging. He was so deep in thought that he forgot the other unopened letters in his pocket.

Grant might be in these same hills with himself; Grant upon whom his counsel had sought to place the blame for the murder of Captain Comyn. If they could meet alone for the period of a brief interview, either that question would be finally answered or in the reckoning one of them would have to die.

But how to trace him in this ragged territory covering a great and broken area—a territory which God had seemed to build, as a haven and a hiding

place for men who sought concealment? Grant would in all likelihood see him first and—he entertained no illusions as to the result—the deserter would kill him on sight. On the other hand, it would do Spurrier no good to kill Grant. If Grant were to serve him it must be with a confession wrung from living lips, and on oath.

Of course, too, the years would have changed Grant so that if they came face to face he would probably fail to recognize the man he had known only in khaki.

The scarred chin? A beard would obliterate that. The stature? Added weight or lost weight would make it seem another man's.

By processes of elimination Spurrier culled over the possibilities until at length his glance brightened.

In one particular Private Grant could scarcely disguise himself. His eyes were in a fashion mismatched. One was light gray and one pale blue. Yes, if ever they met he would have his clew in that.

And that memory reminded him that he had recently been impressed to an unusual degree by a pair of eyes. Whose were they? Oh, yes, he remembered now. It was the man at whose house he had met Sam Mosebury—Sim Colby who dwelt over beyond Clubfoot Branch.

But Colby's eyes had been noticeable by reason of their extraordinary blackness. So that only helped him in so far as it enabled him to eliminate from all the thousands of possible men the one man, Sim Colby.

The afternoon had spent itself toward sunset as he dismounted and stabled his horse, and it was with a face still somberly thoughtful that he fitted his key into the padlock which held his door and entered.

The interior was dusky in contrast with the outer light, but from one window a shaft of golden radiance slanted inward and in it the dust motes danced.

Spurrier paused and glanced about him, but before he had thrown down the hat he had taken from his perspiring forehead, a sound hideously unmistakable caused his heartbeat to miss its rhythm and pound in commotion.

Every man has his one terror, or, at least, one antipathy which he is unable to treat with customary calmness. With Spurrier it was everything reptilian. In the islands he had dreaded the snake menace more than fever or head hunters. Now, from the darkened floor near his feet came the vicious whirl of rattles, and as his eyes flashed toward the sound he saw coiled there a huge snake with its flat, arrow-shaped head sinuously waving from side to side.

With an agility made lightning-quick by necessity, he leaped aside and, at the same instant, the snake launched itself with such venomous force that the sound of its striking and falling on the puncheon floor was like the lashing of a mule whip. The man had felt the disturbed air of its passing as of a sword stroke that had narrowly missed him.

But he had no leisure to regain the breath that had caught startled in his throat, before, from his left, he heard again the ominous note of warning, and felt his scalp creep with horror. The place which he had left locked and believed to be mosquito proof, now seemed alive with the loathsome trespassers.

As Spurrier leaped for his couch he heard again the sound of a living coil released and its hawserlike lashing of the floor. Now he could see more plainly and, calculating his distance, he jumped for the table from which he could reach the loaded shotgun that hung on his wall. If he fell short, he would come down at their mercy—but he landed securely and without capsizing his support. His elevation gave him a precarious sort of safety, but on the floor below him he counted three rattlesnakes, crawling and recoiling; their cold-blooded eyes following his movements with baleful intentness.

Spurrier was conscious of his trembling hands as he leveled the weapon, and of a crawling sensation of loathing along his spine.

Twice the gun roared, splintering the flooring and spattering its ricochetting pellets, and two of the rattlers twisted in convulsive but harmless writhings. But the third head—and it seemed the largest of the three—had withdrawn under the cot. He was not even sure that these three made up the total. There might be others.

With painstaking care Spurrier came down and armed himself with a stout hickory flail which had been used in other days by some housewife in her primitive laundry work as a “battling stick.”

Then he advanced to the battle, swinging one end of the cot wide and shiftily sidestepping. The rattler which lay in piled circles of coppery length regarded him with steely venom, turning its swaying head deliberately as its enemy circled. With the startling abruptness of an electric buzzer it warned and sprang. He escaped by an uncomfortable margin and attacked it with the flail before it could rearrange its coils. Finally he stood panting with exertion over the scene of slaughter.

As he searched the place with profoundest particularity his mind was analyzing the strange invasion. His house was as tight as he had thought it. There was no cranny that would have let in three large rattlers. How had they come there?

Spurrier went out and studied his door. The hasps that held his padlock were in place, but the woodwork about them had been recently scarred. The lock fastenings had been pulled out and replaced.

With a nervous moisture on his brow the man recognized the fiendish ingenuity of his mysterious enemy. These slithering creatures had come here by human agency as brute accomplices in the murder that had failed from the rifle muzzle. The pertinacity and cunning of the scheme’s anonymous author gave promise of eventfulness hereafter.

Had he been struck, according to the evident intention, as he entered his house, he would probably have died there, unsuccored, leaving the door open. The rattlers would either have found their way out after that, or, when his body was discovered, the open door would have explained their presence inside, and no suspicion of a man’s conspiracy would have remained.

One thing stood out clear in Spurrier’s summing-up. Whatever the source of the enmity which pursued him, it had its nerve center in an ingenious brain and it threw about itself that element of mystery which a timid man would have found terrifying and unendurable. Also it operated with a patience which was a manifest of its unswerving determination. Effort might be

expected to follow effort until success came—or the unknown plotter were discovered and disposed of.

Yet the author of these malignant attempts worked with an unflurried deliberation, allowing passive intervals to elapse between activities, like the volcano that rests in the quiet of false security between fatal eruptions.

Of course, the letter with the mention of Private Grant might be a clew of identity, yet calm reflection discounted that assumption as a wild and unconfirmed grasping out after something tangible.

Perhaps Spurrier as nearly approached the absolute in physical fearlessness as it is given to man to come—but the mystery of a pursuing hatred which could not be openly faced, filled him with a sense of futility, and the futility inspired rage which was unsettling and must be combated.

That night he lay long awake, and after he had fallen asleep he came often to a sudden and wide-eyed wakefulness again at the sound of an owl's call or the creaking of a tree limb.

The next morning found him restless of spirit, and it occurred to him that his secret enemy might be lurking near to inspect the results of his handiwork, so he went down to the road and hung the three dead rattlesnakes along the fence where no passer-by could miss seeing their twisted and mutilated lengths. That should be his retort to any inquiring and hostile eye, that he was alive and the creatures put there to destroy him had paid with their lives.

From a place screened from view he meant to watch that gruesome exhibit and mark its effect upon any one who paused to inspect it. Possibly in that way a clew might be vouchsafed—but he did not at once take cover in the thickets.

It was a glorious morning. The sun had ripped away the mists that, in the mountains, always hang damp and veillike between gray dawning and colorful day. The cool forest recesses were vocal with the twitterings and song from feathered throats.

Spurrier sat down by the road and gave himself up to thoughts that it was safer to banish: thoughts that came with those sights and sounds and that made long-stilled pulses awaken and throb in him.

This morning made him feel Glory's presence and gave him a fine recklessness as to responsibility and consequence. Suddenly he came to himself and seemed to hear the cool cynicism of Martin Harrison's voice inquiring, as it had once actually inquired: "Growing sentimental?"

He pulled himself together and stiffened his expression into one more suitable upon the face of a man who has taken the severe vows of service to a cold ambition.

But a little later he heard a sound and looked up sidewise to see Glory herself standing near him in the road; a materialization of the truant dreams he had been entertaining.

She wore a dress whose simplicity accentuated the slender erectness of her young body and the liveness of her carriage. Her hair hung in braids and the sunbonnet had fallen back from the brightness of her hair. In her eyes played the violet lights of a merriment that lifted and curved her lips beguilingly.

Spurrier came to his feet, and perhaps Glory, who had succumbed to her moment of self-revelation there on the twilight porch, had her revenge now. For that first startled moment as their glances met, the eyes that looked into hers were lover's eyes, and their unspoken message was courtship. If he maintained the stoic's silence forever, as to words, at least his heart had spoken.

"Before Heaven," said the man slowly, and the tremor of his voice was out of keeping with the ingrained poise of his usual self-command, "when they called you Glory, they didn't misname you!"

The girl flushed pink, and he took a step toward her with the absorbed intensity of a sleep-walker.

Glory stood there—watched him coming and did not move. To her, though she had sought to hide it, he had become the One Man. Her unconfessed love had magnified and deified him—and now his own eyes were blazing responsively with love for her!

Suddenly she was shaken by a rapturous tremor that seemed almost like swooning or being lifted on some powerful wave that swept her clear of the earth, so that she made no effort at disguise, but let the laughing light in her eyes become softer, yet more glowingly intense.

It was as if they had met in the free realm of dreams where there are no hamperings of impossibility. As he drew near her, his arms came out, and he halted so that, under that same delightful sense of irresponsibility, it seemed to her quite natural to step into their welcome.

Possibly the happenings of yesterday and the sleepless hours of last night had left Spurrier momentarily light-headed. Certainly had one of the rattlers stung him and poisoned his reason, he could not be doing a thing more foreign to his program of intention.

He felt his arms close about her; felt the fragrance of her breath, found himself pressing his kisses on lips that welcomed them, and forgot everything except that this was a moment of ecstasy and passion.

CHAPTER XII

For a while they stood there together in the narrow road to whose edges the dense greenery came down massed and dewy. Their breath was quick with the excitement of that moment when the hills and the rocks that upheld them seemed to them palpitant and gloriously shaken. Then they heard the lumbering of wheels, and with one impulse that needed no expression in words they turned through a gorge which ran at right angles into the stillness of the woods—and away from interruption.

Spurrier had, it seemed to him, stepped through a curtain in life and found beyond it a door of which he had not known. It seemed natural that he and Glory should be going hand in hand into that place of dreams like children at play and hearing joyous voices that were mute and nonexistent in the world of commonplace and fact.

He did not even pause to reflect that this was a continuation of the same ravine in which an assassin's bullet had once so narrowly missed him. Yesterday, too, was forgotten.

Just now he was young in his heart again, and had love for his talisman. Actuality had been dethroned by some dream wizardry and left him free of obligation to reason. Then he heard Glory's voice low-pitched and a little frightened.

"It kain't—can't—be true. It's just a dream!"

A flash of sanity, like the shock of a cold plunge, brought the thought that, from her lips, had sounded a warning. This was the moment, if ever, to draw back and take counsel of common sense. Now it would be easier than later to abase himself and confess that in this midsummer's madness was no substance or color of reality—that he stood unalterably pledged to her renunciation.

But the earthquake does not still itself at the height of its tremor and the cyclone does not stop dead with its momentum unspent. Years of calculated

and nerve-trying self-command were exacting their toll in the satisfaction of outbreak. Spurrier's emotional self was in volcanic eruption, the more molten and lava-hot for the prolonged dormancy of a sealed crater.

He caught the girl again and pressed her so close that the commotion of her heart came throbbing against him through the yielding softness of her breast; and the agitation of her breath on his face was a little tempest of acquiescent sweetness.

"Doesn't it seem real, now?" he challenged as he released her enough to let her breathe, yet held her imprisoned, and she nodded, radiant-eyed, and answered in a voice half bewildered and more than half burdened with self-reproach.

"I didn't even hang back," she made confession. "I just walked right into your arms the minute you held them out. I didn't seem able to help myself."

Suddenly her eyes, impenitent once more, danced with mischief and her smile broke like a sun flash over her face.

"If I'd had the power of witchcraft, I'd have put the spell on you, Jack," she declared. "I had to make you love me. I just *had* to do it."

"I rather think you had—that power, dear."

He laughed contentedly as a man may who shifts all responsibility for an indiscretion to a force stronger than his own volition.

"You see," she went on as if seeking to make illogic seem logical. "From the first—I couldn't think of you except with storm thoughts. I couldn't keep my heart quiet, when I was with you."

"At first," he reminded her, "you wanted to kill me. I heard you confiding to Rover."

Her eyes grew seriously deep and undefensive in their frankness. It was the candor of a woman's pride in conquest.

"I'm not sure yet," she said almost fiercely, "that I wouldn't almost rather kill you than—lose you to any other girl."

Vaguely and as yet remotely, Spurrier's consciousness was pricked with a forecast of reality's veto, but the present spoke in passion and the future whispered weakly in platitudes.

“You won’t lose me,” he protested. “I’m yours.”

“And yet,” went on Glory, “you seemed a long way off. You were the man who did big things in the world outside. You were—always cool and—calculating.”

“Glory,” his words came with the rush of impetuosity for already the whispers of warning were gaining in volume, and impulse was struggling for its new freedom, “the man you’ve seen to-day is one I haven’t known myself before. Chilled calculation and self-repression have been the articles of my creed. I’ve been crusted with those obsessions like a ship’s hull with barnacles. Did you know that when vessels pass through the Panama Canal, the barnacles drop off?”

She shook her head.

“No,” she said, and her lips twisted into something like wistfulness as she dropped unconsciously into vernacular. “There’s a lavish of things I don’t know. You’ve got to learn ’em all to me—I mean teach them to me.”

“Well,” he went on slowly, “steamers that pass through the fresh water, from salt to salt, automatically cleanse their plates. You’ve been fresh water to me, Glory.”

“Jack,” she declared with tempestuous anxiety, “you say I’ve changed you. I’ll try to change myself, too, all the ways I can—all the ways you want.”

“I don’t want you changed,” he objected. “If you were changed, it wouldn’t be you.”

“Maybe,” she persisted, “you’d like me better if I were taller or had black eyes.”

“I wonder now,” he teased with the whimsey of the moment, “what you would look like with black eyes? I can’t imagine it. Will you do that for me?”

“Come to our house to-night,” she irrelevantly commanded. “Won’t you?”

“Yes,” he said, “I’d come to-night if I had to swim the Hellespont.”

But when he had left her an hour later at the crossroads and started back, his eyes fell on the ugly shapes of the three rattlesnakes, over which he had forgotten to keep watch and which she had not even seen, and yesterday

came back with the impact of undisguised realization. Yesterday and tomorrow stood out again in their own solid proportions and to-day stood like a slender wisp of heart's desire shouldered between uncompromising giants of fact.

Spurrier could no longer deny that his personal world centered about Glory; that away from her would be only the unspeakable bleakness of lonely heart hunger.

But it was equally certain that he could not abandon everything upon which he had underpinned his future, and in that structure was no niche which she could occupy.

Sitting alone in his house with a chill ache at his heart and facing a dilemma that seemed without solution, he knew for once the tortures of terror. For once he could not face the future intrepidly.

He had recognized when the army had stigmatized him and cast him out, that only by iron force and aggression could he break his way through to success. He was enlisted in a warfare captained by financiers of major caliber and committed to a struggle out of which victory would bring him not only wealth, but a place of his own among such financiers—a place which Glory could not share.

He and his principals alike were fighting for the prizes of the looting victor in a battle without chivalry, and whether he won or was crushed by American Oil and Gas, the native landholder must be ground and bruised between the impact of clashing forces. In the trail of his victory, no less than theirs, would be human wreckage.

Sitting before his dead hearth while the afternoon shadows slanted and lengthened, Spurrier wondered what agonies had wracked the heart of Napoleon when he was called upon to choose between Josephine and a dynasty. For even in his travail the egoist thought of himself and his ambitions in Napoleonic terms.

As he sat there alone with silences about his lonely cabin that seemed speaking in still voices of vastness, the poignant personality of his thoughts brought him, by the strange anomaly of life, to realizations that were not merely personal.

Glory had won his heart and it was as though in doing so she had also made his feelings quicken for her people: these people from whose poverty, hospitality and kindness had been poured out to him: these people who had taken him at first with reserve and then accepted him with faith.

He had eaten their bread and salt. He had drunk their illicit whiskey, given to him with no fear that he would betray them even in the lawlessness which to them seemed honorable and fair.

And yet his purpose here, was the single one of enabling a certain group of money-grabbing financiers to triumph over another group at the cost of the mountaineer land-holders. It was not because, if he succeeded, there would not be enough of legitimate profit to enrich all, but because in a campaign of secrecy he could make a confidant of no one. If the enterprise were carried through at all he must have secured, for principals who would abate nothing and give back nothing, the necessary property bought on the basis of barren farming land. Were it his own endeavor he could first plunder and develop and then make restitution, but acting as an agent he could no more do that than the soldier who has unconditionally surrendered, can subsequently demand terms.

The man who had been a plunger at gaming table and race track, who had succeeded as an imitator of schemes that attracted major capital, was of necessity one of imagination. Perhaps had life dealt him different cards, Spurrier would have been a novelist or even a poet, for that imagination which he had put into heavy harness was also capable of flights into phantasy and endowed with something almost mystic.

Now under the stress of this conflict in his mind, as he sat before his hearth in shadows that were vague of light and shape, that unaccustomed surrender to imagination possessed him, peopling the dimness with shapes that seemed actual.

His eye fell upon the empty three-legged stool that stood on the opposite side of the hearth, and as though he were looking at one of those motion picture effects which show, in double negative one character confronting his dual and separate self, he seemed to see a figure sitting there and regarding him out of contemptuous eyes.

It was the figure of a very young man clad in the tunic of a graduating West Point cadet and it was a figure that bore itself with the prideful erectness of one who regards his right to wear his uniform as a privilege of knighthood. For Spurrier was fancying himself confronted by the man he had been in those days of eager forward-looking, and of almost religious resolve to make of himself a soldier in the best meaning of the word. Then as his eyes closed for a moment under the vividness of the fancy, the figure dissolved into its surroundings of shadow and near the stool with folded arms and a bitterer scorn stood a lieutenant in khaki.

“So this is what you have come to be,” said the imaginary Spurrier blighting to the actual Spurrier. “A looter and brigand no better than the false *amigos* that I fought over there. I was a gentleman and you are a cad!”

Had the man been dreaming in sleep instead of wakefulness, his vision could hardly have worn habiliments of greater actuality, and he found himself retorting in hot defensiveness.

“Whatever I am you made me. It was you who was disgraced. It is because I was once you that I am now I. You left me no choice but to fight with the weapons that came to hand, and those weapons were predatory.... If I have deliberately hardened myself it is only as soldiers of other days put on coats of mail—because soft flesh could not survive the mace and broadsword.”

“And when you win your prizes, if you ever win them,” the accusing vision appeared to retort, “you will have paid for them by spending all that was honorable in yourself; all that was generous and soldierly. When you were I, you led a charge across rice paddies without cover and under a withering fire. For that you were mentioned in dispatches and you had a paragraph in the Army and Navy Journal. Have you ever won a prize since then, that meant as much to you?”

John Spurrier came to his feet, with a groan in his throat. His temples were moist and marked with a tracery of outstanding veins and his hands were clenched.

“Good God!” he exclaimed aloud. “Give me back the name and the uniform I had then, and see how gladly I’ll tell these new masters to go to hell!”

Startled at the sound of his own voice arguing with a fantasy as with a fact, the man sank back again into his chair and covered his face with his spread

hands. But shutting out sight did not serve to shut out the images of his fancy.

He saw himself hired out to “practical” overlords and sent to prey on friends, then he rose and stood confronting the empty stool where the dream-accuser in uniform had stood and once more he spoke aloud. As he did so it seemed that the figure returned and stood waiting, stern and noncommittal, while he addressed it.

“Give me the success I need, and the independence it carries, and I’ll spend my life exonerating my name. I’ll go back to the islands and live among the natives till I find a man who will tell the truth. I’ll move heaven and earth—but that takes money. I’ve always stood, in this business, with wealth just beyond my grasp—always promised, never realized. Let me realize it and be equipped to fight for vindication. These men I serve have the prizes to dispense, but I am bound hand and foot to them. They take their pay in advance. Once victorious I can break with them.”

“And these people who have befriended you,” questioned the mentor voice, “what of them?”

“I love them. They are her people. I shall seem to plunder them, but if my plans succeed I shall be in a position to make terms—and my terms shall be theirs. Until I succeed I must seem false to them. God knows I’m paying for that too. I love Glory!”

Suddenly Spurrier wiped a hand across a clammy forehead and stood looking about his room, empty save for himself. He seemed a man who had been through a delirium. But he reached no conclusion, and when twilight found him tramping toward the Cappeze house it was with a heart that beat with anticipation—while it sought refuge in postponed decision.

When Glory received him in the lamp-lighted room he halted in amazement, for the girl who stood there with a mischievous smile on her lips no longer looked at him out of eyes violet-blue, but black as liquid jet.

“How did you do that?” he demanded in a voice blank with astonishment. “It’s a sheer impossibility!”

“Maybe it’s witchcraft, Jack,” she mocked him.

“Can you change them back?” he asked a little anxiously, and she shook her head.

“No, but they’ll change of themselves in a day or two.”

“I reckon,” commented Dyke Cappeze, looking up from his book by the table, “I oughtn’t to give away feminine secrets, but it’s a right simple matter, after all. She just put some Jimson-weed juice in her eyes and the trick was done.”

“Jimson weed,” echoed the visitor, and the elder nodded.

“If you happen to remember your botany, you’ll recall that its longer name is *Datura stramonium*—and it’s a strong mydriatic. It swells the pupil and obliterates the iris.”

It was walking homeward with a low moon overhead that evening that Spurrier’s thoughts found time to wrestle with other problems than those affecting himself and Glory. The incident of the black eyes had at first interested him only because they were *her* eyes, but now he thought also of the episode of the rattlesnakes and the letter from Major Withers.

In his first analysis of what that letter might mean to him he had decided that his man would be recognizable by his mismated eyes. He had recalled Sim Colby’s black ones while thinking of unusual eyes in general and had, in passing, set him down as one who stood alibied.

Now, in the light of this Jimson-weed discovery, those black eyes took on a new interest. Presumably it was a trick commonly known in these hills. *If* Colby’s eyes had been so altered—and they had seemed unnatural in their tense blackness—it must have been with a deliberate and sufficient motive. Sim Colby was not making his pupils smart and sting as a matter of vanity. A man resorting to disguises seeks first to change the most salient notes of his appearance.

Spurrier recalled, with the force of added importance, the surprised look on Sam Mosebury’s face when that genial murderer, upon his arrival, had stifled some impulse of utterance.

Suspicion of Colby was perhaps far-fetched, but it took a powerful hold on Spurrier, and one from which he could not free himself. At all events, he

must see this Sim Colby when Colby did not know he was coming—and look at his eyes again.

So he made a second trip across the hills to the head of Little Quicksand, and for the sake of safeguarding against any warning going ahead of him, he spoke to no one of his intention.

This time he went armed with an automatic pistol and a very grim purpose. When they met—if the mountaineer's eyes were no longer black—he would probably need both.

But once again the opportunity hound encountered disappointment. He found a chimney with no smoke issuing from it and a door barred. The horse had been taken out of the stable and from many evidences about the untenanted place he judged that the man who lived alone there had been absent for several days.

To make inquiries would be to proclaim his interest and prejudice his future chances of success, so he slipped back again as surreptitiously as he had come, and the determination which he had keyed to the concert pitch of climax had to be laid by.

At home again he found that the love which he could neither accept nor conquer was demoralizing his moral and mental equipoise. He could no longer fix and hold his attention on the problems of his work. His spirit was in equinox.

The only solution was to go to Glory and tell her the truth, for if he let matters run uncontrolled their momentum would become unmanageable. It was the simple matter of choosing failure with her or success without her, and he had at last reached his decision. It remained only to tell her so.

It had pleased John Spurrier to find a house upon an isolated site from which he could work unobserved, while he maintained his careful semblance of idleness. His nearest neighbor was a mile away as the crow flew, and Dyke Cappeze almost two miles. Even the deep-rutted highroad, itself, lay beyond a gorge which native parlance called a “master shut-in.”

Now that remoteness pleased his enemies as well. Former efforts toward his undoing had been balked by accidents. One must be made that could have no chance to fail and an isolated setting made for success. Matters that required deft handling could be conducted by daylight instead of under a

tricky moon. It was a good spot for a “rat-killing” and Spurrier was to be the rat.

It was well before sunset on a Thursday afternoon that rifle-armed men, holding to the concealment of the “laurel hells,” began approaching the high place above and behind Spurrier’s house. They came from varying directions and one by one. No one had seen any gathering, for the plans had been made elsewhere and the details of liaison perfected in advance. Now they trickled noiselessly into their designated posts and slowly drew inward toward the common center of the house itself.

Spurrier who rode in at mid-afternoon from some neighborhood mission commented with pleasure upon the cheery “Bob Whites” of the quail whistling back in the timber.

They were Glory’s birds, and this winter he would know better than to shoot them!

But they were not Glory’s birds. They were not birds at all, and those pipings came from human throats, establishing touch as the murder squad advanced upon him to kill him.

The man opened a package which had come by mail and drew from its wrappings the portrait of a girl in evening dress with a rope of pearls at her throat. Its silver frame was a counterpart of the one which had stood on Martin Harrison’s desk that night when Spurrier had lifted it and Vivien’s father had so meaningfully said: “Make good in this and *all* your ambitions can be fulfilled.”

Now Spurrier set the framed picture on the table at the center of the room and it seemed to look out from that point of vantage with the amused indulgence of well-bred condescension upon the Spartan simplicity of his house—the rough table and hickory-withed chairs, the cot spread with its gray army blanket.

The man gave back to the pictured glance as little fire of eagerness as was given out from it.

Just now Vivien seemed to him the deity and personification of a creed that was growing hateful, yet one to which he stood still bound. He was like the priest whose vows are irrevocable but whose faith in his dogma has died,

and to himself he murmured ironically, “‘The idols are broke in the temple of Baal’—and yet I’ve got to go on bending the knee to the debris!”

But when he turned on his heel and looked through the door his face brightened, for there, coming over the short-cut between Aunt Erie Toppit’s and her own home, was Glory, carrying a basket over which was tied a bit of jute sacking.

She came on lightly and halted outside his threshold.

“I’m not comin’ visitin’ you, Mr. John Spurrier,” she announced gravely despite the twinkle in her eyes. “I’m bent on a more seemly matter, but I’m crossin’ your property an’ I hope you’ll forgive the trespass.”

“Since it’s you,” he acceded in the same mock seriousness, “I’ll grant you the right of way. You paid the toll when you let me have a glimpse of you.”

“And this is your house,” she went on musingly. “And I’ve never seen inside its door. It seems strange, somehow, doesn’t it?”

Spurrier laughed. “Now that you’re here,” he suggested, “you might as well hold an inspection. It’s daylight and we can dispense with a chaperon for ten minutes.”

She nodded and laughed too. “I guess the granny-folk would go tongue wagging if they found it out. Anyhow, I’m going to peek in for just a minute.”

She stepped lightly up to the threshold and looked inside, and the slanting shaft from the window fell full on the new photograph of Vivien Martin, so that it stood out in the dim interior emphasized by the flash of its silver frame.

Glory went over and studied the face with a somewhat cryptic expression, but she made no comment and at the door she announced:

“I’ll be goin’ on. You can have three guesses what I’ve got in this basket.”

But Spurrier, catching sight of a bronze tail-quill glinting between the bars of the container, spoke with prompt certainty.

“One guess will be enough. It’s one of those carrier pigeons that Uncle Jimmy Litchfield gave you.”

“You peeped before you guessed,” she accused. “I’m going to leave it with Aunt Erie and let her take it to Carnettsville with her to-morrow and set it free.”

“Compare your watches,” advised the man, “and get her to note the time when she opens the basket. Then you can time the flight.”

Glory shook her head and laughed. “I don’t own any watch,” she reminded him. “And even if I did I misdoubt if Aunt Erie would have anything to compare it with—unless she carried her alarm clock along with her.”

“Wait a minute,” admonished the man, as he loosened the strap of his wrist watch, “I’ve two as it happens—and a clock besides. You keep this one and give Aunt Erie my other. I’ll get it for you and set it so that they’ll be together to the second.”

He wheeled then and went into the room at the back and for a few minutes, bachelor-like he rummaged and searched for the time-piece upon which he had supposed he could lay his fingers in the dark.

Yet Spurrier’s thought was not wholly and singly upon the adventure of timing the flight of a carrier pigeon. In it there lurked a sense of half-guilty uneasiness, which would have been lighter had Glory asked some question when she gazed on the picture which sat in a seeming place of honor at the center of his room. Her silence on the subject had seemed casual and unimportant, yet his intuition told him that had it been genuinely so, she would have demanded with child-like interest to be told who the woman might be with the high tilted chin and the rope of pearls on her throat. The taciturnity had sprung, he fancied, less from indifference than from a fear of questioning, and when he came quietly to the door, he stood there for a moment, then drew back where he would not be so plainly visible.

For Glory had returned to the table and stood with her eyes riveted on the framed portrait. Unconscious of being observed her face was no longer guarded of betrayal, and in the swift expressiveness of her delicate features the man read a gamut and vortex of emotion as eloquent as words. The jealousy which her pride sought to veto, the doubt which her faith strove to deny, the realization of her own self-confessed inferiority in parallel with this woman’s aristocratic poise and cynical smile, flitted in succession across the face of the mountain girl and declared themselves in her eyes.

For an instant the small hands clenched and the lips stirred and the pupils blazed with hot fires, so that the man could almost read the words that she shaped without sound: "He's mine—he ain't your'n—an' I ain't goin' ter give him up ter ye!"

Spurrier remembered how she had declared she would almost rather see him die than surrender him to another girl.

Then out of the face the passion faded and the deep eyes widened to a suffering like that of despair. The sweetly curved lips drooped in an ineffable wistfulness and the smooth throat worked spasmodically, while the hands went up and covered the face.

Spurrier drew back into the room into which Glory could not see, and then in warning of his coming spoke aloud in a matter-of-fact voice. "I've found it," he declared. "It was hiding out from me—that watch."

When, after that preface, he came back, Glory was standing again in the doorway and as she turned, she presented a face from which had been banished the storm of her recent agitation.

He handed her the watch which she took with a steady hand, and a brief but cheery, "Farewell."

As she started away Spurrier braced himself with a strong effort and inquired: "Glory, didn't you have any question to ask me—about the girl—in the frame?"

She halted in the path and stood looking down. Her lowered lids hid her eyes, but he thought her cheeks paled a shade. Then she shook her head.

"Not unless it's something—you want to tell—without my asking," she announced steadfastly.

For over a week he had struggled to bring himself to his confession and had failed. Now a sudden impulse assured him that it would never be easier; that every delay would make it harder and blacken him with a heavier seeming of treason. Vivien's portrait served as a fortuitous cue, and he must avail himself of it.

This was the logical time and place, when silence would be only an unuttered lie and when procrastination would strip him of even his residue of self-respect. To wait for an easy occasion was to hope for the impossible

and to act with as craven a spirit as to falter when the bugle sounded a charge.

Yet he remained so long silent that Glory, looking up and reading the hard-wrung misery on his face and the stiff movement of the lips that made nothing of their efforts, knew, in advance, the tenor of the unspoken message.

She closed her eyes as if to shut out some sudden glare too painful to be borne, and then in a quietly courageous voice she helped him out.

“You *do* want to tell me, Jack. You want to take back—what you said—over there—don’t you?”

Spurrier moistened his lips, with his tongue. “God knows,” he burst out vehemently, “I don’t want to take back one syllable of what I said—about loving you.”

“What is it, then?”

“Come inside, please,” he pleaded. “I’ll try to explain.”

He went stumblingly ahead of her and set a chair beside the table and then he leaned toward her and sought for words.

“I love you, Glory,” he fervently declared. “I love you as I didn’t suppose I could love any one. To me you are music and starlight—but I guess I’m almost engaged to her.” He jerked his head rebelliously toward the portrait.

Glory was numb except for a dull, very present ache that started in her heart and filled her to her finger tips, and she made no answer.

“Her father,” Spurrier forced himself on, “is a great financier. I’m his man. I’m a little cog in a big machine. It’s been practically understood that I was to become his son-in-law—his successor. I’m too deep in, to pull out. It’s like a soldier in the thick of a campaign. I’ve got to go through.”

That seemed an easier and kinder thing to say than that she herself was not qualified for full admittance into the world of his larger life.

“You knew this—the other day—as well as now,” she reminded him, speaking in a stunned voice, yet without anger.

“So help me God, Glory—I had forgotten—everything but—you.”

“And now,” she half whispered in a dulled monotone, “you remember all the rest.”

She sat there with the basket on the puncheon floor at her feet, and her fingers twisted themselves tautly together. Her lips, parted and drooping, gave her delicate face a stamp of dumb suffering, and Spurrier’s arms ached to go comfortingly around her, but he held himself rigid while the silence lengthened. The old clock on the mantel ticked clamorously and outside the calls of the bobwhites seemed to grow louder and nearer until, half-consciously, Spurrier noted their insistence.

Then faintly, Glory said: “You didn’t make me any promise. If you had—I’d give it back to you.”

She rose unsteadily and stood gathering her strength, and Spurrier, struggling against the impulse which assailed him like a madness to throw down the whole structure of his past and designed future and sweep her into his arms, stood with a metal-like rigidity of posture.

Whatever his ultimate decision might be, he kept telling himself, no decision reached by surrender to such tidal emotion at a moment of equinox could be trusted. Glory herself would not trust it long.

So while the room remained voiceless and the minds of the man and the girl were rocking in the swirl of their feelings, the physical senses themselves seemed, instead of inert, preternaturally keen—and something came to Spurrier’s ears which forced its way to his attention through the barrier of his abstraction.

Never had the calls of the quail been so frequent and incessant before, but this sound was different, as though some one in the nearby tangle had stumbled and in the effort to catch himself had caught and shaken the leafage.

So the man went to the door and stood looking out.

For a moment he remained there framed and exposed as if painted upon a target, and—so close that they seemed to come together—two rifles spoke, and two bullets came whining into the house. One imbedded itself with a soggy thud in the squared logs of the rear wall but one, more viciously directed by the chances of its course, struck full in the center of the glass

that covered the pictured face of Vivien Harrison and sent the portrait clattering and shattered to the floor.

In an instant Spurrier had leaped back, once more miraculously saved, and slammed the door, but while he was dropping the stanch bar into its sockets, a crash of glass and fresh roars from another direction told him that he was also being fired upon through the window. That meant that the house was surrounded.

“Who are they, Jack?” gasped the girl, shocked by that unwarned fusillade into momentary forgetfulness of everything, except that her lover was beset by enemies, and the man who was reaching for his rifle, and whose eyes had hardened into points of flint, shook his head.

“Whoever they are,” he answered, “they want me—only me—but it would be death for you to go out through the door.”

He drew her to a shadowed corner out of line with both door and window, and seized her passionately in his arms.

“If we—can’t have each other——” he declared tensely, “I don’t want life. You said you’d almost rather see me killed than lose me to another woman. Now, listen!”

Holding her close to his breast, he drew a deep breath and his narrowed eyes softened into something like contentment.

“If you tried to go out first, you’d die before they recognized you. They think I’m alone here and they’ll shoot at the first movement. But if *I* go out first and fight as long as I can then they’ll be satisfied and the way will be clear for you.”

She threw back her head and her hysterical laugh was scornful.

“Clear for me after *you’re* dead!” she exclaimed. “Hev ye got two guns? We’ll both go out alive or else neither one of us.”

Then suddenly she drew away from him, and he saw her hurriedly scribbling on a scrap of paper. Outside it was quiet again.

Glory folded the small sheet and took the pigeon from its basket and then, for the first time, Spurrier, who had forgotten the bird, divined her intent.

He was busying himself with laying out cartridges, and preparing for a siege, and when he looked up again she stood with the bird against her cheek, just as she had held the dead quail on that first day.

But before he could interfere she had drawn near the window and he saw that to reach the broken pane and liberate the pigeon she must, for a moment, stand exposed.

He leaped for her with a shout of warning, but she had straightened and thrust the bird out, and then to the accompaniment of a horrible uproar of musketry that drowned his own outcry he saw her fall back.

Spurrier was instantly on his knees lifting the drooping head, and as her lids flickered down she whispered with a pallid smile:

“The bird’s free. He’ll carry word home—if ye kin jest hold ’em back fer a spell and——”

CHAPTER XIII

The window through whose broken pane Glory had dispatched her feathered messenger could not be seen into from the exterior. That was a temporary handicap for the besiegers and one upon which, in all their forethought, they had not calculated. It happened that at this hour of the afternoon the slanting sun struck blindingly upon the glass that still remained unbroken and confused the ambushed eyes that raked the place from advantageous points along the upper slopes.

So when Glory had risen there for an instant, against the window itself, the vigilant assassins had been able to make out only the unidentified shadow of a figure moving there, and upon that figure, at point-blank range, they had loosed their volley. Whose figure it was they could not tell, and since they believed their intended victim to be alone they did not question. In the confusion of the instant, with the glare on windowpanes, they missed the spot of light that rose phoenixlike as the pigeon took flight. The frightened bird mounted skyward unnoted and flustered by the bellowing of so much gunnery.

But Spurrier's shout of horror was heard by the besiegers and misinterpreted as a cry wrung from him under a mortal wound.

The assailants had not seen nor suspected Glory's approach because she had come from the front, and had arrived before they, drawing in from the rear and sides, had reached their stations commanding a complete outlook. They had assumed their victim to be in solitary possession and now they also assumed him to be helpless—perhaps already dead.

Yet they waited, following long-revered precepts of wariness, before going onward across the open stretch of the dooryard for an ultimate investigation. He might die slowly—and hard. He might have left in him enough fight to take a vengeful toll of the oncoming attackers—and they could afford to make haste slowly.

So they settled down in their several hiding places and remained as inconspicuous as grass burrowing field mice. The forest cathedral which they defiled seemed lifeless in the hushed stillness of the afternoon as the sun rode down toward its setting.

John Spurrier, inside the house, living where he was supposed to be dead, at first made no sound that carried out to them across the little interval of space.

He was kneeling on the floor with the girl's head cradled on his knees and in his throat sounded only smothering gasps of inarticulate despair. These low utterances were animal-like and wrung him with the agonies of heartbreak. He thought that she must have died just after the whisper and the smile with which she had announced her success in her effort to save him.

Kneeling there with the bright head inert on his corduroy-clad knee, he fancied that the smile still lingered on her lips even after she had laid down her life for him five minutes from the time he had forsworn her.

Now that she was gone and he about to go, he could recognize her as ¹⁷⁸a serene and splendid star shining briefly above the lurid shoddiness of his own grasping life—and the star had set.

At first a profoundly stunned and torpid feeling held him numb; a blunt agony of loss and guilt, but slowly out of that wretched paralysis emerged another thought. He was helpless to bring her back and that futility would drive him mad unless out of it could come some motive of action.

She was not only dead, but dead by the hands of murderers who had come after him—and all that remained was the effort to avenge her. Like waters moving slowly at first but swelling into freshet power, wrath and insatiable thirst for vengeance swept him to a sort of madness.

Here he was kneeling over the unstirring woman he had loved while out there were the murder hirelings who had brought about the tragedy. Her closed and unaccusing eyes, exhorting him as passionate utterances could not have done, incited him to a frenzy. At least some of these culprits must go unshriven, and by his own hand to the death that inevitably awaited himself.

And as Spurrier's flux of molten emotions seethed about that determination a solidifying transition came over him and his brain cleared of the blind spots of fury into the coherency of a plan.

Out there they would wait for a while to test the completeness of their success. If he gave way to his passion and challenged them as inclination clamored to do, they would dispatch him at leisure.

Just now he was willing enough to die, but entirely unwilling to die alone. He craved company and a red journey for that final crossing. So once more he looked down into the face on which there was no stir of animation, then very gently bent and kissed the quiet lips.

"If you could come back to me," he chokingly whispered, "I'd unsay everything, except that I love you. But if there's a meeting place beyond, I'll join you soon—when I've made them pay for you."

He lifted her tenderly and, through his agitation, came a sudden realization of how light she was as he laid her gently on his army cot. After that he picked up his rifle and bulged out his pockets with cartridges.

The cockloft above his room, which was reached by a ladder, had windows which were really only loopholes and from there he could better see into the tangle that sheltered his enemies.

He entertained no vain hope of rescue. He asked for no deliverance. The story drew to its ending and he meant to cap it with the one climax to which the last half hour had left anything of significance. Since small things become vastly portentous when written into the margin between life and death, he hoped that before he died he might recognize the face of at least one of the men whom he meant to take with him across the River of Eternity.

So, dedicating himself to that motive, he climbed the ladder.

Peering out through first one and then the other of the loopholes of the cockloft, he waited, and it seemed to him that he waited eternally. He began to fear that his self-sure attackers would content themselves with an inactive vigil and that after all he was to be cheated.

The sun was westering. The shadows were elongating. The sounds through the woods were subtly changing from the voices of day to those of

approaching night.

Still he waited.

Outside also they were waiting; waiting to make sure that it was safe to go in and confirm their presumption that he had fallen.

But when Spurrier had, in a little time as the watch recorded it, served out his purgatorial sentence, he sensed a stir in the massed banks of the laurel and thrust his rifle barrel outward in preparation for welcome. A moment afterward he saw a hat with a downturned brim—a coat with an upturned collar—a pair of shoulders that hunched slowly forward with almost imperceptible movement. His mind had become a calculating machine now, functioning with deliberate surety.

The unrecognizable figure out there was a hundred yards away and the rifle he held would bore through the head under the hat crown at that range as a gimlet bores through a marked spot on soft pine.

But a single shot would end the show. No one else would appear and even the dead man would be hauled back by his heels—unidentified. He would wait until he could make his bag of game more worth dying for—more worth *her* dying for!

Other ages seemed to elapse before the butternut figure showed stretched at length in the tall grass outside the thicket and a second hat appeared. Still Spurrier held his fire until three hats were visible and the first man, having crawled to a tree trunk, had half risen.

He realized that he could not much longer hold it. At any moment they might rush the place in force of numbers, and from more than one side, smothering his defense—and once in contact with the walls they would need only a lighted torch.

So he sighted with target-range precision and fired, following the initial effort with snap-shots at the second and third visible heads.

He had the brief satisfaction of seeing the first man plunge forward, clawing at the earth with hands that dropped their weapon. He saw the second stumble, recover himself, stumble again and then start crawling backward with a disabled, crablike locomotion, while the third figure turned, unharmed, and ran to cover. But at the same moment he heard shouts and

shots from the other side which called him instantly to the opposite loophole and, once there, kept him pumping his rifle against what appeared to be a charge of confused figures that he had no leisure to inspect. They, too, fell back under the vigor of his punishment, and Spurrier found himself reloading in a silence that had come as suddenly as the noise of the onrush.

He had shot down two assailants, but both had been retrieved beyond sight by their confederates, and the besieged man groaned with a realization of defeated purpose. The sun was low now and soon it would be too dark to see. Then the trappers would close in and take the rat out of the trap. What he failed to do while daylight lasted, he would never do.

In only one respect did his judgment fail him as he sought to forecast the immediate future. It seemed to him that he had spent hours there in the cockloft, whereas perhaps thirty minutes had elapsed.

He had been thinking of the pigeon, but had put aside hope as to succor from that agency. Old Cappeze was not interested in pigeons. The bird would go to roost in its dovecote and sit all night with its head tucked placidly under its wing—and the plea for help unread on its leg—and the lawyer would never think of looking into the dovecote.

Now, since he had failed and must die unavenged—for the wounding of two unidentified enemies failed of satisfaction—he must utilize what was left of life intensively. Once more before he died, he wanted to see the face of the woman whom he had forsworn; the woman who was worth infinitely more than the tawdry regards for which he had given her up.

So he went down the ladder and knelt beside the cot.

He laid his ear close to the bosom and could have sworn that it fluttered to a half heartbeat.

Suddenly Spurrier closed his hands over his face and for the first time in years he prayed.

“Almighty Father,” he pleaded, “give her back to me! Give me one other chance—and exact whatever price Thy wisdom designates.”

To Toby Austin’s meager farm, which abutted on that of Dyke Cappeze, that afternoon had trudged Bud Hawkins. In all the mountain region thereabout his name was well known and any man of whom you had asked information

would have told you that Bud was “the poorest and the righteousest man that ever rode circuit.”

For Bud was among other things a preacher. To use his own words, “I farms some, I heals bodies some, an’ I gospels some.” And in each of his avocations he followed faithfully the lights of his conscience.

His own farm lay a long way off, and now he was here as a visitor. This afternoon he fared over to the house of Dyke Cappeze as was his custom when in that neighborhood. He regarded Cappeze as a righteous man and a “wrastler with all evil,” and he came bearing the greetings of a brotherhood of effort.

The sun was low when he arrived, and the old lawyer confessed to a mild anxiety because of Glory’s failure to return before the hour which her clean-cut regularity fixed as the time of starting the supper preparations.

“She took a carrier pigeon over to Aunt Erie Toppit’s,” explained Dyke, “and I looked for her back before now.”

“I sometimes ’lows, Brother Cappeze,” asserted the visitor with an enthusiasm of interest, “thet in these hyar days of sin when God don’t show Hisself in signs an’ miracles no more, erbout ther clostest thing ter a miracle we’ve got left, air ther fashion one of them birds kin go up in ther air from any place ye sots hit free at an’ foller ther Almighty’s finger pointin’ home.”

Cappeze told him that there was just now only one pigeon in the dovecote, where the pair belonged, but that one he offered to show, and idly be led the way to the place back above the henroosts.

It is, however, difficult for any man to sink his own absorptions in those of another, and so it fell about that on the way Cappeze stopped at the barn he was building and which was not yet quite complete.

“Brother Hawkins,” he said, “as we go along I want to show you the barn I’ve been planning for years—and at last have nearly realized.”

In the crude, unfinished life of the hills, lean-tos and even rock ledges are pressed into service as barns, but the man who has erected an ample and sound structure for such a purpose, stamps himself as one who “has things hung up,” which is the mountain equivalent for wealth.

“That barn,” explained Cappeze, pausing before it in expansiveness of mood, “is a thing I’ve wanted ever since I moved over here. A good barn stands for a farm run without sloven make-shift—and that one cost me well-nigh as much money as my dwelling house. I reckon it sounds foolish, but to me that building means a dream come true after long waiting. I’ve skimped myself saving to build it, and it’s the apple of my eye. If I saw harm come to it, I almost think it would hurt me more than to lose the house I live in.”

“I reckon no harm won’t come ter hit, Brother Cappeze,” reassured the other. “Yit hit mout be right foresighted to insure hit erginst fire an’ tempest.”

“Of course I will—when it’s finished,” said the other as he led the way inside, and then as he played guide, he forgot the pigeons and swelled with the pride of the builder, while time that meant life and death went by, so that it was quite a space later that they emerged again and went on to the destination which had first called them.

But having arrived there, the elder man halted and his face shadowed to a disturbed perplexity.

“That’s strange,” he murmured. “One pigeon’s inside—the hen—and there’s the cock *trying* to get in. It’s the bird Glory took with her. It must have gotten away from her.”

“Pears like ter me,” volunteered the preacher, “hit’s got some fashion of paper hitched on ter one leg. Don’t ye dis’arn hit, Brother Cappeze?”

Cappeze started as his eyes confirmed the suggestion. Hurriedly he ran up the ladder to the resting plank where the bird crooned and preened itself, plainly asking for admittance to its closed place of habitation. Perhaps his excited manner alarmed the pigeon, which would alight on Glory’s shoulder without a qualm, for as the man reached out his hand for it, it flutteringly eluded him and took again to the air.

But now his curiosity was aroused. Possibly Glory meant to stay the night at Aunt Erie’s and had sent him her announcement in this form. He went for grain and scattered it, and after repeated efforts succeeded in capturing the messenger.

But when he loosened the paper and read it his face went abruptly white and from his lips escaped an excited “Great God!”

He thrust the note into the preacher’s hand and rushed indoors, emerging after a few minutes with eyes wildly lit and a rifle in his hands. Bud Hawkins understood, for he had read in the interval the scribbled words:

Stopped at Jack Spurrier’s house. It’s surrounded. Men are shooting at us on all sides.

Dyke Cappeze was the one man to whom Spurrier had confided both the circumstances of his mysterious waylaying and the matter of the rattlesnakes and now the father was not discounting the peril into which his daughter had strayed.

“I’m going on ahead, Brother Hawkins,” he announced. “I want you to send out a general alarm and to follow me with all the armed men you can round up.” There he halted in momentary bewilderment. In that sparsely peopled territory the hurried mustering of an adequate force on such short order was in itself almost an impossibility. There were no means of communication. Abruptly, the old lawyer wheeled and pointed a thin and quivering index finger toward his beloved barn.

“There’s just one way,” he declared with stoical directness. “All my neighbors will come to fight a fire. I’ve got to set my own barn to get them here!”

Five minutes later the structure sent up its black massed summons of smoke, shot with vermillion, as the shingles snapped and showed glowingly against the black background of vapor, even in the brightness of the afternoon.

Dyke Cappeze himself was on his way, and the preacher remaining behind was meeting and dispatching each hurried arrival. As he did so his voice leaped as it sometimes leaped in the zealot’s fervor of exhortation, and he sent the men out into the fight with rifle and shotgun as trenchantly as he expounded peace from the pulpit.

When a dozen men had ridden away, scattering gravel from galloping hoofs, he rode behind the saddle cantle of the last, for it was not his doctrine to hold his hand when he sent others into battle. Also he might be needed there as a minister, a doctor, or both.

As sunset began to wane to twilight the attackers who lay circled about Spurrier's cabin found themselves growing restive.

And inside John Spurrier was a man reanimated by the faint signs of life which he had discovered in Glory.

A pulse still fluttered in her heart, but it throbbed flickeringly and its life spark was pallid. Every moment this malevolent pack held its cordon close was as surely a moment of strangling her faint chance as if their fingers had been physically gripping her soft throat. And he could only kneel futilely beside her and wait!

From his loopholes upstairs he saw once more two hats and gave their wearers shot for shot, but when they kept their rifles popping he suspected their purpose and dashed across the floor in time to send three rapidly successive bullets into a little group that had detached itself from the timber on that side and was creeping toward the house. One crawling body collapsed and lay sprawling without motion. Two others ran back crouching low and were lost to sight.

So he swung pendulumlike from side to side, firing and changing base, and when his second turn brought him to the window through which he had shot his man, he saw that the body had already been removed from sight.

CHAPTER XIV

It was a hopeless game and a grim one. He could not cover all the defenses long in single-handed effort, and the best he could hope for was to die in ample companionship. Now, two men had reached broad-girthed oaks, halfway between thicket and house. There they were safe for the next rush.

So this was the end of the matter! Spurrier reloaded his rifle and went down the ladder. Hastily he carried Glory into the room at the back and overturned his heavy table to serve as a final barricade. He elected to die here when they swarmed the door from which he could no longer keep them, crowning the battle with a finale of punishment as they crowded through the breach.

But the minutes dragged with irksome tension. He was keyed up now, wire-tight, for the finish, and yet silence fell again and denied him the relief of action. To Spurrier it was like a long and cruel delay imposed upon a man standing blindfolded and noosed on the scaffold trap. Then the quiet was ripped with a totally wasteful fusillade, as though every attacker outside were pumping his gun in a contest of speed rather than effect.

Spurrier smiled grimly. Let them burn their powder—he would have his till they massed in front of his muzzle and the barrier fell.

“When the barrier fell!” Crouched there behind the table where he meant to sell his life in that brief space that seemed long, the words brought with them the memory of one of the few poems that had ever meant much to him—and while he awaited death his mind seized upon the lines—a funeral address in soliloquy!

“For the journey is done and the summit attained,
And the barriers fall——”

He strained his ears to his listening and then through his head ran other verses:

“I was ever a fighter, so—one fight more,
The best and the last!
I would hate that Death bandaged my eyes and forebore
And bade me creep past——”

Was that a battering-ram against timber that he heard? He fingered the trigger.

“Then a light, then thy breast,
O thou soul of my soul! I shall clasp thee again,
And with God be the rest!”

But the door did not fall. The rifle cracking became interspersed with alarmed outcries of warning and confusion. He could even hear the brush torn with the hurried tramping of running feet, and then the pandemonium abruptly stopped dead, and after a long period of inheld breath there followed a loud rapping on the door and a voice of agonized anxiety shouted:

“In God’s name open if ye’re still alive. It’s Cappeze—and friends!”

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The psychological effect of that recognized voice upon John Spurrier, and of its incredible meaning, was strange to the point of grotesquerie. Its sound carried a complete reversal of everything to which his mind had been focussed with a tensivity which had keyed itself to the acceptance of a violent death, and with the reversal came reaction. There was no interim of preparation for the altered aspect of affairs. It was precisely as though a runaway train furiously speeding to the overhang of an unbridged chasm had suddenly begun dashing in the contrary direction with no shade of lessening velocity, and no grinding of breaks to a halt between time.

Spurrier had taken no thought of physical strain. He had not known that he was wearied with nerve wrack and pell-mell dashing from firing point to firing point. He knew nothing of the picture he made with clothing torn from his scrambling rushes up-ladder and down-ladder and his crouching and shifting among the rough nail-studded spaces of the cockloft. Of the face, sweat-reeking and dust-smeared, he had no realization, but when that voice called out and he knew that rescuers were clamoring where assassins had laid siege, the stout knees under him buckled weakly, and the fingers

that had fitted his rifle as steadily as part of its own metallic mechanism became so inert that they could scarcely maintain their grip upon the weapon.

John Spurrier, emotionally stirred and agitated as he had never been in battle, because of the limp figure that lay under that roof, stood gulping and struggling for a lost voice with which to give back a reply. He rocked on his feet and then, like a drunken man went slowly and unsteadily forward to lift the bar of the door.

When he had thrown it wide the rush of anxious men halted, backing up instinctively, as their eyes were confused by the inner murk and their nostrils assailed by the acrid stench of nitrate, from the vapors of burnt powder that hung stifflingly between the walls and ceiling rafters. Old Cappeze was at their front and when he saw before him the battle begrimed and drawn visage of the man, he looked wildly beyond it for the other face that he did not see, and his voice broke and rose in a high, thin note that was almost falsetto as he demanded: "Where is she? Where's Glory?"

John Spurrier sought to speak but the best he could do was to indicate with a gesture half appealing and half despairing to the door of the other room, where she lay on his army cot. The father crossed its threshold ahead of him and dropped to his knees there with agonized eyes, and Bud Hawkins, the preacher and physician, not sure yet in which capacity he must act, was bent at his shoulder, while Spurrier exhorted him with a recovered but tortured voice, "In God's name, make haste. There's only a spark of life left."

From the crowd which had followed and stood massed about the door came a low but unmistakable smother of fury, as they saw the unmoving figure of the girl, and those at the edge wheeled and ran outward again with the summary resoluteness that one sees in hounds cast off at the start of the chase.

Upon those who remained Brother Hawkins wheeled and swept out his hands in a gesture of imperative dismissal.

"Leave us alone, men," he commanded. "I needs ter work alone hyar—with ther holp of Almighty God."

But he worked kneeling, tearing away the clothing over the wounded breast, and while he did so he prayed with a fervor that was fiercely elemental, yet

abating no whit of his doctor's efficiency with his surprisingly deft hands, while his lips and heart were those of the religionist.

"Almighty Father in Heaven," he pleaded, "spare this hyar child of Thine ef so be Thy wisdom suffers hit."

There he broke off and as though a different man were speaking, shot over his shoulder the curt command: "Fotch me water speedily—Because Almighty Father, she's done fell a victim of evil men thet fears Thee not in th'ar hearts!"

After a little Brother Hawkins dismissed even the father and Spurrier from the room and worked on alone, the voice of his praying sounding over his activity.

Ten minutes later, in a crowded room, Bud Hawkins, preacher and physician, laid one hand on Spurrier's shoulder and the other on Cappeze's.

"Men," he said in a hushed voice, "I fears me ther shot thet hit her was a deadener. Yit I kain't quite fathom hit nuther. She's back in her rightful senses ergin—but she don't seem ter *want* to live, somehow. She won't put for'ard no effort."

Spurrier wheeled to face them both and his voice came with tense, gasping earnestness.

"Before she dies, Brother Hawkins," he pleaded, "you're a minister of the gospel—I want you to marry us." He wheeled then on the rescuers, who stood breathing heavily from exertion and fight.

"Two of you men stay here as wedding witnesses," he commanded. "One of you ride hell-for-leather to the nearest telephone and call up Lexington. Have a man start with bloodhounds on a special train. The rest of you get into the timber and finecomb it for some scrap of cloth—or anything that will give the dogs a chance when they get here."

Once more Spurrier was the officer in command, and snappily his hearers sprang to obedience, but when the place had almost emptied, the three turned and went into the back room, and, kneeling there beside the wounded girl, Spurrier whispered:

"Dearest, the preacher has come—to wed us."

Glory's eyes with their deeps of color were startlingly vivid as they looked out of the pallid face upon which a little while ago John Spurrier had believed the white stamp of death to be fixed.

The features themselves, except the eyes, seemed to have shrunk from weakness into wistful smallness, and if the girl had returned, in the phrases of the preacher, "to her rightful senses" it had been as one coming out of a dream who realizes that she wakes to heartburnings which death had promised to smooth away.

Now, as the man stretched out his hand to take hers and drew a ring from his own little finger, the violet eyes on the rough pillow became transfigured with a luminous and incredulous happiness. But at once they clouded again with gravity and pain.

Spurrier was offering to marry her out of pity and gratitude. He was seeking to pay a debt, and his authoritative words were spoken from his conscience and not from his heart.

So the lips stirred in an effort to speak, failed in that and drooped, and weakly but with determination Glory shook her head. She had been willing to die for him. She could not argue with him, but neither would she accept the perfunctory amends that he now came proffering.

Spurrier rose, pale, and with a tremor of voice as he said to the others: "Please leave us alone—for a few moments." Then when no one was left in the room but the girl on the bed and the man on his knees beside it, he bent forward until his eyes were close to hers and his words came with a still intensity.

"Glory, dearest, though I don't deserve it, you've confessed that you love me. Now I claim the life you were willing to lay down for me—and you can't refuse."

There was wistfulness in her smile, but through her feebleness her resolution stood fast and the movement of her head was meant for a shake of refusal.

"But why, dear," he argued desperately, "why do you deny me when we know there's only one wish in both our hearts?"

His hands had stolen over one of hers and her weak fingers stirred caressingly against his own. Her lips stirred too, without sound, then she lay in a deathlike quiet for a moment or two summoning strength for an effort at speech, and he, bending close, caught the ghost of a whisper.

“I don’t seek payment ... fer what I done.” A gasp caught her breath and silenced her for a little but she overcame it and finished almost inaudibly. “It was ... a free-will gift.”

John Spurrier rose and sat on the side of the bed. His voice was electrified by the thrill of his feeling; a feeling purged of all artificiality by the rough shoulder touch of death.

“I’m asking another gift, now, Glory; the greatest gift of all. I’m asking yourself. Don’t try to talk—only listen to me because I need you desperately. Except for you they would have killed me to-day—but my life’s not worth saving if I lose you after all. I’m two men, dearest, rolled into one—and one of those men perhaps doesn’t deserve much consideration, but there’s some good in the other and that good can’t prevail without you any more than a plant can grow without sun.”

With full realization, he was pitching his whole argument to the note of his own selfish needs and wishes, and yet he was guided by a sure insight into her heart. Brother Hawkins had said she had no wish to live and would make no fight, and he knew that he might plead endlessly and in vain unless he overcame her belief that he was actuated merely by pity for her. If she could be convinced that it was genuinely he who needed her more than she needed him, her woman quality of enveloping in supporting love the man who leaned on her, would bring consent.

“I sought to strengthen myself for success in life,” he went on, “by strangling out every human emotion that stood in the way of material results. I serve men who sneer at everything on God’s earth except the practical, and I had come to the point where I let those men shape me and govern even my character.”

She had been listening with lowered lids and as he paused, she raised them and smiled wanly, yet without any sign of yielding to his supplications.

“The picture that you saw,” he swept on torrentially, “was that of a girl whose father employs me. He’s a leader in big affairs and to be his son-in-

law meant, in a business sense, to be raised to royalty. Vivien is a splendid woman and yet I doubt if either of us has——” he fumbled a bit for his next words and then floundered on with self-conscious awkwardness, “has thought of the other with real sentiment. Until now, I haven’t known what real sentiment meant. Until now I haven’t appreciated the true values. I discovered them out there in the road when you came into my arms—and into my heart. From now on my arms will always ache for you—and my heart will be empty without you.”

“But—,” Glory’s eyes were deeper than ever as she whispered laboriously, “but if you’re plighted to her——”

“I’m not,” he protested hotly. “There is no engagement except a sort of understanding with her father: a sort of condescending and tacit willingness on his part to let his successor be his son-in-law as well.”

She lay for a space with the heavy masses of her hair on the rough pillow framing the pale and exquisite oval of her face, and her vivid eyes troubled with the longing to be convinced. Then her lips shaped themselves in a rather pitiful smile that lifted them only at one corner.

“Maybe ye don’t ... know it Jack,” she murmured, “but ye’re jest seekin’²⁹⁷ ... ter let me ... die ... easy in my mind ... and happy.”

“Before God I am *not*,” he vehemently contradicted her. “I’m not trying to give but to take. Whether you get well or not, Glory, I want to fight for your life and your love. We’ve faced death, together. We’ve seen things nakedly—together. For neither of us can there ever be any true life—except together.”

His breath was coming with the swift intensity that was almost a sob and, in the eyes that bent over her, Glory read the hunger that could not be counterfeited.

“Anyhow,” she faltered, “we’ve had—this minute.”

Spurrier rose at last and called the others back. He himself did not know when once more he took her hand and the preacher stood over them, whether her responses to the services would be affirmative or negative.

To Spurrier marriage had always seemed an opportunity. It was a thing in which an ambitious man could no more afford yielding to uncalculating

impulses than in the forming of a major business connection. Marriage must carry a man upward toward the peak of his destiny, and his wife must bring as her dowry, social reënforcements and distinction.

Now, in the darkening room of a log house, with figures clad in patches and hoddens-gray, he held the hand that was too weak to close responsively upon his own, and listened to the words of a shaggy-headed preacher, whose beard was a stubble and whose lips moved over yellow and fanglike teeth.

Confusedly he heard the questions and his own firm responses to the simple service of marriage as rendered by the backwoods preacher, then his heart seemed to stop and stand as the words were uttered to which Glory must make her answer.

“Will you, Glory, have this man, John Spurrier——”

What would her answer be—assent or negation?

The pause seemed to last interminably as he bent with supplication in his glance over her, and the breath came from his lips with an unconscious sibilance, like escaping steam from a strained boiler, when at last the head on the pillow gave the ghost of a nod.

Even at that moment there lurked in the back of his mind, though not admitted as important, the ghost of realization that he was doing precisely the sort of thing which, in his own world, would not only unclass him but make him appear ludicrous as well.

As for that world of lifted eye-brows he felt just now only a withering contempt and a scalding hatred.

Almost as soon as the simple ceremony ended, Glory sank again into unconsciousness, and the father and preacher, sitting silent in the next room, were unable to forget that though there had been a wedding, they were also awaiting the coming of death.

The night fell with the soft brightness of moon and stars, and through the tangled woods the searchers were following hard on the flight of the assailants—doggedly and grimly, with the burning indignation of men bent on vindicating the good name of their people and community. Yet, so far, the fugitive squad had succeeded not only in eluding capture or recognition, but also in carrying with them their wounded.

From Lexington, where Spurrier had formed strong connections, a deputy sheriff was riding in a caboose behind a special engine as fast as the roadbeds would permit. The smokestack trailed a flat line of hurrying smoke and the whistle screamed startlingly through the night. At the officer's knees, gazing up at him out of gentle eyes that belied their profession, crouched two tawny dogs with long ears—the bloodhounds that were to start from the cabin and give voice in the laurel.

Waiting for them was a torn scrap of blue denim such as rough overalls are made of. It had been found in a brier patch where some fleeing wearer had snarled himself.

Yet two days later the deputy returned from his quest in the timber, shaking his head.

"I'm sorry," he reported. "I've done my best, but it's not been good enough."

"What's the trouble?" inquired Cappeze shortly, and the officer answered regretfully:

"This country is zigzagged and criss-crossed with watercourses—and water throws the dogs off. The fugitives probably made their way by wading wherever they could. The longest run we made was up toward Wolf Pen Branch."

That was the direction, Spurrier silently reflected, of Sim Colby's house, but he made no comment.

Brother Hawkins, who was leaving that afternoon, laid a kindly hand on Spurrier's shoulder.

"Thet's bad news," he said. "But I kin give ye better. I kin almost give ye my gorrantee thet ther gal's goin' ter come through. Hit's *wantin'* ter live thet does hit."

Spurrier's eyes brightened out of the misery that had dulled them, and as to the failure of the chase he reassured himself with the thought that the dogs had started toward Sim Colby's house, and that he himself could finish what they had begun.

Those tawny beasts had coursed at the behest of a master who was bound by the limitations of the law, but he, John Spurrier, was his own master and

could deal less formally and more condignly with an enemy to whom suspicion pointed—and there was time enough.

CHAPTER XV

And yet on that day when the bobwhites had sounded and the blow had fallen, Sim Colby was nowhere near the opportunity hound's house. He sat tippling in a mining town two days' journey away, and he had no knowledge of what went on at home. His companion was ex-Private Severance—once his comrade in arms.

The town was one of those places which discredit the march of industry by the mongrelized character of its outposts. The wild aloofness of the hills and valleys was marred there by the shacks of the camp and its sky soiled by a black reek of coke furnaces.

Filth physical and moral brooded along the unkempt streets where the foul buzz of swarming flies sounded over refuse piles, and that spirit of degradation lay no less upon the unclean tavern, where the two men who had once worn the uniform sat with a bottle of cheap whisky between them.

Colby, who had need to maintain his reputation for probity at home, made an occasional pilgrimage hither to foregather with his former comrade and loosen the galling rein of restraint. Just about the time when the attack on Spurrier's house had begun, he had leaned forward with his elbows on the table, his face heavy and his eyes inflamed, pursuing some topic of conversation which had already gained headway.

"These hyar fellers that seeks ter git rid of Spurrier," he confided, "kinderly hinted 'round thet they'd like ter git me ter do ther job for 'em, but I pretended like I didn't onderstand what they war drivin' at, no fashion at all."

"Why didn't ye hearken ter 'em?" questioned Severance practically. "Hit hain't every day a man kin git paid fer doin' what he seeks ter do on his own hook."

But Colby grinned with a crafty gleam in his eye and poured another drink.

“What fer would I risk ther penitenshery ter do a killin’ fer them fellers when, ef I jest sets still on my hunkers they’ll do *mine* fer me,” he countered.

For a time after that whatever enemies Spurrier had seemed to have lost their spirit of eagerness. One might have presumed that to the rule of amity which apparently surrounded him, there was no exception—and so the mystery remained unsolved. Even blind Joe Givins made a detour in a journey to stop at Spurrier’s house and sing a ballad of his own composition anent the mysterious siege and to express his indignation at the “pizen meanness” of men who would father and carry forward such infamies.

And Glory, who had penetrated so deeply into the shadow that life had seemed ended for her, was recovering. Into her pale cheeks came a new blossoming and into the smile of her lips and eyes a new light that was serene and triumphant. She had been too happy to die.

While the summer waned and the beauties of autumn began to kindle, the young wife grew strong, and her husband, seemingly, had nothing to do except to wander about the hills with her and discover in her new charms. Neighborly saws and hammers were ringing now as his place was transformed from its simple condition to the “hugest log house on seven creeks.”

In some respects he wished that his factitious indolence were real, for he felt no pride in the occult fashion in which he was directing the activities of his henchmen. And yet a few months ago this progress would have been food for satisfaction—almost triumph.

His plans, as outlined to Martin Harrison were by no means at a standstill. They were going forward with an adroit drawing in and knitting together of scattered strands, and the warp and woof of this weaving were coming into definite order and pattern.

The dual necessity was: first to slip through a legislature which was supposedly under the domination of American Oil and Gas, a charter which should wrest from that concern the sweet fruits of monopoly, and secondly, to secure at paltry prices the land options that would give the prospective pipe line its right of way.

As this campaign had been originally mapped and devised it had not been simple, but now it was complicated by a new and difficult element. In those first dreams of conquest the native had been no more considered than the red Indian was considered in the minds of the new world settlers. Spurrier himself had brushed lightly aside this aspect of the affair. Every game has and must have its “suckers.” And their sorry destiny it is to be despoiled. Now the very term that he had used in his thoughts, brought with it an amendment. It is not every game that must have its suckers but every bunco game.

Martin Harrison did not know it, but his lieutenant had redrawn his plans, and redrawn them in a fashion which the chief would have regarded as insubordinate, impractical and sentimental.

Spurrier intended that when the smoke cleared from the field upon which the forces of Harrison and those of Trabue had been embattled, the Harrison banners should be victoriously afloat and the Trabue standards dust trailed. But also he intended that the native land-holders, upon whom both combatants had looked as mere unfortunate onlookers raked by the cross fire of opposing artillery, should emerge as real and substantial gainers.

Of late the man had not escaped the penalty of one who faces responsibility and wields power. He had abandoned as puerile his first impulse, after his marriage, to throw up his whole stewardship to the Wall Street masters. That would have amounted only to an ostentation of virtue which would have surrendered the situation into the merciless hands of A. O. and G., and would have left the mountain folk unprotected.

Yet he could not escape the realization that he would stand with all the seeming of a traitor and a plunderer to any of his simple friends who learned of his activities—for as yet he could confide to no one the plans he was maturing.

It was when the refurnished and enlarged place had been completed that the neighbors came from valley, slope, and cove to give their blessing at the housewarming which was also, belatedly, the “infaring.”

That homely, pioneer observance with which the groom brings home his bride, had not been possible after the wedding, but now Aunt Erie Toppitt

had come over and prepared entertainment on a lavish if homely scale since Glory was not yet well.

To the husband as he stood greeting the guests who arrived in jeans and hoddie-gray, in bright shawls and calicoes, came the feeling of contrast and unreality, as though this were all part of some play quaintly and exaggeratedly staged to reflect a medieval period. In the drawing rooms of Martin Harrison and his confreres he had moved through a social atmosphere, quiet, contained, and reflecting such a life as the dramatist uses for background in a comedy of manners. Closing his eyes now he could see himself as he had been when, starting out for such an entertainment, he had paused before the cheval glass in his club bedroom, adding a straightening touch to his white tie, adjusting the set of his waistcoat and casting a critical eye over the impeccable black and white of his evening dress. Here, flannel shirted and booted, corduroy breeched and tanned brown, he stood by the door watching the arrival of guests who seemed to have stepped out of pioneer America or Elizabethan England. There were women riding mules or tramping long roads on foot and trailing processions of children who could not be left at home; men feeling overdressed and uncomfortable because they had donned coats and brushed their hats; even wagons plodding slowly behind yokes of oxen and one man riding a steer in lieu of a horse!

So they came to give Godspeed to his marriage—and they were the only people on God's green earth who thought of him in any terms of regard save that regard which sprung from self-interest in his ability to serve beyond others!

Men who were blood enemies met here as friends, because his roof covered a zone of common friendship and under its protection their hatreds could no more intrude on such a day than could pursuit in the Middle Ages follow beyond the sanctuary gates of a cathedral. Inside sounded the minors of the native fiddlers and the scrape of feet "running the sets" of quaint square dances.

The labors of preparation had been onerous. Aunt Erie stood at the open door constituting, with Spurrier and his wife, a "receiving line" of three, and her wrinkled old face bore an affectation of morose exhaustion as to each guest she made the same declaration:

“I hopes an’ prays ye all enjoys this hyar party—Gawd knows *my* back’s broke.”

But Spurrier had not in his letters to Harrison mentioned his marriage, and to Vivien he had not written at all. He thought they would hardly understand, and he preferred to make his announcement when he stood face to face with them, relying on the force of his own personality to challenge any criticism and proclaim his own independence of action. Just now there was no virtue in needlessly antagonizing his chief.

Among the guests who came to that housewarming was one chance visitor who was not expected. He came because the people under whose roof he was being sheltered, had “fetched him along,” and he was Wharton, the man whose purpose hereabouts had set gossip winging aforetime.

It seemed to some of the local visitors that despite his entire courtesy, Spurrier did not evince any profound liking for this other “furriner,” and since they had come to accept their host as a trustworthy oracle, they took the tip and were prepared to dislike Wharton, too.

That evening, while blind Joe Givins fiddled, and dancers “ran their sets” on the smooth, new floor, a group of men gathered on the porch outside and smoked. Among them for a time were both Spurrier and Wharton.

The latter raised something of a laugh when he confidently predicted that the oil prosperity, for all its former collapse and present paralysis, was not permanently dead.

“The world needs oil and there’s oil here,” he declared with unctuous conviction. “Men who are willing to gamble on that proposition will win out in the end.”

“Stranger,” responded Uncle Jimmy Litchfield, taking his pipestem from between his teeth and spitting contemptuously at the earth, “ye sees, settin’ right hyar before ye a man that ’lowed he was a millionaire one time, ’count of this hyar same oil ye’re discoursin’ so hopeful about. Thet man’s me. I’d been dirt-pore all my days, oftentimes hurtin’ fer ther plum’ needcessities of life. I’m mighty nigh thet pore still.”

“Did you strike oil in the boom days?” demanded Wharton as he bent eagerly forward.

“I owned me a farm, them days, on t’other side ther mounting,” went on the narrator, “an’ them oil men came along an’ wanted ter buy ther rights offen me.”

“Did you sell?”

Uncle Billy chuckled. “They up an’ offered me a royalty of one-eighth²⁰⁸ of ther whole production. They proved hit up ter me by ’rithmetic an’ algebr’y how hit would make me rich over an’ above all avarice—but I said no, I wouldn’t take no eighth. I stud out fer a *sixteenth* by crickety!”

Both Spurrier and Wharton smothered their laughter as the latter inquired gravely: “Did they play one of them royalty games.”

“They done better’n thet. They said, ‘We’ll give ye two sixteenths,’ an’ thet’s when I ’lowed I was es good es a Pierpont Morgan. I wouldn’t niver hurt fer no needcessity no more.”

“And what was the outcome of it all?” asked Wharton.

Uncle Jimmy’s face darkened. “The come-uppance of ther whole blame business war thet a lot of pore devils what hed done been content with poverty found hit twice as hard ter go on bein’ pore because they’d got to entertainin’ crazy dreams ther same as me. Any man thet talks oil ter me now’s got ter buy outright an’ pay me spot cash. I ain’t playin’ no more of them royalty games.”

“That’s fair enough,” said Wharton. “But it seems to me that you people are taking the wrong tack. Because the boom collapsed once, you are shutting the door against the possibility of its coming again—and it’s going to come again.”

“A man kin git stung once,” volunteered another native, “an’ hit’s jest tough luck or bewitchment. Ef he gits stung twicet on ther same trumpery, he ain’t no more then a plum’, daft fool.”

Wharton lighted a fresh cigar and turned toward Spurrier.

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“Mr. Spurrier here, is a man you all know and trust——” he hazarded. “I understand that he’s seen oil fields in the West and Mexico. I wonder what he thinks about it all.”

On the dark porch Spurrier looked at his visitor for a few minutes in silence and his first reply was a quiet question.

“Did I tell you I’d seen oil fields in operation?” he inquired, and Wharton stammered a little.

“I was under that impression,” he said. “Possibly I am wrong.”

“No—you are right enough,” answered the other evenly. “I just didn’t remember mentioning it. What is your question exactly?”

“If I have a hunch that oil holds a future here and am willing to back that hunch, don’t you think I am acting wisely to do it?”

The host sat silent while he seemed to weigh the question with judicial deliberation, and during the pause he realized that the little group of men were waiting intently for his utterance as for the voice of the Delphic oracle.

“I have seen oil operation and oil development,” he said at last. “I have lived here for some time and know the history of the former boom, but I have not bought a foot of ground. That ought to make my opinion clear.”

“Then you don’t believe in the future?”

“Don’t you think, Mr. Wharton,” inquired Spurrier coolly and, his listeners thought, with a shaded note of contempt, “that what I’ve already said, answers your question? If I *did* believe in it, wouldn’t I be likely to seek investment at the present stage of land prices?”

John Spurrier was glad that it was dark out there. He knew that the mountain men awaited his judgment as something carrying the sanction of finality and he felt like a Judas. He himself knew that back of his seeming betrayal was a determination to safeguard their rights, but the whole game of maneuvering and dissembling was as impossible to play proudly as it would have been to undertake the duties of a spy.

“I’ll admit,” observed Wharton modestly, “that if I lost some money, it wouldn’t break me—and I’m a stubborn man when I get a hunch. Well, I’m going in to watch them dance.”

He rose and went indoors and Uncle Jimmy, when he put a question acted, in effect, as spokesman for them all.

“What does ye think of thet feller, Mr. Spurrier?”

“I think,” said the opportunity hound crisply, “that he’s a fool, and Scripture says, ‘a fool and his money are soon parted.’”

“An’ ef he seeks ter buy?”

“Sell—by all means—if the price is right!”

The next day when they were alone Glory said:

“I don’t like that man Wharton. He’s got sneaky eyes.”

Her husband laughed. “I can’t say that he struck me pleasantly,” he admitted. “We talked oil out on the porch. He was the optimist and I the pessimist.”

And it was to happen that the first rift in Glory’s lute of happiness was to come out of Wharton’s agency, though she did not recognize it as his.

For in these times, despite a happiness that made her sing through the days, something like the panic of stage fright was settling over her: a thing yet of the future, but some day to be faced.

So long as life ran quietly, like the shaded streams that went down until they made the rivers of the greater and outer world, she was confident mistress of her life and had no forebodings. Spurrier loved her and she worshiped him—but out there beyond the ridges, the activities of his larger life were calling—or would call. Then they must leave here and she began to dread the thousand little mistakes and the humiliations that might come to him because of her unfamiliarity with that life. Since the bearings of achievement are delicate, she even feared that she might throw out of gear and poise the whole machinery of his success, and in secret Glory was poring over absurd books on etiquette and deportment. That these stereotyped instructions would only hamper her own naturally plastic spirit, she did not know when she read and reread chapters headed, “How to Enter a Drawing-room” and “Hints upon Refined Conversation.”

That Spurrier would suggest going without her to any field into which his work called him, she did not dream. That he would leave her to wait for him here, as the companion only of his backwoods hours, her pride never contemplated.

Yet in the fall Spurrier did just that thing, and to the letter which induced its doing was signed the name of George Wharton. The latter wrote:

“We must begin to lay out lines for work with the next legislature. There are people in Louisville and Lexington whom you should meet and talk with. I think you had better make your headquarters at one of the Louisville clubs, and when you get here I will put you in touch with the proper bearings.”

That much might have puzzled any of the mountaineers who had taken their own cues from Spurrier’s thinly concealed manner of hostility to Wharton, but the last part of the letter would have explained that, too:

“The little game down at your house was nothing short of masterly. Your acting was superb, and though you were the star, I think I may claim to have played up to you well. The device of gaining their confidence so that, of their own accord, they turned to you for counsel—and then seeming to gloom on me when I talked oil, was pretty subtle. I could openly preach buying and instead of turning away from me in suspicion, they fell on me for a sucker. I—and others acting for me—have, as the result, secured a good part of the options we need—and you appear to be of all men, the least interested.”

Spurrier read the thing twice, then crushed it savagely in his clenched hand and cursed under his breath. “The damned jackals,” he muttered. “That’s the pack I’m running with—or rather I’m running with them and against them at once.”

But when Spurrier had kissed Glory good-by and she had waved a smiling farewell, she turned back into her house and covered her face with her hands.

“I don’t want to believe it,” she declared. “I won’t believe it—but it looks like he’s ashamed to take me with him. Not that I blame him—only—only I’ve got to make myself over. He’s *got* to be proud of me!”

CHAPTER XVI

When he came back for a short stay in the hills between periods of quiet but strenuous affairs in Louisville, he brought gifts that delighted Glory and a devotion that made her forget her misgivings. She had him back, and he found the house expressing in many small ways a taste and discrimination which brought to him a flush of pleasurable surprise. Glory knew the menace that hung over Spurrier. She knew of the malevolent and elusive enmities to which her own life had so nearly become forfeit, and the old terror of the mountain woman for her man became the cross that she must carry with her. Because of her militant father's antagonisms she had been inured from childhood to the taut moment of suspense that came with every voice raised at the gate and every knock sounding on the door.

There was an element of possible threat in each arrival. She had become, as one has need to be, under such circumstances, somewhat fatalistic as to the old dangers. Now that the fear embraced her husband as well as her father, the philosophy which she had cultivated failed her. Yet their happiness was so strong that it threw off these things and drew upon the treasury of the present.

Spurrier, who talked little of his own dangers, was far from forgetting. His suspicion of Colby strengthened, and he looked forward to the day as inevitable when there must be a reckoning between them, which would not be a final reckoning unless one of them died, and for that encounter he went grimly prepared.

One thing puzzled him. Of Sim Colby he had thought as a somewhat solitary character, whose relations with his neighbors, though amicable, were yet rather detached. He had seemed to have few intimates, yet if he had led this attack, he was palpably able to muster at his back a considerable force of men for a desperate project. That meant that the infection of hatred against himself had spread from a single enmity to the number, at least, of the men who had joined in the battle, and it had been a

battle in which more than one had fallen. Before, he had recognized a single enemy. Henceforth he must acknowledge plural enmities.

And along that line of reasoning the next step followed logically.

Who would suggest himself as so natural a leader for a murder enterprise as Sam Mosebury, whose record was established in such matters? Certainly if this suspicion were well-founded it would be safest to know.

Spurrier, despite all he had heard of Sam Mosebury, was reluctant to entertain the thought. The man might be, as Cappeze painted him, the head and front of an infamously vicious system, yet there was something engaging and likable about him, which made it hard to believe that for hire or any motive not nearly personal he would have conspired to do murder.

So among the many claims upon Spurrier's attention was the effort to find out where Sam Mosebury stood, and it was while he was thinking of that problem that he encountered the object of his thoughts in person. The spot was one distant from his own house. Indeed it was near Colby's cabin—still apparently empty—that the meeting took place.

The opportunity hound had made several trips over there of late, because he required to know something of Colby's activities, and, of course, when he came he observed a surreptitious caution which sought to guard against any hint leaking through to Colby of his own surveillance. He firmly believed that Sim was "hiding out," and that despite the seeming emptiness of his habitation he was not far away.

So it was Spurrier, the law-abiding man, who was skulking in the laurel while the notorious Mosebury walked the highway "upstanding" and openly—and the man in the thicket stooped low to escape discovery. But his foot slipped in the tangle and a rotting branch cracked under it, giving out a sound which brought Mosebury to an abrupt halt with his head warily raised and his rifle poised. He, too, had enemies and must walk in caution.

There had been times when Sam's life had hinged on just such trivial things as the snapping of a twig, and now, peering through the thickets Spurrier saw a flinty hardness come into his eyes.

Sam stepped quietly but swiftly to the roadside and sheltered himself behind a rock. He said no word, but he waited, and Spurrier could feel that

his eyes were boring into his own place of concealment with a scrutiny that went over it studiously and keenly, foot by foot.

He hurriedly considered what plan to pursue. If Mosebury was in league with Colby, to show himself would be almost as undesirable a thing as to show himself to Colby direct. Yet if he stayed there with the guilty seeming of one in hiding, Mosebury would end by locating him—and might assume that the hiding was itself a proof of enmity. He decided to declare himself so he shouted boldly: “It’s John Spurrier,” and rose a moment later into view.

Then he came forward, thinking fast, and when the two met in the road, mendaciously said:

“I guess it looks queer for a man with a clear conscience to take to the timber that way, Mr. Mosebury—but you may remember that I was recently attacked, and I don’t know who did it.”

Mosebury nodded. “I’d be ther last man ter fault ye fer thet,” he concurred. “I was doin’ nigh erbout ther same thing myself, but I didn’t know ye often fared over this way, Mr. Spurrier.”

“No, it’s off my beat.” Spurrier was now lying fluently in what he fancied was to be a game of wits with a man who might have led the siege upon his house. “I was just going over to Stamp Carter’s place. He wanted me to advise him about a property deal.”

For a space Sam stood gravely thoughtful, and when he spoke his words astonished the other.

“Seein’ we *hev* met up, accidental-like, I’ve got hit in head ter tell ye somethin’ deespote hit ain’t rightly none of my business.” Again he paused, and it was plain that he was laboring under embarrassment, so Spurrier inquired:

“What is it?”

“Of course, I’ve done heered ther talk erbout yore bein’ attacked. Don’t ye really suspicion no special man?”

“Suspicion is one thing, Mr. Mosebury, and knowledge is another.”

“Yes, thet’s Bible truth, an’ yit I wouldn’t marvel none yore suspicions went over thet-away—an’ came up not fur off from hyar.” He nodded his head toward Sim Colby’s house, and Spurrier, who was steeled to fence, gave no indication of astonishment. He only inquired:

“Why should Mr. Colby hold a grudge against me?”

“I ain’t got no power of knowin’ thet.” Mosebury spoke dryly. “An’ es I said afore, hit ain’t none of my business nohow—still I does know thet ye’ve been over hyar some sev’ral times, an’ every time ye came, ye came quietlike es ef ye sought ter see Sim afore Sim seed *you*.”

“You think I’ve been here before?”

“No, sir, I don’t think hit. I knows hit. I seed ye.”

“Saw me!”

“Yes, sir, seed ye. Hit’s my business to keep a peeled eye in my face.”

So Spurrier’s careful secrecy had been transparent after all, and if this man was an ally of Colby’s, Colby already shared his knowledge. More than ever Spurrier felt sure that his suspicions of the man whose eyes had changed color, were grounded in truth.

“Howsomever,” went on Mosebury quietly, “I ain’t nuver drapped no hint ter Sim erbout hit. I ain’t, gin’rally speakin’, no meddler, but ef so be I kin forewarn ye ergainst harm, hit would pleasure me ter do hit.” 219

There was a cordial ring of sincerity in the manner and voice, which it was hard to doubt, so the other said gravely:

“Thank you. I did suspect Colby, but I have no proof.”

“I don’t know whether Sim grudges ye or not,” continued Mosebury. “He ain’t nuver named ther matter ter me nowise, guise, ner fashion—but Sim *wasn’t with ther crowd thet went atter ye*. He didn’t even know nothin’ erbout hit. Sometimes a man comes to grief by barkin’ up ther wrong tree.”

Again suspicion came to the front. This savored strongly of an attempt to alibi a confederate, and Spurrier inquired bluntly:

“Since you broached this subject, I think it’s fair to ask you another question. You tell me who *didn’t* come. Do you know who *did*?”

For a moment Mosebury's face remained blank, then he spoke stiffly.

"I said I'd be glad ter warn ye—but I didn't say I war willin' ter name no names. Thet would be mighty nigh ther same thing es takin' yore quarrel onto myself."

"Then that's all you can tell me—that it wasn't Colby?"

"Mr. Spurrier," rejoined the mountaineer seriously, "ye *knows* jedgmatically an' p'intedly thet ye've got enemies that means business. I ain't niver seed a man yet in these hills what belittled a peril sich as yourn thet didn't pay fer hit—with his life."

"I don't belittle it, but what can I do?"

Sam Mosebury stood with a gaze that wandered off over the broken sky line. So grave was his demeanor that when his words came they carried the shock of inconsistent absurdity.

"Thar's a witch woman, thet dwells nigh hyar. Ef I war in youre stid, I'd git her ter read ther signs fer me an' tell me what I had need guard ergainst most."

"I'm afraid," answered Spurrier, repressing his contempt with difficulty, "I'm too skeptical to pin my faith to signs and omens."

Again the mountain man was looking gravely across the hills, but for a moment the eyes had flashed humorously.

"I reckon we don't need ter cavil over thet, Mr. Spurrier. I don't sot no master store by witchcraft foolery my ownself. Mebby ye recalls thet oncet I told ye a leetle story erbout my cat an' my mockin' bird."

"Yes," Spurrier began to understand now. "You sometimes speak in allegory. But this time I don't get the meaning."

"Waal, hit's this fashion. I *don't* know who ther men war thet tried ter kill ye. Thet's God's truth, but I've got my own notions an' mebby they ain't fur wrong. I ain't goin' ter name no names—but ef so be ye wants ter talk ter ther witch woman, *I'll* hev speech with her fust. What comes outen magic kain't hardly make me no enemies—but mebby hit *mout* enable ye ter discern somethin' thet would profit ye to a master degree."

Spurrier stood looking into the face of the other and then impulsively he thrust out his hand.

“Mr. Mosebury,” he said, “I’ll be honest with you. I half suspected you³²¹—because I’d met you at Colby’s and I knew you hated Cappeze. I owe you an apology, and I’m glad to know I was wrong.”

“Mr. Spurrier,” replied the other, “ef I *hed* attempted yore life I wouldn’t hev failed, an’, moreover, I don’t hate old Cappeze. Ther man thet wins out don’t hev no need ter harbor hatreds. He hates me because he sought ter penitentiary me—an’ failed.”

“When shall we go to consult the oracle?” asked Spurrier, and Mosebury shook his head.

“I reckon mebbly I mout seem over cautious—even timorouslike ter ye, in bein’ so heedful erbout keepin’ outen sight in this matter,” he said. “But them thet knows my record, knows I *ain’t*, jest ter say easy skeered. You go home an’ wait an’ afore long I’ll write ye a letter, tellin’ ye when ter go an’ how ter go. Then ye kin make ther journey by yoreself.”

“That looks like common sense to me,” declared the other, and he went home, forgetting the witch woman on the way, because of the other and lovelier witchcraft that he knew awaited him in his own house.

Spurrier, despite his dangers, responsibilities, and conflict of purposes, was happy. He was happy in a simpler and less complicated way than he had ever been before, because his heart was in the ascendancy, and Glory, he thought, was “livin’ up to her name.”

If he could have thrust some other things into the same dark cupboard of half-contemptuous philosophy to which he relegated his own dangers, he might have been even happier. But a mentor who had rarely troubled him in past years became insistent and audible through the silences—speaking³²² with the voice of conscience.

He remembered telling Vivian Harrison, over the consommé, that pearls did not make oysters happy and that these illiterates of the hills might have hidden wealth in the shells of their isolation and gain nothing more than the oyster. Indeed, he had thought of them no more than the pearl fisherman thinks of the low form of life whose diseased state gives birth to treasure. They inhabited a terrain over which he and the forces of American Oil and

Gas were to do battle, and like birds nesting on a battlefield, they must take their chances.

It was no longer possible to maintain that callous indifference. These men, to whom he could not, without disclosing his strategy and defeating his purpose, tell the truth, had befriended him.

They were human and in many ways lovable. If he succeeded, they would, upon his own advice, have sold their birthrights.

However, he gave an anodyne to his conscience with the thought that if victory came to him there would be wealth enough for all to share. Having won his conquest, he could be generous, rendering back as a gift a part of what should have been theirs by right. The means of doing this he had worked out but he could confide to no one. He had embarked as cold bloodedly as Martin Harrison had ever started on any of the enterprises that had made him a money baron. Indeed it had been Spurrier who had fired the chief with interest in the scheme, and if the thing were culpable the culpability had been his own. Then he had come to realize that in the human equation was a factor that he had ignored: the rights of the ignorant native. He had fought down that recognition as the voice of sentimentality until at last he had no longer been able to fight it down. Between those two states of mind had been a war of mental agony and conflict, of doubt, of vacillation. The conclusion had not been easily reached. Now he meant to carry on the war he had undertaken unaltered as to its objective of winning a victory for Harrison over Trabue and the myrmidons of A. O. and G., but he meant to bring in that victory in such a guise that the native would share in the division of the spoils. He knew that Harrison, if he had an intimation of such an amendment of plan, would sharply veto it, but when the thing was done it would be too late to object—and meanwhile Spurrier regarded himself no less the trustee of the mountain-land holder than the servant of Martin Harrison. He was willing to shoulder, out of his own stipulated profits, the chief burden of this division, and in the end he would have driven a better bargain for his simple friends than they could have hoped to attain for themselves.

Yet in him was being reborn an element of character, which had long been repressed.

And there in the other section of the State where political connections had to be established and the skids of intrigue greased, much stood waiting to be done. Already most of what could be accomplished here on the ground had progressed to a point from which the end could be seen.

John Spurrier, the seeming idler, could control almost all the territory needful for his right of way—all except a tract belonging to Brother Bud Hawkins, cautiously left for the last because he wished to handle 224 that himself and did not yet wish to appear in the negotiations.

In the intricate workings of such a project by a campaign of secrecy, the matter was not only one of acquiring a certain expanse of a definite sort of property in a given region, but of acquiring holdings that commanded the only practicable route through passable gaps. This special lie and trend of ground he thought of and spoke of, in his business correspondence, as “the neck of the bottle.” When he held it, it mattered little who else had liquid in the bottle. It could come out only through his neck and, therefore, under his terms. Yet even when that was achieved, there remained the need of the corkscrew without which he himself could make no use of his range-wide jug of crude petroleum. That corkscrew was the charter to be had from a legislature where American Oil and Gas was supposed to have sentinels at the door.

He could not take Glory with him on these trips, because Glory was of the hills, and loyal to the hills—and he could not yet take the natives into his confidence. For the same reason he could give her only business reasons of the most general and evasive character for leaving her behind.

But the work that Spurrier had done so far was only the primary section of a broader design. What he had accomplished affected the oil field on the remote side of Hemlock Mountain, the part of the field that the earlier boom had never touched, and his entire project looked to a totality embracing also the “nigh” side, where his operations still existed only in projection. 225

It was while this situation stood that there came to him one day two letters calling upon him for two irreconcilable courses of action. One was from Louisville, urging him to return there at once to busy himself with political plannings; the other was a rude scrawl from Sam Mosebury setting an appointment with the “witch woman.”

Spurrier was reluctant to go to Louisville. It meant laying aside the little paradise of the present for the putting on of heavy harness. It necessitated another excuse to Glory, and more than that, being away from Glory. Yet that was the bugle call of his mission, and he fancied that whatever threatened him here in the hills was a menace of local effect. If that were true he would not need the warning which the unaccountable desperado, Sam Mosebury, meant to relay to him through channels of alleged magic, until he came back.

Therefore, the witch could wait. But in that detail Spurrier erred, and when he answered the summons that called him to town without his occult consultation, he unwittingly discarded a warning which he needed there no less than in the hills.

He was called upon to choose a turning without pause, and he followed his business instincts. It happened that instinct misled him.

CHAPTER XVII

One afternoon Trabue, the unadvertised dictator of American Oil and Gas, sat with several of his close subordinates in a conference that had to do with Martin Harrison, the man he assumed to ignore.

“Unless some unforeseen thing sends oil soaring,” ventured Oliver Morris, “this fellow Spurrier is having his trouble for his pains. My idea is that he’s seeking to tease us into counter activity—and trail after us in the profits.”

“And if something *should* send oil soaring,” crisply countered Cosgrove, “he’d have us distanced with a runaway start.”

“Who is this man Spurrier?” demanded Trabue himself. “What does our research department report?”

“He’s a protégé of Martin Harrison’s.”

Trabue appeared to find the words illuminating, and a shrewd irony glinted in his brief smile.

“If he’s Harrison’s man, he’s out to knife me—and he has resources at his back. Tell me more about him.”

Cosgrove took from his portfolio a neatly typed memorandum, and read from it aloud:

Former army officer who gained the sobriquet of “Plunger” Spurrier: Court-martialed and convicted upon charge of murder, and pardoned through efforts of Senator Beverly.²²⁷ Associated with various enterprises as a general investigator and initiative expert. Rumor has it that Harrison is grooming him as his own successor.

“If his reputation is that of a plunger,” argued Morris, “my guess is that he’s playing a long-shot bet for a killing.”

“And you guess wrong. If Harrison has picked this fellow to wear his own mantle, the man is more than a gambling tout. It is only lunacy to underestimate him or dismiss him with contempt.”

Cosgrove nodded his concurrence and amplified it. "In my judgment he's something of a genius with a chrome-nickel nerve, but he's adroit as well as bold. He has operated only through others and has kept himself inconspicuous. Except for an accident, we should have had no warning of his activities."

"If he were to get bitten by a rattlesnake," growled Morris savagely, "it would be a lucky thing for us. Of course, we might beguile him into our own camp."

Trabue shook his head in a decisive negation.

"That would only notify him that we recognize his effort and fear it. If the game's big enough, we don't want him." He paused, then added with a grim facetiousness: "As for your other suggestion, we have no rattlesnakes in our equipment."

The dynamic-minded master of strategy sat balancing a pen-holder on his extended forefinger for a few moments, then he inquired as if in afterthought: "By the way, I feel curious as to how the tip came to us that this conspiracy was on foot. You say that except for an accident we should not have known it."

Cosgrove smiled. "It came to this office through the regular channels of our local agencies—and I didn't inquire searchingly into the details. I gathered, though, that the trail was picked up by a sort of information tout—a fellow who was hurt and compromised a damage suit against us. It seems that he is supposed to be blind—but he could nonetheless see well enough to read some memoranda that chanced to come his way." The gentleman cleared his throat almost apologetically as he added: "As I remarked I didn't learn the particulars. I merely took the information for what it might be worth, and set our men to watching."

"I see," Trabue made dry acknowledgment. "And what is being done toward watching him?"

"I understand we have a man there who is assuming an enmity toward us and who is ostensibly helping Spurrier to build up political influence."

"I see," said Trabue once more, with even a shade more dryness in his voice.

That conversation had taken place quite a long while before the present, but it set into quiet motion the wheels of a large and powerful organization.

The knowledge that John Spurrier was objectionable to A. O. and G. had filtered through to more local, yet confidential, officials, and through them to “men in the field,” and it is characteristic of such delegations of authority, that each department suits the case referred to it to the practical workings of its own environment.

Gentlemen of high business standing in lower Broadway could permit themselves no violence of language, beyond the intimation that this upstart was a nuisance. Translated into the more candid brutality of camp-following parasites in the wildness of the hills, that mild declaration became: “The man needs killin’. Let’s git him!”

Now, Spurrier found that the visit to Louisville and Lexington, which had promised to be the matter of weeks, must stretch itself into months, and that until the convening and adjournment of the assembly itself, his presence would be as requisite as that of a ship’s officer on the bridge. In one respect he was gratified. American Oil and Gas seemed serenely unsuspecting of any danger. Vigilance seemed lapsed. Those men whose duty it was to watch the corporation’s interest and to hold in line the needed lawmakers, appeared to regard legislative protection as a thing bought and paid for and safe from trespass.

And Spurrier, knowing better, was secretly triumphant, but without Glory he was far from happy.

Had he known what influences were at work with cancerlike corrosions upon her loyalty, what food was nourishing her anxiety, he would have stolen the time to go to her. Hers was an anxiety which she did not acknowledge. Even to herself she denied its existence and against any outside suggestion of inner hurt pride would have risen in valiant resentment.

But in her heart it talked on in whispers that she could not hush. At night she would waken suddenly, wide-eyed with apprehension and seek to reassure herself by the emphasis of her avowals: “He’s *not* ashamed of me. He’s not leaving me because of that! He’s a big man with big business, and some day he’ll take me with him, everywhere!”

When old Cappeze, a man not given to unreflecting or careless speech, flatly questioned: "Glory—why doesn't John ever take you with him?" she flinched and fell into exculpations that limped.

The old man was quick to note the pained rawness of the nerve he had touched, and he began talking of something else, but when he was alone once more his old eyes took on that fanatic absorption that came of his deep love for his daughter, and he shook his head dubiously over her future.

One day a neighborhood woman came by Glory's house and found her standing at the door. Tassie Plumford neither claimed nor was credited with powers of magic, but she, too, might have been called a "witch woman." In curdled disposition and shrewishness of tongue, she merited the title.

"Waal, waal, Glory Cappeze," she drawled in her rasping, nasal voice. "Yore man hes done built ye a right monstrous fine house, hyar, ain't he?"

"Come in and see it, Mrs. Plumford," invited the young wife. "But my name's Glory Spurrier now—not Cappeze."

In the gesture with which the woman drew her shawl tighter about her lean shoulders, she contrived to convey the affront of suspicion and disbelief.

"No, I reckon I ain't got ther power ter tarry now," she declined. "I don't git much time fer gaddin', an' be yore name whatsoever hit may, there's them hyar-abouts es 'lows yore man lavishes everything on ye but his own self. He's away from ye most of his time, albeit I reckon he's got car fare aplenty fer two."

Glory stiffened, and without a word turned her back on her ungracious visitor. She went into the house with the tilted chin of one who disdains to answer insolent slanders, but in the tenderness of her heart the barb had nonetheless sunk deep. So people were saying that!

Over at Aunt Erie Toppitt's the shrew again halted—and there it seemed that she did have time to "tarry," and roll the morsel of gossip under tongue.

"Mebby she's ther furriner's lawful wife an' then ergin mebbly she ain't nuthin' but his woman," opined Tassie Plumford. "Hit ain't none of my business nohow, but a godly woman hes call ter be heedful whar she visits at."

“A godly woman!” Aunt Erie’s tone stung like a hornet attack. “What has godliness got ter do with *you*, anyhow, Tassie Plumford? The records of ther high cote over at Carnettsville hes got *yore* record fer a witness thet swears ter perjury.”

Mrs. Plumford trembled with rage but, prudently, she elected to ignore the reference to her legal status.

“Ef they was rightfully married,” she retorted, “hit didn’t come ter pass twell old man Cappeze diskivered her alone with him—in his house—jest ther two of ’em—an’ they wouldn’t niver hev *been* diskivered savin’ an’ exceptin’ fer ther attack on ther furriner.” In the self-satisfaction of one who has scored, she added: “I’ll be farin’ on now, I reckon.”

“An’ don’t niver come back,” stormed Aunt Erie, whose occasional tantrums were as famous as her usual good humor. “Unless ye seeks ter hev ther dawgs sot on ye.”

While the spiteful and forked little tongues of gossip were doing their serpent best to poison what had promised to be an Eden for Glory at home in the hills, the husband who was charged with neglecting her was miserable in town.

His work had been the breath of life to him until now, bringing the zestful delight of prevailing over stubborn difficulties, and building bridges that should carry him across to his goal of financial power. Now he found it a necessity that exiled him from a place to which he had come half-contemptuously and to which his converted thoughts turned as the prayers of the true believer turn toward Mecca.

He who had been urban in habit and taste found nothing in the city to satisfy him. The smoke-filled air seemed to stifle him and fill him with a yearning for the clean, spirited sweep of the winds across the slopes. He knew that these physical aspects were trivial things he would have swept aside had they not stood as emblems for a longing of the heart itself—a nostalgia born of his new life and love.

But all the plans that had built one on the other toward a definite end of making an oil field of the barren hills were drawing to a focus that could not be neglected. He could no more leave these things undone than could his idol Napoleon have abandoned his headquarters before Austerlitz, and the

sitting of the legislature could not be changed to suit his wishes. Neither could the lining up of forces that were to guide his legislation to its passage be left unwatched.

So the absence that he had thought would be brief, or at worst a series of short trips away from home, was prolonging itself into a winter in Louisville and Frankfort. He found himself as warily busy as a collie herding a panicky flock, and as soon as one danger was met and averted, a new one called upon him from a new and unsuspected quarter.

Much of the deviousness of playing underground politics disgusted him, and yet he knew he would have regarded it only as an amusing game for high stakes before his change of heart. But now that it was to be a battle for the mountain men as well as for Martin Harrison and for himself, it could be better stomached.

The effort to pick out men who could be trusted in an enterprise where they had to be bought, was one which taxed both his insight into human nature and his self-esteem.

Senator Chew, himself a mountaineer, who had come from a ragged district to the state assembly and who seemed to harbor a hatred against A. O. and G. of utter malevolence, was almost as his other self, furnishing him with eyes with which to see and ears with which to hear, and familiarity with all the devious, unlovely tricks of lobby processes.

But Senator Chew, a countryman, who had capitalized his shifty wits and hard-won education, bent his knee to the brazen gods of cupidity and ambition.

"I don't just see," he demurred petulantly to Spurrier, "why you go about this thing the way you do. You've got unlimited capital behind you and yet in going after these options you ain't hardly got hold of any more land than just enough to let your pipe line through. You could get all a man's property just as cheap per acre as part of it—and when I've sweated blood to give you your charter and you've sweated blood to grab your right-of-way, that God-forsaken land will be a Klondike."

"I hope so," smiled Spurrier, and his ally went on.

"All right, but why have nothing out of it except a pipe-line? Why not have the whole damn business to split three ways, among Harrison's crowd,

yourself—and the crowd I've got to handle?"

"You're a mountain man, Senator," the opportunity hound reminded him. "You know that in every other section of the hills to which development has come, the native has reaped only a heart-ache and an empty belly. I am purposely taking only a part of each man's holding, so that when the oil flows there what he has left will be worth more to him than all of it was before."

"Hell," growled the politician. "The men you ought to think about making money for, are the men you need—like me, and the men who back you, like Harrison. These local fellows won't thank you, and in my opinion you're a fool, if you'll permit me to talk plain."

"Talk as plain as you like, Senator," smiled the other. "But I think I'm acting with right sound sense. Our field can be more profitably developed among friends than among enemies—even if no consideration other than the practical enters into the problem."

It was not until Christmas time that Spurrier broke away from his activities in Louisville, and then he came bearing gifts and with a heart full of eagerness. He came elated, too, at the fair promise of his prospects, and confident of victory.

So Glory hid the fears that had been growing in her heart and, because of the tidal power of personal fascination and contact, she found it an easy task. While Spurrier was with her, those fears seemed to lose their substance and to stand out as absurdities. They were delirious miasmas dissipated by the sun and daylight of companionship.

Spurrier kept most of his valuable papers in a safety vault in Louisville, but for purposes of reference here, he maintained a complete system of carbon copies, and these must be stored in some place where he could feel sure they were immune from any prying eye. The entire record of his proceedings would be clear to any reader of those memoranda.

While Glory was away one day, he removed a section of the living-room wall and fashioned something in the nature of a secret cabinet, upon which he could rely for these purposes. Before he went away again he shared that secret with her, since in certain exigencies it might be needful that some one

should be able to act on wired instructions. He showed her the bit of molding that was removable and which gave entrance to the hidden recess.

“In that strong box,” he told her, “are papers of vital importance. If I haven’t taken you entirely into my confidence about them all, dear, it’s because they concern other people more closely than myself. All my own affairs are yours—but in the service of others, I must obey instructions and those instructions are rigid.”

He took out one envelope, though, plainly marked.

“This,” he said, “is a paper to be used only in case of extreme emergency. It is an order on the safety-deposit people in Louisville to open my vault to the bearer. In the event of my death, or if I should wire you from a distance, I would want you to use it.”

Even that admittance into the veiled sanctum of his business life pleased Glory, and she nodded her head gravely.

She did not tell him, and he did not guess, that tongues were wagging in his absence, and that people said she was good enough only for that part of his life in which he shed his white collar and his “fine manners” and donned the rougher habiliments of the backwoods.

Even when she learned that his coming back had been only to spend the holidays with her and that he must leave again to be gone for weeks, at least, she let none of the disquiet that smouldered in her find an utterance in words.

On a fine old Blue Grass estate, which exhaled the elegance and ease of the Old South, lived Colonel Merriwell, a life-long friend of Dyke Cappeze. In years long gone he had more than once sought to have Cappeze transfer his activities to a wider field. Now, timber interests called him to the mountains, and though the cold weather had set in, his daughter chose to come with him. She had heard much of the strange and retarded life of the mountains, and because it was so different from the refinements with which she had always been surrounded, she wanted to see it.

When they arrived after traveling conditions that warranted every conception of quaintness, but violated every demand of comfort, the girl from the Bluegrass found Glory a discovery.

At once she recognized that into any drawing-room this wilderness-bred girl could be safely dropped, and that even though she stood in a corner, she would soon become its center.

Helen Merriwell was fascinated by the anomaly of an inherent aristocracy in an encompassing life which was almost squalid, and a bond of sympathy sprang into instant being. The Bluegrass woman knew by instinct, though through no utterance from the loyal lips, that the other was lonely, and when Colonel Merriwell announced his intention of returning home, the daughter decided to continue her visit and its companionship.

To Spurrier's house, too, during the crisp, clear weather of late winter came, without announcement or expectation another visitor. They were two other visitors to be exact, but one so overshadowed his companion in importance that the second became negligible.

At the Carnettsville station the daily train drew up one morning and uncoupled, on a siding, the first private car that had ever run over that piece of roadbed. Its chef and valet gazed superciliously down upon the assembled loungers, but the two gentlemen who alighted and gave their names as Martin Harrison and his secretary, Mr. Spooner, were to all appearances "jest ordinary folks."

Glory was housecleaning on the day of Harrison's coming, and, in neatly patched gingham and dust-protected crown, she came nearer seeming the typical mountain woman than she had for many days before. Her fresh beauty was hard to eclipse, but she was less presentable than she wished to be when her husband's great patron saw her for the first time and contrasted her with such women as his own daughter.

When she heard the name, without previous warning, a sort of panic possessed her and for once she became tongue-tied and awkward, so that after the first, Helen Merriwell stepped into the breach and did the talking.

"My name is Martin Harrison," said the great man with simple cordiality. "I thought John Spurrier lived here—but I seem to be mistaken."

"He—he does live here," stammered Glory, catching the swiftly stifled amazement of the magnate's disapproving eyes.

"Here?" He put the question blankly as if only politeness prevented a greater vehemence of surprise. "But I expected to find a bachelor

establishment. There are ladies here.”

Glory fell back a step as if in retreat under attack. If this statement were true, Spurrier had never acknowledged her to the employer with whom his relations were intimately close. In her own eyes, she stood as one who had lost caste and been repudiated—and all self-confidence abandoned her, giving way to trepidation.

Harrison stood bewilderedly looking at this country girl who had turned tremulous and pale, and Helen Merriwell stepped forward.

“Then you didn’t know that Mr. Spurrier was married?” she smilingly inquired.

The money baron transferred his glance to her as his shadowed face lightened into relief. This young woman had the poise and ease of his own world, which made communication facile. If Spurrier had not been candid with him, at all events he had, perhaps, not unclassed himself. The other was presumably a local servant of whom he need think no more.

“Mr. Spurrier,” he answered easily, “had not mentioned his marriage, probably because our recent correspondence has all related to business. However, I hold it unhandsome of him not to have done so.” He paused, then added deferentially: “Of course, I am better prepared now to felicitate him—since I have seen you.”

But Helen Merriwell laughed and laid a hand on Glory’s shoulder.

“You do me too much honor, Mr. Harrison,” she assured him. “*This* is Mrs. Spurrier.”

The financier’s ingrained politeness for once failed him. It was not for long, but in the breached instant he stiffened arrogantly as his eyes went back to Glory, and betrayed themselves in half-contemptuous hostility. The lieutenant whom he had chosen as his own successor in the world of lofty affairs had not only deceived him but had thrown himself wantonly away upon a stammering daughter of illiterates!

Martin Harrison bowed again, but this time with a precise formality.

“I didn’t notify Mr. Spurrier of my coming, since I felt sure I would find him here,” he explained briefly, directing himself pointedly to Helen

Merriwell. "I am on my way south, so now I'll defer seeing him until another time—unless you expect him back shortly?"

Helen turned inquiringly to Glory and Glory shook her head. The episode, confirming her own anxieties, had unnerved her steadfast courage into collapse.

Had any warning come to her in advance of the event her bearing toward this stranger would have been a different one. The pride that bowed submissively to no one except in love, would have sustained her. The natural dignity which was the gift of her blood would have been the thing that any observer must have first and last recognized. With a chance to have shaped her attitude, Glory would have received Harrison as a Barbarian princess might have met an ambassador from Rome, but no such chance had been afforded her and she stood as distraught and as panicky as a stage-struck child whose speech fails.

She even slid back into the rough-hewn vernacular that had been so completely banished from her lips and custom.

"I ain't got ther power ter say," she faltered, "when he'll git back. He's goin' ter Frankfort first."

"I'll write to him there," said the capitalist.

Harrison departed with the stiff dignity of an affronted sachem, and Helen Merriwell, looking after him, smiled with amusement for the incident which she so well understood, until she turned and saw Glory.

The girl had wilted back against the wall and stood there as if she had been stricken. Her great, violet eyes were brimming with the spirit of tragedy and held the despair of one who has blithely returned home—to find his house in ruin and ashes.

Glory stole away to her own room, escaping the embrace of sympathetic arms, as soon as she could. "He's done denied me ter his friends," she told herself wildly. "He dast'n't acknowledge me ter fine folks!"

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Then through the first, torpid misery of hurt pride, crept a more terrifying thought. Spurrier had been practically engaged to this man's daughter. He had been diverted from his purpose by motives of pity, and now that Harrison knew, he might be ruined—probably would be ruined. If so

disaster would come to him because of her—and at last she rose from the chair where she had dropped down, collapsed, with a light of new resolution in her eyes.

“If that’s all I’m good for,” she declared tempestuously, “he’s got to be rid of me.”

CHAPTER XVIII

During the sitting of the legislature John Spurrier was a sporadic onlooker, and his agents were as vigilant as sentinels in a danger zone. The last day of the term drew to a wintry sunset, and when the clock registered midnight the body would stand automatically adjourned until gavel fall two years hence.

Spurrier, outwardly a picture of serenity, but inwardly tensed for the final issue, sat in the visitors' gallery of the Senate chamber. The charter upon which all his hopes hung as upon a fulcrum was all but in his grasp. Seemingly the enemy slept on. Presumably in those last tired hours the authorizing bill would slip through to passage with the frictionless ease of well-oiled bearings.

The needed men had been won over. Carping critics might prate, here and there, of ugly means that savored of bribery, but that was academic. The promise of forth-coming victory remained. Methods may be questionable. Results are not, and Spurrier was interested in results.

A. O. and G. had corrupted and suborned certain public servants. He had discovered their practice and played their own cards to their undoing. His ostensible clients were perhaps little cleaner-handed than their adversaries, but certainly, those other clients who did not even know themselves to be represented stood with no stain on their claims.

Those native men and women had not asked him to safeguard them, and had they been able to see what he was doing they would have guessed only that, after winning their faith, he was bent on swindling them. But Spurrier knew not only the seeming facts but those which lay beneath and he fought with a definite sense of stewardship.

First the *coup* must succeed, since that success was the foundation of all the rest, and the moment was at hand.

For this he had slaved, faced dangers and deprived himself of the contentment of home and the society of his wife. Now it was about to end in victory.

The enemy had been caught napping, and the victory would be his. Certainly he had been as fair as the foe. What now remained was a perfunctory confirmation by the Senate, and in these final wearied hours it would slip through easily in the general wind-up of uncontested affairs.

Spurrier had not slept for two days—or had slept little. When this ended he would go to his bed and lie there in sunken hours of restoration the clock around—and after that back to Glory. Already he carried in his pocket the brief message which he meant to put upon the wires to Harrison, at the moment of midnight and success. Characteristically it read: “Complete victory. Spurrier.”

Now as the clerk droned through the mass of unfinished matters that burdened the schedule, the clock stood at ten in the evening, and a spirit of disordered peevishness proclaimed itself in the chamber. Seats were vacated. Voices rose in unparliamentary clamor.

From the desk where a mountain senator sat in touseled disarray, a flask was drawn and tipped with scant regard to senatorial dignity. Then the chairman of the committee which had the steering of Spurrier’s affairs arose and handed a paper to the clerk.

Spurrier himself maintained the same unemotional cast of countenance with which, years before, he had watched a horse in the stretch battling for more than he could afford to lose, but Wharton, who sat at his side, chewed nervously on an unlighted cigar. Sleepy reporters yawned at the press tables as the clerk droned out his sing-song, “An act entitled an act conferring charter rights upon the Hemlock Pipe Line Company of Kentucky.”

The reading of the measure seemed devoid of interest or attention. It went forward in confusion, yet when it was ended the mountain man who had taken the swig out of his flask, came slowly to his feet.

“Mr. President of the Senate,” he drawled, “I want to address a few incongruial remarks to the senators in regards to this here proposed measure.”

With a sudden sense of premonition Spurrier found himself sitting electrically upright.

That man was Senator Chew who had sat in council with him and advised him; his right hand in action and his fox-brain in planning, yet now, with every moment invaluable he was burning up time!

He was a pygmy among small men, and as he drooled on he seemed to urge no pertinent objection. Yet before he had been five minutes on his feet his intent was clear and his success assured.

Out of the hands of their recognized lieutenants A. O. and G. had taken the matter of serving them. Into the hands of this obscure and loutish Solon who was ostensibly pledged to their enemies, they had thrust their commission, and now with the clock creeping forward toward adjournment, he meant to talk the charter measure to death by holding the floor until the opportunity for a vote had elapsed.

Tediously and inanely he meandered along, and no one knew what he was talking about. In extravagant metaphor and florid simile he indulged himself—and the clock worked industriously, an ally not to be unduly hurried.

“Gentlemen of the Senate—” he drooled, “most of us have been raised in a land that knows little of the primitive features that make up life with us, and though it may not at first seem germane or pertinent, I want you to go with me as your guide, while I try to make you see the life of those steep counties that are affected by the measure before you; counties that lie behind the barriers and sleep the ancient sleep of the forgotten.”

Men yawned while his tediousness spun itself into a tawdry flow of slow words, but the Honorable Mr. Chew talked on.

“Many the day, as a lad, have I lain by a rushing brook,” he declaimed, “where the water gushes with the sparkle of sunlit crystal and watched the deer come down on gingerly lifted feet to drink his fill. Now I reckon mighty few of you gentlemen have seen a deer come down to drink——”

The minute hand of the clock, in comparison with this windy deliberation seemed to be racing between the dial characters.

“In God’s name,” exclaimed Spurrier, “isn’t there any way to shut that fool up? He’s ruining us. Get some of our leaders up here, Wharton. We’ve got to stop him.”

“How?” demanded Wharton with a fallen jaw.

“I don’t give a damn how! Kill him—buy him. Anything!”

“It’s too late,” responded Wharton grimly. “He’s already bought. We’ve walked into their trap. We might as well go home.”

Spurrier sent for his whip, but he had come to the end of his resourcefulness and shook a dejected head.

“If you want to shoot him down as he stands there,” said the gentleman testily, “I dare say it would stop him short. I know no other way. He is having resort to the senatorial privilege of filibuster. We have let them slip up on us. A. O. and G. has outbid you, that’s all.”

“But how in God’s name did they get wise?”

The other laughed grimly. “Wise?” he snorted. “My guess is that they’ve been wise all the time and that hayseed Iscariot has been playing us along for suckers.”

Held by a deadly fascination, Spurrier sank back into his seat. The clock over the speaker’s desk traveled once, almost twice around the dial, and yet that nasal voice wandered on in an endless stream of grotesque bombast—talking the charter to a slow death by strangulation.

Now, reflected Spurrier bitterly, his connection with the enterprise must seem to any eye that viewed it that only of Harrison’s jackal and lobbyist, who had signally failed in his attempt to raid A. O. and G.

To the mountain folk themselves, if the facts ever percolated into the hills, his seeming would be far from heroic and with nothing tangible accomplished, it would do no good to tell them that he had made his fight with their interests at heart. Such a claim would only stamp him in the face of contrary evidence as taking a coward’s refuge in lies.

Then when it seemed to him that he could no longer restrain himself, Spurrier heard the gavel fall. It was a light sound, but it crashed on his brain with thunders of destruction.

“Gentlemen,” declared the presiding officer, “The Senate stands adjourned, *sine die*.”

Had John Spurrier gone to see the “witch woman” when Mosebury advised it, his course from that point on would have brought him to a different ending.

In looking back on that night, he could never quite remember it with consecutive distinctness. Gaps of forgetfulness were fitfully shot through with disconnected scraps of recollection. When events began to marshal themselves into orderly sequence, the windowpanes of his hotel room were turning a dirty gray with the coming of dawn, and he was sitting in a straight-backed chair. His bed had not been touched. Back of that lay a chaotic sense of irremediable disaster and despair.

At last he caught a glimpse of himself in the mirror, and that picture of disheveled wildness startled him and brought him back to realization.

Then self-contempt swept in on him. He had been called a man of iron nerve; a plunger who never turned a hair under reversals of fortune—and now he stood looking through the glass at a broken gambler with frenzied eyes. It was such a face as one might see in the circle before the Casino at Monte Carlo—the place of suicides.

The man who had seemed to come from nowhere and who had talked last night with such destructive volubility, had been a pure shyster. To be outwitted by such a clown carried the sting of chagrin, quite apart from the material disaster. Yet into his disordered thoughts came the realization that the senator had been only a puppet. His actuating wires had been pulled by the fingers of A. O. and G. and the men who sat as overlords of A. O. and G. were only shysters of a greater caliber. The men whom he, himself, served were no better. Compared to this backwoods statesman he, John Spurrier, was as a smooth and sophisticated confidence man paralleled with a pickpocket. Ethically, they were cut from the same cloth, though to differing patterns—one rustic and the other urban.

He had been engaged in a tawdry game, for all its gilding of rich prospects, but in the face of defeat a man cannot change his colors.

Had he been able to undertake this fight as his own man and choose his own methods—changing them as he grew in stature—there might have been a

man's zest in the game.

Now, less than ever, could he speak open truth to these simple friends who had trusted him. Now he must fight out a damaged campaign to the end along the lines to which he stood committed, and until the end there was nothing to say.

Perhaps if he could avert total ruin, he might yet have opportunity to reclaim the confidence of these Esaus who had traded for a mess of pottage. Certainly they had nothing to hope for from the myrmidons of Trabue.

John Spurrier forced his shoulders back into military erectness. He compelled his lips into the stiff and counterfeited curvature of a smile.

Not only had every resource he could muster gone into the scrapped enterprise, leaving him worse than bankrupt, but through him Martin Harrison had been led into the sinking of a fortune.

Harrison would, in all likelihood, be less bitter about the money loss, than the thought of the triumphant smile on Trabue's thin lips, but it was quite in the cards that, with his contempt for failure, he would wash his hands of Spurrier.

That, of course, spelled ruin. The exhibition skater had gone through the thin ice.

Harrison could, if he chose, do more than dismiss John Spurrier. He had seen to it that his lieutenant was bound to his standards by debts he could not pay, save out of some future enrichment contingent on success. If he chose to call those loans he would leave his employee shattered beyond hope of recovery.

But when Spurrier went down to the hotel dining room at breakfast time, a cold bath and a superhuman exertion of will power had transformed him. His bearing was a nice blending of the debonair and the dignified.

To no eye of observation was there any trace of collapse or reversal. He seemed the man who demanded the best from life and who got it.

At a table not far from his own sat Senator Chew with a companion whom Spurrier did not know. The traitor glanced up and his eye met that of the man he had betrayed, then fell flinching.

Perhaps the mountaineer expected the dining room to stage such a scene of recrimination and violence as it had in the past on more than one occasion, for his crafty face went brick red, then darkened into truculence as he half pushed back his chair and his hand swept tentatively toward his hip.

But the plunger had still his pride left, or its remnant, and it was no part of his plan to stand the self-confessed and vanquished victim, by any patent demonstration of wrath. He met the eyes of the politician who had played on both sides of the same game, and smiled, and if there was contempt in the expression, it was recognized only by the man who knew its cause.

Later he wrote a telegram to Harrison. It was not the thing he had expected to say, yet in it went no whine of despair:

Have suffered a temporary reversal.

Those were the words that the capitalist read when the message, after being decoded from its cipher, was laid on his desk.

Harrison, recently returned from his Southern trip, thought truculently of that nearby office in which Trabue was also receiving telegraphic information, and he writhed in the wormwood of chagrin.

The curtness of his response scorched the wires:

Explain in person if you can. Otherwise we separate.

So John Spurrier packed his bag and caught the first train for the mountains. He must say good-by to Glory, before facing this final ordeal, and he believed that in that clarifying air he could brace himself for the encounter that awaited him in New York.

As he turned into the yard of his own house he paused, and something about his heart tightened until it unsteadied him. Here alone, in all the world, he had known what home meant, and in his heart and veins rose an intoxicating tumult like that of wine.

Back of that emotional wave though lurked a misery of self-reproach. Glory had made the magic of his brief happiness, but there was a background, too, of kindly souls and a ruggedly genuine welcome. He had learned to know these people and to revise his first, false views of them. In them dwelt the stout honesty and real strength of oak and hickory.

First he had striven to plunder them, then sought to lift the yoke of poverty from their long-bowed shoulders. In both efforts he had failed.

But had he failed, after all? Certainly he stood under the black shadow of a major disaster, but had not others retrieved disasters and made final victory only the brighter for its contrast with lurid misfortune?

He had been the plunger who seemed strongest when he was weakest, and these enduring hills spoke their message of steadfastness to him as he stood surrounded by their lofty crests of spruce and pine.

Then he had reached the door and flung it open and Glory was in his arms, but unaccountably she had burst into a tempest of tears.

Before he had had time to speak of the necessity that called him East she was telling of the visit of Martin Harrison and his indignant departure.

Despite his all-consuming absorption of a moment before, Spurrier drew away, chilled by that announcement, and Glory read in his eyes a momentary agony of apprehension.

"In God's name," he demanded in a numbed voice, "why didn't you write me about that?"

"He said," responded the wife simply, "that *he* would write to you at Frankfort. I thought you knew."

"But I should have thought you'd have spoken of his coming and going—like that."

Her head came up with a brief little flash of hurt pride.

"You hadn't ever told him—about me," she said, though without accusation. "I didn't want to talk to you about it until you were ready to suggest it. It might have seemed—disloyal."

Spurrier again braced his shoulders. After a moment he took her in his arms.

"Glory, my sweetheart, I've been playing a game for big stakes. I've had to do some things I didn't relish. I've got to do another now. I'm summoned to Harrison's office in New York, at once—and I have no choice."

Glory drew away and looked with challenging directness into his eyes. 253

"I suppose—you'll go alone?"

“I must. Business affairs are at a crisis, and I need a free hand. But, God granting me a safe return, it’s to be our last separation. I swear that. I am always wretched without you.”

Always before when disappointment or disquiet had riffled the deeps of her eyes, it had taken only a word and a smile from this man to dispel them and bring back the serenity of content. Her moments of panic when she had seemed to drop down, down into pits of foreboding until she had plumbed the depth of despair, had been moments to which she had surrendered in his absence and of which he had been given no hint.

Now with a gravity that was bafflingly unreadable she stood silent and looked about the room, and the man’s eyes followed hers.

Why was it, he almost fiercely demanded of himself, that this cottage set in remote hills shed about him a feeling of soul-satisfaction that he had never encountered in more luxurious places?

Now as he looked at it the thought of leaving it cramped his heart with a sort of breathless agony.

Yet, of course, there was no question after all. It was because in everything it was reflection of Glory’s own spirit and to him Glory stood for the only love that had ever been bigger to him than himself.

The simplicity and good taste of the small house, standing in a land of squalid cabins like a disciple of quiet elegance among beggars, had been the result of their collaboration. Glory had had the instinct of artistic perception and true values and he had been able to guide her from his sybarite experience.

The stone fireplace with its ingle-nook, built by their own hands from rocks they had selected and gathered together, seemed to him a beautiful thing. The natural wood of the paneling, picked out at the saw-mill with a critical eye for graining and figuration, satisfied the eye, and the few pictures that he had brought from the East were all landscapes that meant something to each of them—lyric bits of canvas with singing skies. To every object a memory had attached itself; a memory that had also a tendril in their hearts.

But now Glory, too, was looking at all these things as though she as well as himself were leaving them. There was something of farewell in the glance that lingered on them and caressed them, as if of leave-taking and into

Spurrier's heart crept the intuition that despite his declaration just made that this should be their last separation, she was seeing in it a threat of permanence.

And that was the thought that was chilling Glory's heart and muting the song of happiness which his coming had awakened. This place which had been founded with all the promise of home and companionship was beginning to hold for her the foreboding of loneliness and something like abandonment. He knew it only when they were together here, but she had been in it alone and frightened more than in times of shared happiness.

And why was this true? Why could it be either true or necessary unless, as she had told herself in panic moments and denied so persistently, she was a misfit in his broader life and a woman whom he could enjoy in solitude but dared not trust to comparison with others?

CHAPTER XIX

At last she turned abruptly away, in order that the misery which would no longer submit to concealment might not show itself in her eyes, and stood looking out of the window.

Spurrier crossed with anxious swiftness and took her again into his arms.

“When I have finished this business trip,” he declared fervently, “our separations shall end. They have been too many and too long—but I’ve paid for them in loneliness, dear. This call, that I’m answering now, is unexpected but it’s imperative and I can’t disobey it.”

She turned then, slowly and gravely, but with no lightening of the burdened anxiety in her eyes.

“It’s not just that you have to go away, Jack,” she told him. “It’s a great deal more than that.”

“What else is there, dearest?” His question was intoned with surprise. “When we are together, I have nothing else to ask of life. Have you?”

“The place has been changed—mightily changed,” she went on musingly as though talking to herself rather than to him. “And yet the walls are the same as they were that day—when we both thought we had to die here together.”

“They are the dearer for that,” he exclaimed fervently. “That was what made us see things truly.”

“I wonder,” she questioned, then meeting his eyes steadily she went on as though determined to say what must be said.

“When you called Brother Hawkins in to marry us, I was afraid. I was afraid because I thought you were only doing it out of kindness, and that afterward you’d be ashamed of me.”

“Ashamed of you,” he echoed with indignant incredulity. “In God’s name how could I be?”

“Or if not ashamed of me that you couldn’t help knowing that I was—what I am—all right here in the hills but that outside—I wouldn’t do.”

“If you were ever afraid of that, it was only because you were undervaluing yourself. You surely haven’t any ghost of such a fear left now.”

For a little she stood silent again torn between the loyalty that hesitated to question him and the pride that was hurt.

Finally she said simply: “It’s a bigger fear now. Unless I’m unpresentable, why do you—never take me anywhere with you?”

John Spurrier laughed, vastly relieved that the mountain of her anxiety had resolved itself, as he thought, into a mole-hill. He could laugh because he had no suspicion of the chronic soreness of her heart and his answer was lightly made.

“These trips have all been in connection with the sort of business, Glory, that would have meant keeping me away from you whether you had gone to town or not. When we travel together—and I want that we shall travel a great deal—I must be free to devote myself to you. I want to show the world to you and I want to show you to the world.”

That declaration he fancied ought to resolve her fears of his being ashamed of her.

“If you were afraid I’d seem out of place,” she assured him, “I might be right sorry—and yet I think I’d understand. I’m not a fool and I know I’d make mistakes, but I was raised a lawyer’s daughter and I’ve got a pretty good business head—yet you’ve never told me anything of what this business is that calls you away. You always treat me as if there were no use in even trying to make me understand it.”

The man no longer laughed. He could not explain that it was rather because she might understand too well than not well enough. Even to her, until he was ready to prove his intent by his actual deeds, it seemed impossible to give that story without the seeming of the plunderer of her people.

“When the time comes that releases me from my pledge of absolute secrecy, dear,” he told her earnestly, “I mean to tell you all about my business—and I think you’ll approve, then. Now I don’t talk because I have no right to.”

Again there was silence, after which Glory said in a voice of still resolution which he had never heard from her before:

“I’m ignorant and uncultivated, Jack, but to me marriage is a full partnership—or it isn’t anything. When Mr. Harrison came, I saw for the first time just how I looked to men like him. I was just ‘pore white trash.’”

“Did he——” Spurrier broke off and his face went abruptly white with passion. Had Harrison been there at that moment he would have stood in danger at the hands of his employee, but Glory shook her head and hastened to quiet him.

“He wasn’t impolite, Jack. It wasn’t that—only I read in his eyes what he tried to hide. I only told you that because I wanted you to understand me. People here say that you give me everything but yourself; that I’m not good enough for you except right here where there’s nothing better.”

“That is a damned lie,” he expostulated. “Who says it?”

“Only women-folks and gossipy grannies that you can’t fight with, Jack,” she answered steadily. “But I’ve thought about it lots. I’ve come to think, dear, that maybe you ought to be free—and if you ought,” she paused, then the final assertion broke from her with an agonized voice, “then, I love you enough to set you free.”

Spurrier seized her in his arms and his words came choked with vehement feeling.

“I want you, Glory. I want you always and I couldn’t live without you. When I have to go away I endure it only by thinking of coming back to you. If you ever set me free as you call it, it will be only because *you* don’t want *me*. I suppose in that case I’d try to take my medicine—but I think it would about kill me.”

“There’s no danger of that, dear,” she declared.

The man drew away for a moment and fumbled for words. His aptness of speech had deserted him and at last he spoke clumsily:

“It’s hard to explain just now, when you’ve accused me of not taking you into my confidence, but I stand at a point, Glory, where I’ve got the hardest fight ahead of me I ever made. I stand to be ruined or to make good. I’ve got to use every minute and every thought in competition with quick brains

and enormous power. Until its over I must be a machine with one idea ... and I'll fail, dear, unless I can take with me the knowledge that you trust me."

She looked up into his face and the misery in her eyes gave place to confidence.

"Go ahead, Jack," she said. "I believe in you and I'm not even afraid of your failing." After a moment she clasped her arms tightly about him and added vehemently: "But whether you succeed or fail, come back to me, dear, because, except for your sake, it won't make any difference to me."

That same afternoon Spurrier found time to visit the "witch woman." It had dawned upon him since that night in the Senate chamber that, after all, Sim Colby might have been the least dangerous of his enemies, and the thought made him inquisitive.

The old crone made her magic with abundant grotesquerie, but at its end she peered shrewdly into his eyes, and said:

"I reads hyar in the omends thet mebbly ye comes too late."

Spurrier smiled grimly. He thought that himself.

"I dis'arns," went on the hag portentously, "thet a blind man impereled ye mightily—a blind man thet plays a fiddle—but thars others beside him thet dwells fur away an' holds a mighty power of wealth."

A blind man! Spurrier's remembrance flashed back to the visit of blind Joe Givins and the papers incautiously left on his table. Yet if he was genuinely blind they could have meant nothing to him—and if he was not genuinely blind it was hard to conceive of human nerves enduring without wincing that test of the gun thrust against the temple.

Spurrier rose and paid his fee. Had he seen her in time, this warning would have averted disaster. Now it was something of a post-mortem.

At the door of Martin Harrison's office several days later Spurrier drew back his shoulders and braced himself. It was impossible to ignore the fact that he stood on the brink of total ruin; that his sole hope lay in persuading his principal that with more time and more money he would yet be able to succeed—and Harrison was as plastic to persuasion as a brass Buddha.

But he had steeled himself for the interview—and now he turned the knob and swung back the mahogany door.

Spurrier was familiar enough with the atmosphere of that office to read the signs correctly. The hushed air of nervousness that hung over it now betokened a chief in a mood which no one sought to stir to further irritation.

Always in the past Spurrier had been deferentially ushered into a private office and treated as the future chief. Now, as though he were already a disinherited heir, he was left in the general waiting room, and he was left there for an hour. That cooling of the heel, he recognized as a warning of the cold reception to come—and an augury of ruin.

At last he was called in, but he went with an unruffled demeanor which hid from the principal's eye how near to breaking his inward confidence was strained.

“I wired you to come at once,” began Harrison curtly, and Spurrier smiled as he nodded.

“I came at once, sir, except that I hadn’t been home for some time, and it was necessary to make a stop there.”

“Home,” Martin’s brows lifted a trifle. “You mean the mountains.”

“Certainly—for the time being, I’m located there.”

“We may as well be honest with each other,” asserted the magnate. “I consider that under the circumstances you behaved with serious discourtesy and without candor.” For a casual moment his glance dwelt on the portrait of Vivien which stood on his table.

“I disagree with you, sir. I preferred relating the full circumstances, which were unusual, when there was an opportunity to do so in person. I was kept there by your interests as well as my own.”

“That recital,” said the older man dryly, “is your concern. Now that I know the facts I find myself uninterested in the details. You have chosen your way. The question is whether we can travel it together.”

“And I presume that the first point of that question demands a full report upon the business operations.”

“So far as I can see, they have collapsed.”

“They have by no means collapsed.”

Suddenly the wrath that had been smoldering in Harrison’s eyes burst into tempest. He brought his clenched fist down upon his desk until inkwells and accessories rattled.

This man’s moments of equinox were terrifying to those who must bow to his will—and his will held sway over broad horizons. If John Spurrier had not been intrepid he must have collapsed under the withering violence of the passion that rained on him.

“Before God,” cried Harrison, pacing his floor like a lion that lashes itself to frenzy, “you undertook to avenge me on Trabue. You have drawn on me with carte-blanche liberties and spent fortunes like a prodigal! You have assured me that you had, at all times, the situation well in hand. Then,

through some damned blunder, you failed. Let the money loss slide. Damn the money! I'm the laughingstock of the business world. I'm delivered over to Trabue's enjoyment as a boob who failed. I'm an absurdity, and you're responsible!"

"When you've finished, sir," said Spurrier quietly, "I shall endeavor to show you that none of those things have happened—that our failure is temporary and that when you undertook this enterprise you were in no impetuous haste as to the time of its accomplishment."

"The legislature doesn't meet for two years," Harrison barked back at him. "That will be two years of preparation for Trabue. Now he's fully warned, where do we get off?"

"At our original point of destination, sir."

The opportunity hound began his argument. His demeanor of unruffled calm and entire confidence began to exercise its persuasive force. Harrison cooled somewhat, but Spurrier was fighting, beneath his pose, as a man who has cramps in deep water fights for his life. These few minutes would determine his fate, and he was totally at the mercy of this single arbiter. 264

"I have now all the options we need on the far side of Hemlock Mountain," Spurrier summarized at last. "All except one tract which belongs to Bud Hawkins, who is a preacher and a friend of mine. He must have more generous terms, but I will be able to do business with him."

"You talk of the options on the far side of the ridge," Harrison broke in belligerently. "That is the minor field."

"I'll be able to repeat that performance on the near side."

"You will not! A repetition of your performance is the last thing we crave. Any movement now would be only a piling up of warnings. For the present you will give every indication of having abandoned the project."

"That is my idea, sir. I was not speaking of immediate but future activities. Also——" In spite of his desperation of plight the younger man's bearing flashed into a challenging undertone of its old audacity, "when I used the word 'repeat' I referred to the successful portion of my effort. There was no failure on the land end. It was the charter that went wrong—through the deceit of a man we had to trust."

“A man whom you selected,” Harrison caught him up. “You understood, in advance, the chances of your game. It was agreed upon your own insistence that your hand should be absolutely free—and freedom of method carries exclusiveness of responsibility. Traitors exist. They don’t furnish excuses.”

“Nor am I making them. I am merely stating facts which you seem inclined to confuse. I grant the failure but I also claim the partial success.”

Harrison seated himself, and as the interview stretched Spurrier’s nerves stretched with it under the placid surface of his plunger’s camouflage. He had, as yet, no way of guessing how the verdict would go, and now the capitalist’s face was hardened in discouragement. It was a face of merciless inflexibility. The sentence had been prepared in the judge’s mind. There remained only its enunciation.

“Nothing is to be gained by mincing my words, Spurrier,” declared Spurrier’s chief. “We know precisely where you stand.”

Harrison extended his hand with its fingers spread and closed it slowly into a clenched fist. “I hold you—there! I can crush you to a pulp of absolute ruin. You know that. The only question is whether I want, or not, to do it.”

“And whether, or not, you can afford to do it,” amended the other with an audacity that he by no means felt. “You must decide whether you can afford to accept tamely and as a final defeat, a mere reversal, which I—and no one else—can turn into eventual victory.”

“I have duly considered that. I had implicit confidence in your abilities. You have struck at my personal feeling for you by a silence that was not frank. You have allied yourself with the mountain people by marriage, and we stand on opposite sides of the line of interest. You have all the while been watched by our enemies, and I regard you as a defeated man. If I choose to cast you aside, you go to the scrap heap. You will never recover.”

That was an assertion which there was neither health nor wisdom in contradicting and Spurrier waited. His last card was played.

“And I am going to cast you aside—bankrupt you—ruin you!” blazed out Harrison, “unless you absolutely meet my requirements during a period of probation. That period will engage you in a very different matter. For the present you are through with the Kentucky mountains. The new task will be a difficult one, and it should put you on your mettle. It is one that can’t be

accomplished at all unless you can do it. You have that one chance to retrieve yourself. Take it or leave it.”

“What are your terms?”

“You will sail to-morrow for Liverpool. I will give you explicit instructions to-night. Go prepared for an extended stay abroad.”

For the first time Spurrier’s face paled and insurrection flared in his pupils.

“Sail for Europe to-morrow!” he exclaimed vehemently. “I’ll see you damned first! Doesn’t it occur to you that a man has his human side? I have a wife and a home and when I am ordered to leave them for an indefinite time I’m entitled to a breathing space in which to set my own affairs in shape. I am willing enough to undertake your bidding—but not to-morrow.”

Spurrier paused at the end of his outbreak and stood looking down at the seated figure, which to all intents and purposes might have been the god that held, for him, life and death in his hand.

And as he looked Spurrier thought he had never seen such glacial coldness and merciless indifference in any human face. He had known this man in the thundering of passion before which the walls about him seemed to tremble, but this manifestation of adamant implacability was new, and he realized that he had invited destruction in defying it.

“As you please,” replied Harrison crisply, “but it’s to-morrow or not at all. I’ve already outlined the alternative and since you refuse, our business seems concluded. Next time you feel disposed to talk or think of what you’re entitled to, remember that my view is different. All your claims stand forfeit in my judgment. You are entitled to just what I choose to offer—and no more.”

The chief glanced toward the door with a glance of dismissal, and the door became to Spurrier the emblem of finality. Yet he did not at once move toward it.

“I appreciate the need of prompt obedience, where there is an urge of haste,” he persisted, “but if a few days wouldn’t imperil results, I want those days to make a flying trip to Kentucky and to my wife.”

The face of the seated man remained obdurately set but his eyes blazed again with a note of personal anger.

“At a time when I was reasonably interested, you chose to leave me unenlightened about your domestic arrangements. Now I can claim no concern in them. Most wives, however, permit their husbands such latitude of movement as business requires. If yours does not it is your own misfortune. I think that’s all.”

Spurrier knew that the jaws of the trap were closing on him. He had been too hasty in his outburst and he turned toward the door, but as his hand fell on the bronze knob Harrison spoke again.

“Think it over, Spurrier. I can—and will ruin you—unless you yield. It is no time for maudlin sentiment, but until five-thirty this afternoon, I shall not consider your answer final. Up to that hour you may reconsider it, if you wish.”

“I will notify you at five,” responded the lieutenant as he let himself out and closed the door behind him.

That day the opportunity hound spent in an agony of conflicting emotions. That the other held a bolt of destruction and was in the mood to launch it he did not pretend to doubt. If it were launched even the land upon which his cottage stood would no longer be his own. He must either return to Glory empty-handed and bankrupt, or strain with a new tax, the confidence he had asked of her, with the pledge that he would return soon and for good.

But if, even at the cost of humbled pride and Glory’s hurt, he maintained his business relations, the path to eventual success remained open.

As long as the cards were being shuffled chance beckoned and at five o’clock Spurrier went into a cigar-store booth and called a downtown telephone number.

“You hold the whip hand, sir,” he announced curtly when a secretary had put Harrison on the wire. “When do I report for final instructions?”

“Come to my house this evening,” ordered the master.

Most of the hours of that evening, except the two in Harrison’s study, Spurrier spent in writing to Glory, tearing up letter after letter while the nervous moisture bedewed his brow. It was so impossible to give her any true or comprehensive explanation of the pressing weight of compulsion. His messages must have the limp of unreason. He was crossing the ocean

without her and she would read into it a sort of abandonment that would hurt and wound her. He had taxed everything else in life, and now he was overtaxing her loyalty.

Yet he believed that if in his depleted treasury of life there was one thing left upon which he could draw prodigally and with faith, it was that love; a love that would stand staunch though he were forced to hurt it once again.

So Spurrier sailed and, having arrived on European soil, took up the work that threw him into relations with men of large caliber in Capel Court and Threadneedle Street. His mission carried him to the continent as well; from Paris to Brussels and from Brussels to Hamburg and Berlin, where the quaint customs of the Kentucky Cumberlands seemed as remote as the life of Mars—remote but, to Spurrier, as alluring as the thought of salvation to a recluse who has foresworn the things of earth.

In terms of dead reckoning, Berlin is as far from Hemlock Mountain as Hemlock Mountain is from Berlin, but in terms of human relations Glory felt the distance as infinitely greater than did her husband. To him the Atlantic was only an ocean three thousand miles wide; often crossed and discounted by familiarity. To her it was a measureless waste separating all she knew from another world. To him continental dimensions were reckoned in hours of commonplace railway journeying, but to her the “measured mile” was both lengthwise and perpendicular, and when she passed old friends she fancied that she detected in their glances either pity for her desertion or the smirk of “I-told-you-so” malevolence.

It even crept to her ears that “some folks” spoke of her as “the widder Spurrier” and that Tassie Plumford had chuckled, “I reckon he’s done gone off an’ left her fer good an’ all this time. Folks says he’s fled away cl’ar acrost ther ocean-sea.”

Glory told herself that she had promised faith and that she was in no danger of faltering, but as the weeks lengthened into months and the months followed each other, her waiting became bitter.

In Berlin John Spurrier passed as a British subject, bearing British passports. That had been part of the careful plan to prevent discovery of what American interests he represented and it had proven effective. He had

almost accomplished the difficult task of self-redemption, set him by the man whose confidence he had strained.

Then came the bolt out of heaven. The inconceivable suddenness of the war cloud belched and broke, but he remained confident that he would have a chance to finish up before the paralysis cramped bourse and exchange.

England would not come in, and he, the seeming British subject, would have safe conduct out of Germany.

Now he must get back. This would mean the soaring of oil prices, and along new lines the battle must be pitched back there at home, before it was too late.

So Spurrier finished his packing. He was going out onto the streets to watch the upflame of the war spirit and to make railway reservations.

There was a knock at the door and the man opened it. Stiffly erect, stood a squad of military police and stiffly their lieutenant saluted.

“You are Herr John Spurrier?” he inquired.

The man nodded.

“It is, perhaps, in the nature of a formality, which you will be able to arrange,” said the officer. “But I am directed to place you under arrest. England is in the war. You are said to be a former soldier.”

CHAPTER XX

Over the ragged lands that lay on the “nigh side” of Hemlock Mountain breathed a spirit of excitement and mighty hope. It had been two years since John Spurrier had left the field he had planned to develop, and in those years had come the transition of rebirth.

Along muddy streets the hogs still wallowed, but now they were deeply rutted by the teaming of ponderous oil gear, and one saw young men in pith helmets and pig-skin puttees; keen-faced engineers and oil prospectors drawn in by the challenge of wealth from the far trails of Mexico and the West. One heard the jargon of that single business and the new vocabulary of its devotees. “Wild-catters” following surface indications or hunches were testing and well-driving. Gushers rewarded some and “dry holes” and “dusters” disappointed others. Into the mediæval life of hills that had stood age-long unaltered and aloof came the infusion of hot-blooded enterprise, the eager questing after quick and miraculous wealth.

In Lexington and Winchester oil exchanges carried the activity of small bourses. In newspapers a new form of advertisement proclaimed itself.

Oil was king. Oil and its by-product, gasoline, that the armies needed and that the thousands of engines on the earth and in the air so greedily devoured.

But over on the far side of the ridge men only fretted and chafed as yet. They had the oil under their feet, but for it there was no outlet. Like a land without a seaport, they looked over at neighbors growing rich while they themselves still “hurted fer needcessities.”

American Oil and Gas had locked them in while it milked the other cow. It had its needed charters for piping both fields, but a man who was either dead or somewhere across the world held the way barred in a stalemate of controlled rights of way.

Glory thought less about the wonderful things that were going forward than did others about her, because she had a broken heart. No letters came from Spurrier, and the faith that she struggled to hold high like a banner nailed to the masthead of her life, hung drooping. In the end her colors had been struck.

If John Spurrier returned in search of her now she would go into hiding from him, but it was most unlikely that he would return. He had married her on impulse and under a pressure of excitement. He had loved her passionately—but not with a strong enough fidelity to hold him true—and now she believed he had turned back again to his old idols. She was repudiated, and she ought to hate him with the bitterness of her mountain blood, yet in her heart's core, though she would never forgive him and never return to him, she knew that she still loved him and would always love him.

She no longer feared that she would have hampered him in the society of his more finished world. She had visited Helen Merriwell and had come to know that other world for herself. She found that the gentle blood in her veins could claim its own rights and respond graciously. Hers had been a submerged aristocracy, but it had come out of its chrysalis, bright-winged.

Then one day something happened that turned Glory's little personal world upside down and brought a readjustment of all its ideas.

Sim Colby owned a little patch of land beside his homestead place, over cross the mountain, and he was among those who became rich. He was not so rich as local repute declared him, but rich enough to set stirring the avarice of an erstwhile friend, who owned no land at all.

So ex-Private Severance came over to the deserter's house with a scheme conceived in envy and born of greed. He was bent on blackmail.

When he first arrived, the talk ran along general lines, because "Blind Joe," the fiddler, was at the house, and the real object of the visit was confidential. Blind Joe had also been an oil beneficiary, and he and Sim Colby had become partners in a fashion. During that relationship Blind Joe had told Sim some things that he told few others.

But when Joe left and the pipes were lighted Severance settled himself in a back-tilted chair and gazed reflectively at the crest of the timber line.

“You an’ me’s been partners for a right long spell, Bud Grant, ain’t we?”

Colby started. The use of that discarded name brought back the past with its ghosts of fear. He had almost forgotten that once he had been Bud Grant, and a deserter from the army. It was all part of a bygone and walled-in long ago. Though they were quite alone he looked furtively about him and spoke in a lowered voice:

“Don’t call me by that name. Thar ain’t no man but you knows erbout—what I used to be.”

“Thet’s what I’ve been studyin’ erbout. Nobody else but me.”

Severance sat silent for a while after that announcement, but there was a meaning smile on his lips, and Colby paled a shade whiter.

“I reckon I kin trust ye; I always hev,” he declared with a specious confidence.

Severance nodded. “I was on guard duty an’ I suffered ye ter escape,” he went reminiscently on. “I knows that ye kilt Captain Comyn, an’ I’ve done kept a close mouth all these years. Now ye’re a rich man an’ I’m a pore one. Hit looks like ter me ye owes me a debt an’ ye’d ought ter do a leetle something for me.”

So that was it! Colby knew that if he yielded at all, this man’s avarice and his importunities would feed on themselves increasingly and endlessly. Yet he dared not refuse, so he sought to temporize.

“I reckon thar’s right smart jestice in what ye says,” he conceded, “but I don’t know jest yit how I stands or how much money I’m wuth. Ye’ll have ter give me a leetle time ter find out.”

But when Severance mounted his mule and rode away, Sim Colby gave him only a short start and then hurried on foot through the hill tangles by a short cut that would intercept his visitor’s course.

He knew that Severance would have to ride through the same gorge in which Sim had waylaid Spurrier, and he meant to get there first, rifle-armed.

It was sunset when, quite unsuspecting of danger, at least for the moment, Severance turned his mule into the gorge. He was felicitating himself, since

without an acre of land or a drop of oil he had “declared himself in” on another’s wealth. His mule was a laggard in pace, and the rider did not urge him. He was content to amble.

Back of the rock walls of the great cleft, the woods lay hushed and dense in the closing shadows. An owl quavered softly, and the water among the ferns whispered. All else was quiet.

But from just a little way back, a figure hitched forward as it lay belly-down in the “laurel hell.” It sighted a rifle and pressed a finger.

The mule snorted and stopped dead with a flint of ears and tail and with no word, without even a groan, the rider toppled sidewise and slid from the saddle.

The man back in the brush peered out. He noted how still the crumpled figure lay between the feet of the patient, mouse-colored beast, that switched at flies with its tail. It lay twisted almost double with one arm bent beneath its chest.

So Colby crept closer. It would be as well to haul the body back into the tangle where it would not be so soon discovered, and to start the beast along its way with a slap on the flank.

But just as the assassin stooped, Severance’s right hand darted out and, as it did so, there was a quick glint of blue steel, and three instantly successive reports.

Colby staggered backward with a sense of betrayal and a horrible realization of physical pain. His rifle dropped from a shattered hand and jets of blood broke out through his rent clothing. Each of those three pistol balls had taken effect at a range so close that he had been powder-burned. He knew he was mortally hurt, and that the other would soon be dead if he was not so already.

Colby began crawling. He was mangled as if by an explosion, but instinct drove him. Twice he fainted and recovered dim consciousness and still dragged himself tediously along.

Glory was alone in her house. Her father, who had been living with her of late, had gone to the county seat overnight.

The young woman sat in silence, and the sewing upon which she had been busied lay in her lap forgotten. In her eyes was the far-away look of one who eats out one's heart in thoughts that can neither be solved nor banished.

Then she heard a faint call. It was hardly more than a gasped whisper, and as she rose, startled, and went to the door she saw striving to reach it a shape of terrible human wreckage.

Sim Colby's clothes were almost torn from him and blood, dried brown, and blood freshly flowing, mingled their ugly smears upon him. His lips were livid and his face gray.

Glory ran to him with a horrified scream. She did not yet recognize him, and he gasped out a plea for whisky.

With the utmost effort of her young strength she got him in, and managed to straighten out the mutilated body with pillows under its head.

But after a little the stimulant brought a slight reviving, and he talked in broken and disjointed phrases.

"Hit war Severance," he mumbled. "I fought back—I reckon I kilt him, too."

Glory gazed in bewildered alarm about the house. Brother Bud Hawkins was at Uncle Jimmy Litchfield's place, and she must get medical help, though she feared that the wounded man would be dead before her return.

When she came back with the preacher, who also "healed human bodies some," Colby was still alive but near his passing.

"Ef thar's aught on your conscience, Sim," said the old preacher gently, "hit's time ter make yore peace with Almighty God, fer ye're goin' ter stand afore him in an hour more. Air ye ready ter face Him?"

The dying man looked up, and above the weakness and the suffering that filled his eyes, showed a dominating expression of terror. If ever a human being needed to be shriven he thought it was himself.

They had to bend close to catch his feeble syllables, as he said: "Git paper—write this down."

The preacher obeyed, kneeling on the floor, and though the words were few, their utterance required dragging minutes, punctuated with breaks of silence

and gasping.

“Hit warn’t John Spurrier—thet kilt Captain Comyn back tha’r in the Philippines.... I knows who done hit——” He broke off there, and the girl closed her hands over her face. “I sought ter kill Spurrier—but I warn’t with them—thet attackted him hyar—an’ wounded ther woman.”

Once more a long hiatus interrupted the recital and then the mangled creature went on: “Hit was ther oil folks thet deevised thet murder scheme.”

The preacher was busily writing the record of this death-bed statement and Glory stood pale and distraught.

The words “oil people” were ringing in her ears. What connection could Spurrier have had with them: what enmity could they have had for him?

But out of the confusion of her thoughts another thing stood forth with the sudden glare of revelation. This man might die before he finished and if he could not tell all he knew, he must first tell that which would clear her husband’s name. Though that husband had turned his back on her, her duty to him in this matter must take precedence over the rest.

“Joe Givins——” began Colby once more in laborious syllables, but peremptorily the girl halted him.

“Never mind Joe Givins just now,” she commanded with as sharp a finality as though to her had been delegated the responsibility of his judgment. “You said you knew who killed Captain Comyn. Who was it?”

The eyes in the wounded and stricken face gazed up at her in mute appeal as a sinner might look at a father confessor, pleading that he be spared the bitterest dregs of his admission.

Glory read that glance and her own delicate features hardened. She leaned forward.

“I brought you in here and succored you,” she asserted with a sternness which she could not have commanded in her own behalf. “You’re going before Almighty God—and unless you answer that question honestly—no prayers shall go with you for forgiveness.”

“Glory!” The name broke in shocked horror from the bearded lips of the preacher. “Glory, the mercy of God hain’t ter be interfered with by mortals.

Ther man's dying!"

Upon him the young woman wheeled with blazing eyes.

"God calls on his servants for justice to the living as well as mercy to the dying," she declared. "Sim Colby, who killed Captain Comyn?"

"I done hit," came the unwillingly wrung confession. "My real name's Grant.... Severance aided me.... Thet's why I sought to kill Spurrier. I deemed he war a huntin' me down."

"Now," ordered the young woman, "what about Joe Givins?"

Again a long pause, then: "Blind Joe Givins—only he ain't no blinder than me—read papers hyar—he diskivered thet Spurrier was atter oil rights—he tipped off ther oil folks—he war their spy all ther time—shammin' ter be blind——" There the speaker struggled to breathe and let his head fall back with the utterance incomplete. Five minutes later he was dead.

"Hit don't seem ter me," said Brother Hawkins a short time later, while Glory still stood in dazed and trance-like wonderment, "es ef what he said kin be true. Why ef hit be, John Spurrier was aimin' ter plunder us hyar all ther time! He was counselin' us ter sell out—an' he was buyin'. I kain't believe that."

But Glory had drawn back to the wall of the room and into her eyes had come a new expression. The expression of one who must tear aside a veil and know the truth, and who dreads what that truth may be.

She had said that justice, no less than mercy, was God's command laid upon mortals. She had, almost by the extremity of withholding from Colby his hope of salvation until he spoke, won from him the declaration which would give back to John Spurrier an unsmirched name. Once Spurrier had said that was his strongest wish in life. But now justice called again: this time justice to her own people and perhaps it meant the unveiling of duplicity in the man she had married.

"Brother Hawkins," she declared in a low but fervent voice, "if it's not true, it's a slander that I can't let stand. If it is true, I must undo the wrong he's sought to do—if I can. Please wait."

Then she was tearing at the bit of paneling that gave access to the secret cabinet, and poring over papers from a broken and rifled strong box.

There was the uncontrovertible record, clear writ, and at length her pale face came up resolutely.

“I don’t understand it all yet,” she told the preacher. “But he was buying. He bought everything that’s been sold this side the ridge. He was seeking to influence the legislature, too. I’ve got to talk to my father.”

It was the next night, when old Dyke Cappeze had ridden back from the county seat, that he sat under the lamp in the room where Sim Colby had died, and on the table before him were spread the papers that had lain unread so long in John Spurrier’s secret cabinet.

Across from him sat Glory with her fingers spasmodically clutched and her eyes riveted on his face as he read and studied the documents, which at first he had been loath to inspect without the permission of their owner. He had been convinced, however, when Glory had told the story of the dying confession and had appealed to him for counsel.

“By what you tell me,” the old lawyer had summarized at the end of her recital, “you forced from this man his admission which cleared John Spurrier of the charge that’s been hanging over him. You set out to serve him and refused to be turned aside when Colby balked.... But that confession didn’t end there. It went on and besides clearing Jack in that respect it seems to have involved him in another way. You can’t use a part of a confession and discard the balance. Perhaps we can serve him as well as others best by going into the whole of the affair.”

So now Glory interrupted by no word or question, despite her anxiety to understand and her hoping against hope for a verdict which should leave John Spurrier clean of record.

But if she refrained from breaking in on the study that engrossed her father and wrinkled his parchment-like forehead, she could not help reading the expression of his eyes, the growing sternness and indignation of his stiffening lips—and of drawing the moral that when he spoke his words must be those of condemnation.

The strident song of the katydids came in through the windows and the moon dropped behind the hill crests before Dyke Cappeze spoke, and Brother Hawkins, who was spending the night at that house, smoked alone

on the porch, unwilling to intrude on the confidences that these two might wish to exchange.

Finally the lawyer folded the last paper and looked up.

“Do you want the whole truth, little gal?” he inquired bluntly. “How much do you still love this man?”

Glory flushed then paled.

“I guess,” she said and her words were very low and soft, “I’ll love him so long as I live—though I hate myself for doing it. He wearied of me and forgot me—but I can’t do likewise.”

Then her chin came up and her voice rang with a quiet finality.

“But I want the truth ... the whole truth without any softening.”

“Then as I see it, it’s simply this. A war was on between two groups of financiers. American Oil and Gas had held a monopoly and maintained a corrupt control in the legislature that stifled competition. That’s why the other oil boom failed. The second group was trying to slip up on these corruptionists and gain the control by a campaign of surprise. Jack Spurrier appears to have been the ambassador of that second group—and he seems to have failed.”

The wife nodded. Even yet she unconsciously held a brief for his defense.

“So far as you’ve gone,” she reminded her father, “you show him to have been what is commonly called a ‘practical business man’—but no worse than the men he fought.”

Cappeze bowed his head gravely and his next words came reluctantly. “So far, yes. Of course he could have done none of the things he did had he not first won the confidence of those poor ignorant folk that are our neighbors and our friends. Of course it was because they believed in him and followed his counsel that they sold their birthrights to men with whom he pretended to have no connection—and yet who took their orders from him.”

“Then,” Glory started, halted and leaned forward with her hands against her breast and her utterance was the monotone of a voice forced to a hard question: “Then what I feared was true? He lived among us and made friends of us—only to rob us?”

“If by ‘us’ you mean the mountain people, I fear me that’s precisely what he did. I can see no other explanation. Which ever of these two groups won meant to exploit and plunder us.”

For a little she made no answer, but the delicate color of her cheeks was gone to an ivory whiteness and the violet eyes were hardening.

“Perhaps we oughtn’t to judge him too harshly for these things,” said the father comfortingly. “The scroll of my bitterness against him is already heavy enough and to spare. He has broken your heart and that’s enough for me. As to the rest there are many so-called honorable gentlemen who are no more scrupulous. We demand clean conduct here in these hills,” a fierce bitterness came into his words, “but then we are ignorant, backwoods folk! There are many intricate ins and outs to this business and I don’t presume to speak with absolute conclusiveness yet.”

Outside the katydids sang their prophecies of frost to come and an owl hooted. Glory Spurrier sat staring ahead of her and at last she said aloud, in that tone which one uses when a thought finds expression, unconscious that it has been vocal: “So he won our faith—with his clear eyes and his honest smile—only to swindle and rob us!”

“My God, if I were a younger man,” broke out the father passionately, rising from his chair and clenching the damaging papers in his talon-like fingers, “I’d learn the oil game. I’d take this information and use it against both their gangs—and I believe I could force them both to their knees.”

He paused and the momentary fire died out of his eyes.

“I’m too old a dog for new tricks though,” he added dejectedly, “and there’s no one else to do it.”

“How could it be done?” demanded Glory rousing herself from her trance. “Between them they hold all the power, don’t they?”

“As far as I can make out,” Cappeze explained with the interest of the legalistic mind for tackling an abstruse problem, “Spurrier had completed his arch as to one of his two purposes—all except its keystone. He had yet to gain a passage way through Brother Hawkins’ land. With that he would have held the completed right-of-way—and it’s the only one. The other gang of pirates hold the ability to get a charter but no right of way over which to use it. Now the man who could deliver Brother Hawkins’

concession would have a key. He could force Spurrier's crowd to agree to almost anything, and with Spurrier's crowd he could wring a compromise from the others. Bud Hawkins is like the delegate at a convention who can break a deadlock. God knows I'd love to tackle it—but it's too late for me."

Glory had come to her feet, and stood an incarnation of combat.

"It's not too late for me," she said quietly. "Perhaps I'm too crude to go into John Spurrier's world of cultivated people but I'm shrewd enough to go into his world of business!"

"You!" exclaimed the father in astonishment, then after a moment an eager light slowly dawned in his eyes and he broke out vehemently: "By God in Heaven, girl, I believe you're the man for the job!"

"Call Brother Hawkins in," commanded Glory. "We need his help."

Before he reached the door old Cappeze turned on his heel.

"Glory," he said, "we've need to move out of this house and go back to my place. Here we're dwelling under a dishonest roof."

"I'm going to leave it," she responded quickly, "but I'm going farther away than that. I'm going to study oil and I'm going to do it in the Bluegrass lowlands."

CHAPTER XXI

John Spurrier stepped from the train at Carnettsville into a life that had been revolutionized. At last he had succeeded in leaving his German exile. His own country was in the war but he, with the equipment of a soldier, bore a dishonored name, which would bar him from a commission. Here he found the development of his dreams realized, but by other hands than his own.

Above all, he must see Glory. He had cabled her and written her, so she would be expecting him. Now he gazed about streets through which teemed the new activity.

Here was the thing he had seen in his dreams when he stood on wooded hills and thought in the terms of the future. Here it stood vivid and actual before the eyes that had visioned it.

With a groan he turned into the road homeward on a hired horse. He still meant to fight, and unless the Bud Hawkins property had escaped him, he would still have to be accounted with—but great prizes had slipped away.

At the gate of his house, his heart rose into his throat. The power of his emotion almost stifled him. Never had his love for Glory flickered. Never had he thought or dreamed of anything else or any one else so dearly and so constantly as of her.

He stood at the fence with half-closed eyes for a moment, steadying himself against the surges of up-welling emotion, then, raising his eyes, he saw that the windows and the door were nailed up. The chimney stood dead and smokeless.

Panic clutched at his throat as with a physical grasp. Before him trooped a hundred associations unaccountably dear. They were all memories of little things, mostly foolish little things that went into the sacred intimacy of his life with Glory.

Now there was no Glory there.

He rode at the best speed left in his tired horse over to old Cappeze's house, and, as he dismounted, saw the lawyer, greatly aged and broken, standing in the door.

One glance at that face confirmed all the fears with which he had been battling. It was a face as stern as those on the frieze of the prophets. In it there was no ghost of the old welcome, no hope of any relenting. This old man saw in him an enemy.

"Where is Glory?" demanded Spurrier as he hurried up to the doorstep, and the other looked accusingly back into his eyes and answered in cold and bitterly clipped syllables.

"Wherever she is, sir, it's her wish to be there alone." Suddenly the old eyes flamed and the old voice rose thin and passionate. "If I burned in hell for it to the end of eternity, I would give you no other word of her."

"She—she is not dead, then?"

"No—but dead to you."

"Mr. Cappeze," said Spurrier steadily, "are you sure that I may not have explanations that may change her view of me?"

"We know," said the lawyer in a voice out of which the passion had passed, but which had the dead quality of an opinion inflexibly solidified, "that since your marriage, you never made her the companion of any hour that was not a backwoods hour. We know that you never told us the truth about yourself or your enterprises—that you came to us as a friend, won our confidence, and sought to exploit us. Your record is one of lies and unfaithfulness, and we have cast you out. That is her decision and with me her wish is sacred."

The returned exile stood meeting the relentless eyes of the old man who had been his first friend in these hills and for a few moments he did not trust himself to speak.

The shock of those shuttered windows and that blankly staring front at the house where he had looked for welcome; the collapse of all the dreams that had sustained him while a prisoner in an internment camp and a refugee hounded across the German border were visiting upon him a prostration that left him trembling and shaken.

Finally he commanded his voice.

“To me, too, her wish is sacred—but not until I hear it from her own lips. She alone has the right to condemn me and not even she until I have made my plea to her. Great God, man, my silence hasn’t been voluntary. I’ve been cut off in a Hun prison-camp. I’ve kept life in me only because I could dream of her and because though it was easier to die, I couldn’t die without seeing her and explaining.”

“It was from her own lips that I took my orders,” came the unmoved response. “Those orders were that through me you should learn nothing. You had the friendship of every man here until you abused it—now I think you’ll encounter no sympathy. I told you once how the wolf-bitch would feel toward the man who robbed her of her young. You chose to disregard my warning—and I’ll ask you to leave my house.”

John Spurrier bowed his head. He had lost her! If that were her final conclusion, he could hardly seek to dissuade her. At least he could lose the final happiness out of his life—from which so much else had already been lost—as a gentleman should lose.

And he knew that however old Cappeze might feel, he would not lie. If he said that was Glory’s deliberately formed decision, that statement must be accepted as true.

“I have never loved any one else,” said Spurrier slowly. “I shall never love any one else. I have been faithful despite appearances. The rest of your charges are true, and I make no denial. I gambled about as fairly as most men gamble. That is all.”

A stiffening pride, made flinty by the old man’s hostility, shut into silence some things that Spurrier might have said. He scorned the seeming of whine that might have lain in explanations, even though the explanations should lighten the shadow of his old friend’s disapproval. He offered no extenuation and breathed nothing of the changes that had been wrought in himself by the tedious alchemy of time and reflection.

He had begun under the spur of greedy ambition, but changes had been wrought in him by Glory’s love.

He was still ambitious, but in a different way. He wanted to salvage something for the equitable beneficiaries. He wanted to stand, not among

the predatory millionaires, but to be his own man, with a clean name and solvent.

Before he could attain that condition he must render unto Harrison the things that were Harrison's and wipe out his own tremendous liabilities—but his heart was in the hills.

John Spurrier went slowly and heavy heartedly back to the house which he had refashioned for his bride; the house that had become to him a shrine to all the dear, lost things of life.

The sun fell in mottled luminousness across its face of tempered gray and from the orchard where the lush grass grew knee-high came the cheery whistle of a Bob-white.

At the sound the man groaned with a wrench of his heart and throat, and his thoughts raced back to that day when the same note had come from the voices of hidden assassins and when Glory had exposed her breast to rifle-fire to send out the pigeon with its call for help.

The splendid oak that had shaded their stile had grown broader of girth and more majestic in the spread of its head-growth since he had stood here before, and in the flower beds, in which Glory had delighted, a few forlorn survivors, sprung up as volunteers from neglected roots, struggled through a choke of dusty weeds.

The man looked about the empty yard and his breath came like that of a torture victim on the rack. The desolation and ache of a life deprived of all that made it sweet struck in upon him with a blight beside which his prison loneliness had been nothing.

"If she knew the whole truth—instead of only half the truth," he groaned, "she might forgive me."

He ripped the padlock from the door and let himself in. He flung wide a shutter and let the afternoon sun flood the room, and once inside a score of little things worked the magic of memory upon him and tore afresh every wound that was festering.

There hung the landscapes that he and she had loved and as he looked at them her voice seemed to sound again in his ears like forgotten music. From

somewhere came the heavy fragrance of honeysuckle and old nights with her in the moonlight rushed back upon him.

Then he saw an apron on a peg—hanging limp and empty, and again he saw her in it. He went and opened a drawer in which his own clothes had been kept—and there neatly folded by her hand were things of his.

John Spurrier, whose iron nerve had once been café talk in the Orient, sat down on a quilted bed and tearless sobs racked him.

“No,” he said to himself at last. “No, if she wants her freedom I can’t pursue her. I’ve hurt her enough—and God knows I’m punished enough.”

Unless he were tamely to surrender to the despair that beset him, John Spurrier had one other thing to do before he left the hills. He must come to such an agreement with Bud Hawkins as would give him a right of way over that single tract and complete his chain of holdings. Thus fortified the field beyond the ridge would be safe against invasion by his enemies and even the other field would have readier outlet to market by that route. In the Hawkins property lay the keystone of the arch. With it the position was impregnable. Without it all the rest fell apart like an inarticulated skeleton.

It happened that Spurrier met Hawkins as he went away from his lonely house, and forcing his own miseries into the background, he sought to become the business man once more. He began with a frank statement of the facts and offered fair and substantial terms of trade.

Both because his affection for the old preacher would have tolerated nothing less and because it would have been folly now to play the cheaper game, he spoke in the terms of generosity.

But to his surprise and discomfiture, Brother Hawkins shook a stubborn head.

“Thar ain’t skeercely no power on ’arth, Mr. Spurrier,” he declared, “thet could fo’ce me inter doin’ no business with ye.”

“But, Brother Hawkins,” argued the opportunity hound, “you are cutting your own throat. You and I standing together are invincible. Separate, we are lost. I’m almost willing to let you name the terms of agreement—to write the contract for yourself.”

“I’ve done been pore a right long while already,” the preacher reminded him as his eyes kindled with the zealot’s fire. “Long afore my day Jesus Christ was pore an’ ther Apostle Paul, an’ other righteous men. I ain’t skeered ter go on in likewise ter what I’ve always done.” He paused and laid a kindly hand on the shoulder of the man who offered him wealth.

“I ain’t seekin’ ter fault ye unduly, John Spurrier. Mebby ye’ve done follered yore lights—but we don’t see with no common eye, ner no mutual disc’arnment. Ye’ve done misled folk thet swore by ye, ef I sees hit a’right. Now ye offers me wealth, much ther same as Satan offered hit ter Jesus on a high place, an’ we kain’t trade—no more then what they could trade.”

The old preacher’s attitude held the trace of kindliness that sought to drape reproof in gentleness and to him, as had been impossible with Cappeze, Spurrier poured out his confidence. At the outset, he confessed, he had deliberately dedicated himself to the development of wealth for himself and his employers, with no thought of others. Later, in a fight between wary capitalists where vigilance had to be met with vigilance, the seal of secrecy had been imperative. Frankness with the mountain men would have been a warning to his enemies. Now, however, his sense of responsibility was awake. Now he wanted to win back his status of confidence in this land where he had known his only home. Now what weight he had left to throw into the scales would be righteously thrown. Even yet he must move with strict, guarded secrecy.

But the old circuit rider shook his head.

“Hit’s too late, now, ter rouse faith in me, John,” he reiterated. “Albeit I’d love ter credit ye, ef so-be I could. What’s come ter pass kain’t be washed out with words.” He paused before he added the simple edict against which there was no arguing.

“Mebby I mout stand convinced even yit ef I didn’t know thet ther devil was urg’in’ me on with prospects of riches.”

One thing remained to him; the pride that should stiffen him in the presence of his accusers and judges. When he went into the eclipse of ruin, at least he would go with unflinching gallantry.

And it was in that mood that Spurrier reached his club in New York and prepared himself for the ordeal of the next day’s interview.

He had wired Harrison of his coming, but not of his hopelessness, and when his telephone jangled and he heard the voice of the financier, he recognized in it an undercurrent of exasperation, which carried omen of a difficult interview.

“That you, Spurrier? This is Harrison. Be at my office at eleven to-morrow morning. Perhaps you can construe certain riddles.”

“Of what nature, sir?”

“Of a nature that won’t bear full discussion over the wire. We have had an anonymous letter from some mysterious person who claims to come with the situation in a sling. It may be a crank whom we’ll have to throw out—or some one we dare not ignore. At all events, it’s up to you to dispose of him. He’s in your province. If you fail, we lose out and, as I said once before, you go to the scrap heap.”

Spurrier hung up the phone and sat in a nerveless trepidation which was new and foreign to his nature. This interview of to-morrow morning would call for the tallest bluffing he had ever attempted, and the chances would, perhaps, turn on hair-trigger elements of personal force.

He must depend on his coolness, audacity, and adroitness to win a decision, and, except by guesswork, he could not hope to formulate in advance the terrain of battle or the nature of counter-attack with which he must meet his adversary.

That evening he strolled along Broadway and found himself yielding to a dangerous and whimsical mood. He wondered how many other men outwardly as self-assured and prosperous as himself were covertly confessing suicide as one of to-morrow’s probabilities.

Over Longacre Square the incandescent billboards flamed and flared. The darning-wool kitten disported itself with mechanical abandon. The woman who advertised a well-known corset and the man who exploited a brand of underwear brilliantly made and unmade their toilets far above the sidewalk level. Motors shrieked and droned and crowds drifted.

Before a moving-picture theater, his introspective eye was momentarily challenged by a gaudy three-sheet. The poster proclaimed a popular screen star in a “fight fuller of punch than that of ‘The Wreckers.’”

What caused Spurrier to pause was the composition of the picture—and the mental comparison which it evoked. A man crouched behind a heavy table, overthrown for a barricade—as he had once done.

Fallen enemies lay on the floor of a crude Western cabin. Others still stood, and fought with flashing guns and faces “registering” desperation, frenzy, and maniac fury. The hero only, though alone and outnumbered, was grimly calm. The stress of that inferno had not interfered with the theatric pose of head and shoulders—the grace and effect of gesture that was conveyed in the two hands wielding two smoking pistols.

Spurrier smiled. It occurred to him that had a director stood by while he himself had knelt behind a table he would have bawled out many amendments which fact had overlooked. Apparently he and his attackers had, by these exacting standards of art, missed the drama of the situation.

Over him swept a fresh flood of memory, and it brought a cold and nervous dampness to his temples. Again he saw Glory rising at the broken window with a pigeon to release—and a life to sacrifice, if need be. On her face had been no theatric expression which would have warranted a close-up.

Spurrier hastened on, turning into a side street where he could put the glare at his back and find a more mercifully dark way.

He was seeing, instead of dark house fronts, the tops of pine trees etched against an afterglow, and Glory standing silhouetted against a hilltop. Above the grind of the elevated and the traffic, he was hearing her voice in thrushlike song, happy because he loved her.

The agony of loss overwhelmed him, and he actually longed, as for a better thing, for that moment to come back when behind an overturned table he had endured the suspense which death had promised to end in an instant filled and paid for with revenge.

Then through his disturbed brain once more flashed lines of verse:

“I was ever a fighter, so—one fight more,
The best and the last!
I should hate that Death bandaged my eyes and forebore,
And bade me creep past.”

At all events he would, in the figurative sense, die fighting to-morrow. He knew his mistakes now. If he lived on he hoped to atone for them, but if he died he would go out without a whine.

And if he must die, there was one way that seemed preferable to others. The army would have none of him, as an officer, because he stood besmirched of honor. But he knew the stern temper of the mountaineers. They would rise in unanimous response to the call of arms. He could go with them, not with any insignia on his collar, but marching shoulder against shoulder into that red hell of Flanders and France, where a man might baptize himself, shrive himself, and die. And in dying they would leave a record behind them!

CHAPTER XXII

Down along the creekbeds back of Hemlock Mountain young Jimmy Litchfield, a son of old Uncle Jimmy, had been teaming with a well-boring outfit and his wagon had bogged down in deep mud. He had failed to extricate himself so he tramped three hard, steep miles and telephoned for an extra team. While he awaited deliverance he found himself irked and, to while away the time, set his drill down haphazard and began to bore.

It would be some hours before help arrived, and when he had worked a while he had forgotten all about help.

His drill had struck through soft gravel to an oil pool lying close to the surface, and the black tide gushed crazily.

Young Jimmy sat back watching the dark jet that he had no means of stemming or containing, and through his simple soul flowed all the intoxication of triumph.

He was the discoverer of a new—and palpably a rich field!

Hereafter oil men would speak of the Snake Creek field as copper men spoke of Anaconda or gold men of the Yukon.

And that night word went by wire to the opportunity hound who had just gone east, that the “fur” side was to the “nigh” side as gold is to silver.

“What do you make of it?” demanded Harrison, when Spurrier, secure in his seeming of undaunted assurance, arrived at his office and the response came smilingly: “I think it means a bluff.”

“Read that,” snapped the financier as he flung a letter across his desk.

Spurrier took the sheet of paper and read in a hand, evidently disguised!

You find yourself in a cul-de-sac. I hold the key to a way out. My terms are definite and determined in advance. I shall be at your office at noon, Tuesday. We will do business at that time, or not at all.

“I repeat,” said Spurrier, “that this seems to me a brass-bound bluff. I make only the request that I be permitted to talk with this brigand alone; to sound him out with no interference and to shape my policy by the circumstances. I’m not at all frightened.”

Harrison answered snappily:

“I agree to that—but if you fail you fail finally.”

So on Tuesday forenoon Spurrier sat cross-legged in Harrison’s office and their discussion had come to its end. Now, he had only to await the unknown person who was to arrive at noon bearing alleged terms, a person who claimed to be armed for battle if battle were needed.

At Harrison’s left and right sat his favored lieutenants, but Spurrier himself occupied a chair a little bit apart, relegated to a zone of probation.

Then a rap sounded on the door, and Spurrier smiled with a ghost of triumph as he noted that he alone of the small group did not start at the signal. For all their great caliber and standing, these men were keyed to expectancy and exasperated nervousness.

The clerk who appeared made his announcement with the calculated evenness of routine: “A lady is waiting. She says her name doesn’t matter. She has an appointment for twelve.”

“A lady!” exclaimed Harrison in amazement. “My God, do we have to fight this thing out with a woman?”

The tableau of astonishment held, until Spurrier broke it:

“What matter personalities to us?” he blandly inquired. “We are interested in facts.”

The chief lifted his hand and gave curt direction. “Show her in.”

Then through the door came a woman whose beauty would have arrested attention in any gathering. Just now what these men, rising grudgingly from their chairs, noted first, was the self-possession, the poise, and the convincing evidence of good breeding and competency which characterized her.

She was elegantly but plainly dressed, and her manner conveyed a self-assurance in nowise flustered by the prospect of impending storm.

No one there, save Spurrier, recognized her, for to Martin Harrison carrying the one disapproving impression of a mountain girl in patched gingham, the transformation was complete.

And as for Spurrier himself, after coming to his feet, he stood as a man might be expected to stand if a specter of death had suddenly materialized before him.

For the one time in his life all the assumption of boldness, worn for other eyes, broke and fell away from him, leaving him nakedly and starkly dumbfounded. He presented the pale and distressed aspect of a whipped prize fighter, reeling groggily against the ropes, and defenseless against attack.

It was a swift transformation from audacious boldness to something which seemed abject, or that at least was the aspect which presented itself to Martin Harrison and his aides, but back of it all lay reasons into which they could not see.

It was no crumbling and softening of battle metal that had wrought this astonishing metamorphosis but a thing much nearer to the man's heart. At that moment there departed from his mind the whole urgent call of the duel between business enemies—and he saw only the woman for whom he had sought and whom he had not found.

In the cumulative force and impact of their heart-breaking sequence there rushed back on him all the memories that had been haunting him, intensified to unspeakable degree at the sight of her face—and if he thought of the business awaiting them at all, it was only with a stabbing pain of realization that he had met Glory again only in the guise of an enemy.

Harrison gave him one contemptuous glance and remarked brutally:

“Madam, this gentleman was to talk with you, but he seems scarcely able to conduct any affair of moment.”

Glory was looking at the broken man, too, and into her splendid eyes stole a pity that had tenderness back of it.

Old memories came in potent waves, and she closed her lids for a moment as though against a painful glare, but with quick recovery she spoke.

“It is imperative, gentlemen, that I have a few words first—and alone—with Mr. Spurrier.”

“If you insist, but——” Harrison’s shoulders stiffened. “But we do not guarantee that we shall abide by his declarations.”

“I do insist—and I think you will find that it is I who am in the position to dictate terms.”

Harrison gave a sharply imperative gesture toward the door through which the others filed out, followed by the chief himself, leaving the two alone.

Then John Spurrier rose, and supported himself by hands pressed upon the table top. He stood unsteadily at first and failed in his effort to speak. Then, with difficulty, he straightened and swept his two hands out in a gesture of surrender.

“I’m through,” he said. “I thought there was still one fight left in me—but I can’t fight you.”

She did not answer and, after a little, with a slight regaining of his self-command, he went on again:

“Glory! What a name and what a fulfillment! You have always been Glory to me.”

Out of his eyes slowly went the apathy of despair and another look of even stronger feeling preëmpted its place: a look of worship and adoration.

“I didn’t know,” admitted Glory softly, “that I was to meet you here. I didn’t know that the fight was to be between us.”

“You have ruined me,” he answered. “I’m a sinking ship now, and those rats out there will leave me—but it’s worth ruin to see you again. I want you to take this message with you and remember it. All my life I’ve gambled hard and fought hard. Now I fail hard. I lost you and deserved to lose you, but I’ve always loved you and always shall.”

Her eyes grew stern, repressing the tenderness and pity that sought to hold them soft.

“You abandoned me,” she said. “You sought to plunder my people. I took up their fight, and I shall win it.”

Spurrier came a step toward her and spread his hands in a gesture of surrender, but he had recovered from the shock that had so unnerved him a few minutes ago and there was now a certain dignity in his acceptance of defeat.

“I break my sword across my knee,” he declared, “and since I must do it, I’m glad you are the victor. I won’t ask for mercy even from you—but when you say I abandoned you, you are grievously wrong.

“When you say I sought to plunder your people, you speak the truth about me—as I was before I came to love you. From that time on I sought to serve your people.”

“Sought to serve them?” she repeated in perplexity, “The record shows nothing of that.”

“And since the record doesn’t,” he answered steadily, “any assertions and protestations would be without proof. I’ve told you, because my heart compelled me. I won’t try to convince you. At all events, since I failed, my motives don’t matter.”

“Your motives are everything. I took up the fight,” she said, “because I thought a Spurrier had wronged them. I wanted a Spurrier to make restitution.”

“At first I saw only the game, dear heart,” he confessed, “never the unfairness. I’m ready to pay the price. Ruin me—but in God’s name, believe that I love you.”

Her hand came out waveringly at that, and for a moment rested on his shoulder with a little gesture of tenderness.

“I thought I hated you,” she said. “I tried to hate you. I’ve dedicated myself to my people and their rights—but if you trust me enough, call them in and let me talk with them.”

“Trust you enough!” he exclaimed passionately, then he caught her to him, and, when he let her go, he stood again transformed and revived into the man he had seemed before she appeared in the doorway. It was as though the touch of her lips had given him the fire from which he rose phoenixlike.

With an unhesitant step he went to the door and opened it, and the men who had gone out trooped back and ranged themselves again about the table.

“Mr. Spurrier did all in your interests that a man could do,” said Glory. “He failed to secure your charter and he failed to secure the one tract that serves as the key. I am a mountain woman seeking only to protect my people. I hold that tract as trustee for Bud Hawkins. I mean to do business, but only at a fair price. It’s for you to determine whether I deal with you or your competitors.”

A look of consternation spread over the faces of the lesser men, but Harrison inquired with a grim smile:

“Madam, haven’t I seen you somewhere before to-day?”

“Once before—down in the hills.”

“Then you are this man’s wife! Was this dramatic incident prearranged between you?”

She raised an imperative hand, and her voice admitted no question of sincerity.

“Make no such mistake. Mr. Spurrier knew nothing of this. He was loyal enough—to you. From him I never even learned the nature of his business. Without his knowledge *I* was loyal to my people.”

Then for ten minutes she talked clearly, forcefully, and with the ring of indubitable sincerity giving fire to voice and manner. She told of the fight she and her father had made to keep heart in mountain folk, enraged by what they believed to be the betrayal by a man they had trusted and attacked by every means of coercion at the disposal of American Oil and Gas.

She told of small local reservoirs, mysteriously burned by unknown incendiaries; of neighborhood pipe lines cut until they spilled out their wealth again into the earth; of how she herself had walked these lines at night, watching against sabotage.

As she talked with simple directness and without self-vaunting, they saw her growing in the trust of these men whose wrath had been, in the words of old Cappeze, “Like that of the wolf-bitch robbed a second time of her whelps.” They recognized the faith that had commissioned her to speak as trustee, and to act with *carte-blanche* powers.

Harrison and his subordinates were not susceptible men, easily swayed by a dramatic circumstance, so they cross-examined and heckled her with shrewd and tripping inquiries, until she reminded them that she had not come as a supplicant, but to lay before them terms, which they would, at their peril, decline to accept.

The realization was strong in them that she had spoken only the truth when she declared that she held the key. When they were convinced that she realized, in full, the strength of her position, they had no wish to antagonize longer.

The group of financiers drew apart, but after a brief consultation Harrison came forward and offered his hand.

“Mrs. Spurrier,” he announced crisply, “we have gone too far to draw back. After all, I think you come rather as a rescue party than an attacker. Spurrier, you have married a damned brilliant woman.”

Glory accepted the extended hand of peace, and Harrison, with a jerk of his head to the door, led his followers out, leaving them alone again.

Then Glory held out her arms, and into the bright depths of her eyes flashed the old bewitching merriment.

“Thar’s a lavish of things I needs ter know, Jack,” she said. “You’ve got to l’arn ’em all ter me.”

“I come now, not as teacher but as pupil, dear heart,” he declared, “and I come humbly.”

Then her face grew serious and her voice vibrant with tenderness.

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“I have another gift for you, Jack, besides myself, I can give you back an untarnished name.”

THE END

Typographical inconsistencies have been changed and are highlighted and listed below.

Hyphenation standardized.

Other archaic and variable spelling and hyphenation is preserved, including the author's use of eying and eyeing, Quizote, Otello, and langour.

Transcriber Changes

The following changes were made to the original text:

[Page 86](#): Was sterterously (he sat there breathing **stertorously** while the untended fire died away)

[Page 90](#): Was plausiblity (One explanation only presented itself with any color of **plausibility**)

[Page 96](#): Was mistly (there was a dreamy violet where it merged **mistily** with the skyline ridges)

[Page 118](#): Was there ("It is well established by the evidence befo' **ther** co'te")

[Page 120](#): Was impusively (the girl broke out **impulsively**)

[Page 124](#): Removed extra quote (Still Spurrier cursed himself for a careless **fool**)

[Page 162](#): Was it's (you'll recall that **its** longer name is *Datura stramonium*)

[Page 180](#): Was inperceptible (pair of shoulders that hunched slowly forward with almost **imperceptible** movement)

[Page 208](#): Guessed at missing text (the latter inquired gravely: "**Did they play one** of them royalty games")

[Page 208](#): Was single quote (I ain't playin' no more of them royalty **games**")

[Page 263](#): Was pacink ("Before God," cried Harrison, **pacing** his floor like a lion)

[Page 301](#): Was personalties ("What matter **personalities** to us?")

*** END OF THE PROJECT GUTENBERG EBOOK THE LAW OF
HEMLOCK MOUNTAIN ***

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